SPORTS & GAMES

Game and Playe of the Chesse A Verbatim Reprint of the First Edition, 1474

Jacobus, de Cessolis

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CAXTON'S

GAME AND PLAYE OF THE CHESSE.

1474.

A VERBATIM REPRINT OF THE FIRST EDITION.

WITH AN INTRODUCTION

BY

WILLIAM E.A. AXON, M.R.S.L.

"And ther was founde by clerkes full prudent Of the chesse the play most glorious."

JOHN LYDGATE.

LONDON: ELLIOT STOCK, 62, PATERNOSTER ROW, E.C. 1883.

[Transcribers Note: This is a reprint of Caxton's 1474 original. "Englifh" long s's which look very similar to f's have been transposed to s's for readability; yogh (looks like a mutated 3) has been rendered as a 3; thorn, þ, has been left as such and macrons over letters are given as e.g. [=o]. Otherwise the text has been left as is.

The original punctutation has been preseved. Virgula suspensiva, shown here as / was in common use from the thirteenth to the seventeenth century. Often used for short pauses (such as the cæsura in the middle of a line of poetry), but sometimes was used as equivalent to the punctus. "'9" represents a superscripted 9 and is an ancestor to the modern apostrophe. It usually indicates the omission of a terminal -us.

A small amount of text in this edition is in Blackletter, which was used in the Caxton original, and these sections have been marked up as such.

The book contains many attractive illustrations copied from the Caxton original and an HTML version exists to give a better representation of this.]

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THE GAME OF THE CHESSE.

Dedication to the Duke of Clarence

Prologue to second edition

BOOK I.

This booke conteyneth. iiii. traytees/ The first traytee is of the Invencion of this playe of the chesse/ and conteyneth. iii. chapitres.

The first chapitre is under what kynge this play was founden.

The .ii. chapitre/ who fonde this playe.

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The .ii. of smythis and other werkes in yron & metall.

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The .v. is of phisicyens and cirugiens and apotecaries.

The .vi. is of tauerners and hostelers.

The .vii. is of y'e gardes of the citees & tollers & customers.

The .viii. is of ribauldes disepleyars and currours.

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The .iiii. traytee is of the meuyng and yssue of them And hath .viii. chapitres.

The first is of the eschequer.

The seconde of the yssue and progression of the kynge.

The thirde of the yssue of the quene.

The fourth is of the yssue of the alphyns.

The fifth is of the yssue of the knyghtes.

The sixty chapitre of the yssue of the rooks.

The seuenth is of the meuynge & yssue of the comyn peple.

And the eyght and laste chapitre is of the epilegacion and of the recapitulacion of all these forsaid chapitres.

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INTRODUCTION

The readers of the "Antiquary" will remember the anecdote told with so much effusion by Jonathan Oldbuck. '"Davy Wilson," he said, "commonly called Snuffy Davy, from his inveterate addiction to black rappee, was the very prince of scouts for searching blind alleys, cellars, and stalls, for rare volumes. He had the scent of a slow-hound, sir, and the snap of a bull-dog. He would detect you an old black-letter ballad among the leaves of a law-paper, and find an _editio princeps_ under the mask of a school Corderius. Snuffy Davy bought the 'Game of Chess, 1474,' the first book ever printed in England, from a stall in Holland for about two groschen, or two-pence of our money. He sold it to Osborne for twenty pounds, and as many books as came to twenty pounds more. Osborne re-sold this inimitable windfall to Dr. Askew for sixty guineas. At Dr. Askew's sale," continued the old gentleman, kindling as he spoke, "this inestimable treasure blazed forth in its full value and was purchased by Royalty itself for one hundred and seventy pounds! Could a copy now occur, Lord only knows," he ejaculated with a deep sigh and lifted-up hands, "Lord only knows what would be its ransom; and yet it was originally secured, by skill and research, for the easy equivalent of two-pence sterling."'

Sir Walter Scott in a footnote adds:--"This bibliomaniacal anecdote is literally true; and David Wilson, the author need not tell his brethren of the Roxburghe and Bannatyne Clubs, was a real personage." Mr. Blades, whose iconoclastic temper is not moved to mercy even by this good story, says that although it "looks like a true bibliographical anecdote," its appearance is deceptive, and that "not a single statement is founded on fact."[1]

Jonathan Oldbuck did not venture to estimate the sum that would ransom a copy of the "Game of Chesse," and the world of the bibliomania has moved even since his days, so that prices which seemed fabulous, and were recounted with a sort of awe-struck wonder, have been surpassed in these latter days, and the chances of any successor of "Snuffy Davy" buying a Caxton for two groschen have been greatly reduced.

According to Mr. William Blades, our latest and best authority on the subject, there are but ten copies known of the first edition of the "Chesse" book.[2] There is a perfect copy in the King's Library in the British Museum. This is what ought to be Snuffy Davy's copy. A previous owner--R. Boys--has noted that it cost him 3_s_. The copy in the Grenville Library has the table and last leaf supplied in facsimile. The copy in the Public Library at Cambridge is defective to the extent of five leaves. The Bodleian copy wants the last leaf. The Duke of Devonshire's copy formerly belonged to Roger Wilbraham, and the first and eighth leaves are supplied in facsimile. The exemplar belonging to the Earl of Pembroke is perfect, "but on weak and stained paper." Earl Spencer's copy is perfect, clean, and unusually large. Mr. H. Cunliffe's copy came from the Alchorne and Inglis Libraries, and wants the first two printed leaves, two near the end, and the last two. Mr. J. Holford's copy is perfect and in its original binding. It was once in the library of Sir Henry Mainwaring of Peover Hall, as his bookplate shows. On a fly-leaf is written, "Ex dono Thomæ Delves, Baronett 1682." The copy belonging to the Rev. Edward Bankes is imperfect, and wants the dedicatory leaf and is slightly wormed.

The book, when complete, consists of eight quaternions or eight leaves folded together and one quinternion or section of five sheets folded together, making in all seventy-four leaves, of which the first and last are blank. The only type used throughout is that styled No. 1 by Mr. Blades. The lines are not spaced out; the longest measure five inches; a full page has thirty-one lines. Without title-page, signatures, numerals, or catch-words. The volume, as already mentioned, begins with a blank leaf, and on the second recto is Caxton's prologue, space being left for a two-line initial, without director. The text begins with a dedication:--"(T)o the right noble/ right excellent & vertuous prince George duc of Clarence Erl of Warwyk and of Salisburye/ grete chamberlayn of Englond & leutenant of Ireland oldest broder of kynge Edward by the grace of god kynge of England and of France/ your most humble servant william Caxton amonge other of your servantes sendes unto yow peas. helthe. Joye and victorye upon your Enemyes/ Right highe puyssant and." The text ends on the seventy-third recto, thus:--"And sende yow thaccomplisshement of your hye noble. Joyous and vertuous desirs Amen:/: Fynysshid the lastday of Marche the yer of our lord god. a. thousand foure honderd and LXXIIII. *. *. *. *." The seventy-fourth leaf is blank.

It is unnecessary to say that this book seldom comes into the market. The recorded sales are very few. In 1682 R. Smith sold a perfect copy for 13s. 2d. In 1773 J. West's copy was bought by George III. for.£32 0s. 6d. Alchorne's imperfect copy was bought by Inglis for £54 12s., and at the sale of his books found a purchaser in Lord Audley for £31 10s., and was again transferred, in 1855, to the possession of Mr. J. Cunliffe

for £60 l0s. 0d.[3] Mr. J. Holford's copy was bought at the Mainwaring sale for £101.

The last copy offered for sale was described in one of Mr. Bernard Quaritch's catalogues issued in 1872, and the account given by that veteran bibliopole is well worth reproduction.

CAXTON'S GAME AND PLAY OF CHESS MORALIZED, (translated 1474) FIRST EDITION, folio, 65 LEAVES (of the 72), bound in old ruffia gilt, £400.

[Blackletter: Fynyshid the last day of Marche the yer of our Lord God, a thousand foure hondred and lxxiiii....]

An extremely large, though somewhat imperfect copy of

THE FIRST BOOK PRINTED IN ENGLAND, from Caxton's press.

Mr. Blades quotes 9 copies (4 perfect, 5 imperfect), the present is the 10th known copy, and is TALLER than even the Grenville--hitherto the tallest known copy; my copy measures 11-1/8 inch in height by 8 in width, whilst the Grenville copy (also imperfect) is only 11 inches high.

COLLATION of _my copy_:

[Blackletter: This Booke conteyneth iiii traytees] 1 _leaf_. [Blackletter: This first chapiter of the first tractate] 1 _leaf_. [Blackletter: The trouthe for to do Justice right wysly,] etc. to the end 62 _leaves_. _The last leaf with the date:_ [Blackletter: In conquerynge his rightful inheritance,] _ending:_ [Blackletter: fynyshed], _etc._ 1474 1 _leaf_. ---------- 65 leaves.

My copy wants therefore 7 leaves, the two blank ones being out of question. The imperfections include the first leaf, and two leaves in the second chapitre of the fourth tractate, the end is all right. I should be glad to hear of any IMPERFECT COPY of this work, which would supply me with what I want. In the mean time this precious relic of the Infancy of Printing in England can be feen by BUYERS of Rare books.

See Dibdin's Bibl. Spenc. IV. p. 189.

No copy of this edition has been sold for years; in 1813, Alchorne's copy, wanting first two leaves, the last two leaves and two leaves in the second chapter of the fourth tractate, fetched at Evans', £54. 12_s_. The value of this class of books has much risen since then, and may now be considered, as ten times greater.

In comparing the first edition of "Caxton's Game of Chess" with the second, one perceives many variations in the spelling. I confider the _first edition_ to be the more interesting, for a variety of reasons:

1. It is the first book printed in England. 2. It is the _Editio princeps_ of the English version. 3. It shows the Art of Printing in its crudest form. 4. It has a Post-script not in the second edition.

Both editions run on together to the passage on the last page of the second edition:

[Blackletter: And a mon that lyvyth in thys world without vertues lyveth not as a man but as a beste.]

The first edition ends thus:

[Blackletter: And therefore my right redoubted Lord I pray almighty god to save the Kyng our soverain lord to gyve him grace to yssue as a Kynge tabounde in all vertues/ to be assisted with all other his lordes in such wyse yn his noble royame of England may prospere/ habounde in vertues and yn synne may be eschewid justice kepte/ the royame defended good men rewarded malefactours punyshid the ydle peple to be put to laboure that he wyth the nobles of the royame may regne gloriously.

In conquerynge his rightfull inheritaunce / that verraypeas and charitie may endure in both his royames and that marchandise may have his cours in suche wise that every man eschewe synne/ and encrese in vertuous occupacions / Praynge your good grace to resseyve this lityll and symple book made under the hope and shadow of your noble protection by hym that is your most humble servant in gree and thanke. And I shall praye almighty god for your long lyf & welfare / which he preserve And sende now thaccomplishment of your hye noble joyous and vertuous desirs Amen:|:

Fynysshid the last day of marche the yer of our lord god a. thousand four hondred and lxxiiii. *.:.:.*.]

The second edition ends thus:

[Blackletter: Thenne late every man of what condycion he be that redyth or herith this litel book redde. take therby ensaumple to amend hym. Explicit per Caxton.]

This copy came from the library of Mr. L.M. Petit.[4]

It will be noticed that Mr. Quaritch calls the _editio princeps_ of Caxton's "Game and Play of the Chesse" the first book printed in England. This was the general opinion of bibliographers before the investigations of Mr. Blades. Dibdin, although he seems to have had some doubt, pronounced in favour of that view. Yet it is clearly erroneous. The only materials for judgment are those afforded by the colophon and the prologue to the second edition, with the silent but eloquent testimony of typography. Caxton ends the first edition with the words:--"Fynysshid the last day of Marche the yer of our lord god a thousand four hondred and LXXIIII." The word "fynysshid," as Mr. Blades observes, "has doubtless the same signification here as in the epilogue to the second book of Caxton's translation of the Histories of Troy, 'Begonne in Brugis, contynued in Gaunt and finysshed in Coleyn,' which evidently refers to the translation only. The date, 1475-6, has been affixed, because in the Low Countries at that time the year commenced on Easter-day; this in 1474 fell on April 10th, thus giving, as the day of the conclusion of the translation, 31 March 1475, the same year being the earliest possible period of its appearance as a printed book." Then there is Caxton's own racy account of the circumstances under which the book first appeared:--

"And emong alle other good werkys It is a werke of ryght special recomendacion to enforme and to late vnderstonde wysedom and vertue vnto them that be not lernyd ne can not dyscerne wysedom fro folye Th[=e]ne emonge whom there was an excellent doctour of dyuynyte in the royame of fraunce of the ordre of thospytal of Saynt Johns

of Jherusalem which entended the same and hath made a book of the chesse moralysed whiche at suche tyme as I was resident in brudgys in the counte of Flaundres cam into my handes/ whiche whan I had redde and ouerseen/ me semed ful necessarye for to be had in englisshe/ And in eschewyng of ydlenes And to thende that s[=o]me which haue not seen it/ ne [=v]nderstonde frenssh ne latyn J delybered in my self to translate it in to our maternal tonge/ And whan I so had achyeued the sayd translacion/ J dyde doo sette in enprynte a certeyn nombre of theym/ Whiche anone were depesshed and solde wherfore by cause thys sayd book is ful of holsom wysedom and requysyte vnto euery astate and degree/ J haue purposed to enprynte it/ shewyng therin the figures of suche persons as longen to the playe."

It is clear from this that both the translation and printing belong to the period of Caxton's residence in Bruges. From the use of the instrumental form "dyde doo sette en enprynte" it might be thought that Caxton employed the services of some printer, but although commonly so employed, there are instances which will not bear this interpretation of its intention.[5] He either employed a printer or made some partnerfhip with one, and there are various indications that confirm Mr. Blades' theory that the book came from the press of Colard Mansion.

The second edition is undoubtedly the work of our first English printer. "Explicit per Caxton" is the unambiguous statement of the colophon. It is a much more advanced specimen of typography than the first edition. It has signatures, of which _a, b, c, d, e, f, g, h, i,_ are quaternions, _k_ and _l_ are terternions, making in all eighty-four leaves, of which the first is blank. There is no title-page, and the type used is that which Mr. Blades reckons as No. 2*. The lines are spaced out to an even length. There are twenty-nine lines to a full page, and the full line measures 4-7/8 inches. The prologue begins on _a ij_., and the table of chapters begins on the next page. The text begins on the recto of _a iii_. The text ends on the recto of _l_ 6, the last page being blank. There are sixteen woodcuts in the volume, which are used twenty-four times. There has been some diversity of opinion as to the year in which this "Game of the Chesse" came from the press of Caxton. The book is not dated. Dibdin thought it one of the printer's earliest efforts. Figgins regarded it as the earliest issue of the Westminster press, and further believed that it was printed from cut metal types. This is not the view of Mr. Blades, who says: "An examination of the work, however, with a typographical eye does not afford a single evidence of very early workmanship. All Caxton's early books were uneven in the length of their lines--this is quite even. Not one of the early works had any signatures--this is signed throughout. These two features alone are quite sufficient to fix its date of impression at least as late as 1480, when Caxton first began the use of signatures; but when we find that every known copy of this edition of the 'Chess-Book' presents a thicker and more worn appearance than any one copy of any other book, there is good reason for supposing that this may have followed the 'Tulli' of 1481, and have been the last book for which Type No. 2* was used."[6]

Mr. Blades describes nine known copies, so that even fewer exemplars remain of the second edition than of its predecessor. The copy in the King's Library in the British Museum is imperfect, wanting several leaves, and is mended in many places.

The copy in the Pepysian Collection at Cambridge wants one-half of the last leaf. Trinity College, Cambridge, has a perfect copy, "but a bad impression." The Bodleian copy is defective in not having the last leaf. St. John's College, Oxford, has a copy, from which one-half of _d iii_. has been torn away. The Imperial Library at Vienna has an imperfect copy. The Duke of Devonshire's copy is perfect, but it is "a poor impression, and slightly stained." The Earl of Pembroke's copy is very imperfect. Earl Spencer's is only slightly imperfect. The prices fetched by the second edition have a sufficiently wide range. In 1698, at Dr. Bernard's sale, a copy fold for 1s. 6d. Farmer's copy in 1798 fetched £4 4s. Ratcliffe's copy was bought at his sale for £16 by Willett; and when his books came to the hammer in 1813, it was purchased by the Duke of Devonshire for £173 5s.[7] It is interesting to know that the copy of the second edition in the Bibliotheca Spenceriana formerly belonged to Laurence Sterne, who bought it for a few shillings at York![8]

In the present reprint, the text followed is that of the first edition, transcribed from the copy in the British Museum; but the variations, alterations, and additions made in the second issue are all recorded in footnotes. The reader has, therefore, before him the work in all its fulness. The same reasons that have led to the adoption of this course have also decided the publisher to include facsimiles of the curious woodcuts which appeared in the second edition. These, although necessarily reductions in size, reproduce the quaint vigour of the originals.

Caxton, we have seen, translated the "Game of the Chesse" from the French. There were in effect two, if not three, from which he may have taken his version. One of these is by Jean Faron, Perron, or Feron (as the name is variously spelled), a monk of the order of St. Dominic, of whom the notices are exceedingly scanty.[9] La Croix du Maine styles him "de l'Ordre des Frères Prescheurs ou Jacobins du Paris." La Monnaye says that the translation was made from the Latin of Cessoles, and was begun in the year 1347. It has not been printed.[10] The translation is considered a literal version of the Latin of Cessoles.

The prologue of Perron's version is as follows:--"Chy ensuit le geu des Eschas moralisé, ouquel a plusiers exemples bien à noter. A noblehomme, Bertrand de Tarascon, frere Jehan Perron, de l'ordre des Freres precheurs de Paris, son petil et humble chappelain soy tout. Le Sainte Escripture dit que Dieux a fait a chascun commandement de pourchassier à tous nos prochains leur sauvement. Or est-il ainsi que nos prochains ne sont pas tout un, ains sont de diverses condicions, estas et manieres, sy comme il appert. Car les uns sont nobles; les aultres non: les aultres sont de cler engin; les aultres, non: les aultres sont enclins a devocion; les aultres, non. Et pour ce, affin que le commandement de Dieu soit mis à execution bien convenablement, il convient avoir plusiers voyes et baillier à chascun ce qui lui est plus convenable; et ainsi pourroit il le commandement de Dieu accomplir; .... Pour tant je, vostre petit chappelain, à vostre requeste, que je tieng pour commendement, vous ai volu translata de latin en français le Gieu des Eschas moralisé, que fist l'un de nos freres, appelé frere Jaques de Cossoles, maistre en divinité, si que vous l'entendés plus legierrement; et à exemple des nobles hystoires qui y sont notteés, veuillés maintenir, quant à vous, honnestement, et quant aux autres justement.... Or

prenés done ce petit present, comencié le 4'e jour de May, l'an 1347."[11]

That Caxton made use of Perron's version is clear. Thus Mr. Blades mentions the description of Evilmerodach as "un homme joly sans justice" as peculiar to Ferron, whose version he regards as the basis of the first and third chapters of Caxton's work.

Dr. Van der Linde mentions a number of MSS.; in some the date is given as 1357, and in one as 1317. This version remains unprinted, but there are MSS. of it in the Bibliotheque Nationale, at Aosta, Cambrai, at Brussels, in the British Museum, Chartres, at Bern, and at Stockholm.[12]

Dr. Van der Linde also describes a MS. on parchment of the fifteenth century, forming part of the national library at Paris, which contains the Game of Chess in verse.

"Mès si d'esbat te prent tallant, Pren ton esbat déuement; Mès si à jouer vieulx attendre, Un noble jou te faulte attendre, C'est des echecs qui est licite Et à touz bien les gens incite."

The author has concealed his name with an ingenuity that has so far defied penetration.

"Nommez mon nom et mon surnom, Je ey escript tout environ, A vingt et dous lettres sans plus, Sera trouvé cy au dessus En enscript, et sans plus ne moins."

On this it is only necesiary to quote the remarks of a French critic:--"Ou ne nous dit pas si c'est dans la suite même de la phrase, ou seulement en acrosticke, que se trouvent les vingt-deux lettres de ces nom mystérieux. Nous ne saurions former aucun nom avec les initiales des trente vers qui précèdent ceux que nous venons de citer; et le merite de l'ouvrage ne nous encourage pas à faire des longues recherches pour découvrir un nom que l'auteur a pris plaisir à nous cacher."[13]

The bulk of Caxton's work is undoubtedly from the French translation of Jehan de Vignay, whose dedication to Prince John of France has simply been transformed into a similar address to the Duke of Clarence. He styles De Vignay "an excellent doctor of the order of the Hospital of St. John's of Jerusalem." This is the only authority we have for supposing De Vignay to be connected with that order. He styles himself "hospitaller de l'ordre de haut pas," which was situated in the Faubourg St. Jacques of Paris. It is curious that two members of the same order--for Ferron was also a Jacobin--should independently have occupied themselves with the same work. The version by De Vignay was probably the later of the two, and it was also the most popular, for whilst Ferron's is still unprinted, that of De Vignay has been frequently re-issued from the press. The work is dedicated to Jean de France, Duc de Normandie, who became king in 1350. It will be seen from this that these two French versions were practically contemporaneous.

The prologue to the book is as follows:--"A Tres noble & excellent prince Jehan de france duc de normendie & auisne filz de philipe par le grace de dieu Roy de france. Frere Jehan de vignay vostre petit Religieux entre les autres de vostre seignorie/ paix sante Joie & victoire sur vos ennemis. Treschier & redoubte seign'r/ pour ce que Jay entendu et scay que vous veez & ouez volentiers choses proffitables & honestes et qui

tendent alinformacion de bonne meur ay Je mis vn petit liuret de latin en francois le quel mest venuz a la main nouuellement/ ou quel plussieurs auctoritez et dis de docteurs & de philosophes & de poetes & des anciens sages/ sont Racontez & sont appliquiez a la moralite des nobles hommes et des gens de peuple selon le gieu des eschez le quel liure Tres puissant et tres redoubte seigneur jay fait ou nom & soubz vmbre de vous pour laquelle chose treschr seign'r Je vous suppli & requier de bonne voulente de cuer que il vo daigne plaire a receuvoir ce liure en gre aussi bien que de vn greign'r maistre de moy/ car la tres bonne voulente que Jay de mielx faire se je pouoie me doit estre reputee pour le fait/ Et po'r plus clerement proceder en ceste ouure/ Jay ordene que les chappitres du liure soient escrips & mis au commencement afin de veoir plus plainement la matiere de quoy le dit liure pole."[14]

It will be seen that this is the foundation of Caxton's dedication of the Chess-book to the Earl of Warwick. The "Golden Legend," printed by Caxton in 1484, was in effect a translation from "La Legende Dorée," made before the year 1380 by Jehan de Vignay, who in his prologue mentions that he had previously translated into French "Le miroir des hystoires du monde," at the request of "Ma dame Jehanne de Borgoigne, royne de France."[15] This preface Caxton, as usual, adopted with some changes of name and other alterations, amongst which is a reference to "the book of the chesse" as one of his works. The "Legenda Aurea" of Jacobus de Voragine is, of course, the original source of De Vignay's "Legende Dorée," and Caxton's "Golden Legend."

Ferron and de Vignay were avowedly translators. Their original was Jacques de Cessoles. The name of this author has been tortured into so many fantastic forms that one may almost despair of recovering the original. Cæsolis, Cassalis, Castulis, Casulis, Cesolis, Cessole, Cessulis, Cesulis, Cezoli, de Cezolis, de Cossoles, de Courcelles, Sesselis, Tessalis, Tessellis, de Thessolus, de Thessolonia, and de Thessolonica are different manners of spelling his surname, and the two last are certainly masterpieces of transformation. Prosper Marchand has amused himself by collecting some vain speculations of previous writers as to the age, country, and personality of Jacques de Cessoles. Some counted him a Lombard, some an Italian, whilst others again boldly asserted that he was a Greek!

He lived towards the end of the thirteenth or beginning of the fourteenth century, and having joined the Dominican order, was a "Maître en Théologie" of that brotherhood at Reims. Various works are attributed to him, and his learning and piety had many eulogists.

It is more than probable that his name would have been much less widely known but for the happy accident that turned his attention to the game of chess. It was a popular diversion, and in the moralizing spirit of the age he saw in it an allegory of the various components of the commonwealth. The men who were merely killing time were perhaps flattered at the thought that they were at the same time learning the modes of statecraft. Then, as now, the teachers of morality felt that a song might reach him who a sermon flies, and they did not scruple to use in the pulpit whatever aids came handy. The popular stories, wise saws, and modern instances, were common enough on the lips of the preachers, and such collections as the "Gesta

Romanorum show what a pitch of ingenuity in unnatural interpretation they had reached. An appropriate instance is furnished by it in the following quaint fashion of moralizing the chess play:--

"Antonius was a wys emp_er_our regnyng in the cite of Rome, the which vsid moche to pley with houndis; and aftir þat pley, all þe day aftir he wolde vse þe chesse. So yn a day, as he pleide at þe chesse, & byheld the kyng fette yn the pley, som tyme hy and som tyme lowe, among aufyns and pownys, he thought þ_er_with þ_a_t hit wold be so with hi_m_, for he shuld dey, and be hid vndir erth. And þ_er_fore he devided his Reame in thre p_ar_ties; and he yaf oo part to þe kyng of Ier_usa_l_e_m; þe secunde p_ar_t vnto þe lordis of his Reame or his empire; and the thrid p_ar_tie vnto the pore people; & yede him self vnto the holy londe, and ther he endid his lyf in peas.

MORALITE.

Seth now, good sirs; this emp_er_our, þat lovith so wele play, may be called eche worldly man þat occupieth him in vanytes of the world; but he moste take kepe of the pley of the chesse, as did the emp_er_oure. the chekir or þe chesse hath viij. poyntes in eche p_ar_tie. In eu_er_y pley beth viij. kyndes of men, s_cil_. man, woman, wedewer, wedowis, lewid men, clerk_es_, riche men, and pou_er_e men. at this pley pleieth vj. men. the first man, þat goth afore, hath not but oo poynt, but whenne he goth aside, he takith anoþ_er_; so by a pou_er_e man; he hath not, but when he comyth to þe deth with pacience, þen shall he be a kyng in heuen, w_i_t_h_ þe kyng of pore men. But if he grucche ayenst his neighbour of his stat, and be a thef, and ravissh þat wher he may, þen he is ytake, and put in to the p_re_son of helle. The secund, f_cil_. alphyn, renneth iij. poyntes both vpward and douneward; [he] betokenyth wise men, the whiche by deceyuable eloquence & takyng of money deceyueth, & so he is made oonly. The iij. _scil._ þe kny3t, hath iij. poyntes, & goth þ_er_with; [he] betokenyth gentilmen þat rennyth aboute, & ravisshith, and ioyeth for her kynrede, & for habundaunce of richesse. The fourth, s_cil._ þe rook, he holdith length & brede, and takith vp what so is in his way; he betokenyth okerers and false m_er_chaunt3, þat rennyth aboute ouer all, for wynnyng & lucre, & rechith not how thei geten, so that thei haue hit. The fifthe is þe quene, that goth fro blak to blak, or fro white to white, and is yset befide þe kyng, and is ytake fro the kyng. This quene bytokenyth virgyns and damesels, þat goth fro chastite to synne, and beth ytake by the devill, for glovis or such man_e_r yiftis. The vj. is to whom all owe to obey and mynystre; and he goth forth, and bakward ayen, & in either side, & takith ouer all; so sone discendith in to þe world, and ascendith to god by praiers; But when he takith [no] kepe of god, and hath no meyne, þan is hit to þe man chekmate. And þ_er_fore let vs not charge of oure estatis, no more þan is w_i_t_h_ þe men, when þei be put vp in þe poket; then hit is no charge who be above or who be byneth; and so by the Spirit of loulynesse we may come to þe ioy of heven. And þat graunt vs, _qui viuit_ &c."

It is not, therefore, surprising to learn that Jacques de Cessoles found texts for sundry sermons on the game that formed so favourite a diversion of clergy and laity. The favour with which these discourses were received no doubt gratified the worthy Dominican father. At the request of some of those who heard them he began to write

down the substance of his sermons. The result was the "Liber de moribus Hominum et officiis Nobilium ac Popularium super ludo scachorum," which immediately attained great popularity. This is shown by the bibliography of Dr. A. Van der Linde in a striking manner, for he has described two hundred codices to be found in the various public libraries of Europe.[16]

The difficulties in the way of forming any clear conception as to the life and personality of Cessoles, Ferron, and De Vignay are well shown in an article by M.C. Leber.[17] Dr. Ernst Köpke, who has reexamined the evidences as to Cessoles, holds that he was a Lombard.[18]

The chief source from which Cessoles took his material was the treatise "De Regimine Principum" of Egidius Romanus.

He was of the great Neapolitan family of the Colonna, and his Christian name appears to have been Guido, but his designations have undergone some curious transformations. Born at Rome, 22nd Sept., 1216, Guido Colonna went at an early age to Paris, where, from the name of his birthplace, he became known as Ægidius Romanus, with the French form of Gilles de Rome. He was an ardent and enthusiastic disciple of St. Thomas Aquinas, and his familiarity with that great doctor of the Church led him to desire admission to the Dominican order, but a difficulty intervened from the circumstance that he had already contracted ties which bound him to the order of St. Augustine. To this untoward accident may probably be attributed no little of the extension of the philosophical doctrine of Aquinas; for Colonna, unable or unwilling to be relieved of the vows that bound him to the Augustinians, preached eagerly amongst them the Thomist speculations of his friend and master. In the controversy with the Franciscans, those whom he had indoctrinated were valuable allies to the Thomists, for their aid, coming from an independent organization, appeared to carry the weight of impartiality, and to be unassailable on the plea of partisan interest. In the year 1287 there was a general convocation of the order of St. Augustine at Florence, and at this assembly it was decreed that the doctors of the order should teach in conformity with the decisions arrived at by Colonna. To him is largely due the success of the Thomist scheme, of which he was an able, persistent, and vigorous exponent. Many tracts by him remain in print and MS. on these subjects. The fame he had thus acquired gained him the name of _doctor fundamentarius_ and _doctor fundatissimus_. His lectures at Paris attracted to him the attention of Philippe le Hardi, who thought him a fitting person to be entrusted with the education of his son, who was afterwards known to hiftory as Philippe le Bel. It was whilst occupied with this royal youth that the thought of composing or compiling--and the terms were in practice interchangeable in those days--occurred, and the result was the treatise "De regimine Principum libri iii." Philippe le Hardi, if not an educated man himself--and there are doubts as to whether he could write his own name--was laudably anxious that his heir should have the best instruction that could be obtained. It cannot well be claimed that the able, handsome, and unscrupulous Philippe was any great credit to his preceptor. The despotic and perfidious character of the king probably owed more to the influence of Nogaret and other defenders of the "right divine of kings to govern wrong," than to the soberer

precepts of Colonna. That Philippe had some tincture of literary feeling may be inferred from his employment of Jehan de Meung to translate the military treatise of Vegetius Flavius Renatus, a compilation of the second century of the present era, which was so popular in the middle ages that it was translated by Caxton into English. Still better evidence is the translation made for the king by the same poet of Boethius, whose stoical philosophy must have had a special appropriateness for those times of political storm and stress, when the fickleness of fortune must have been a matter of only too common repute. Guido Colonna was elected by his admiring brethren the general of the order in 1292, and took up his residence at Bourges, its metropolitan seat.

In this honourable office he continued his literary labours, and to this period are assigned the greater part of his numerous works. He died at Avignon in 1316. His body was translated to Paris, where his effigy in black marble, with his epitaph, remained until the French revolution.[19] It would be superfluous to enumerate his philosophical writings, for they would have no interest in the present day. His commentary on Aristotle "De Anima," it may be observed, was dedicated to Edward I. His name is now chiefly remembered because his work on the rule of princes formed the basis of the treatise in which Jacques de Cessoles moralized the fashionable game of the chess.

One interesting instance of the popularity of Colonna's work is the translation of it made into English verse by Thomas Occleve.[20] He wrote it in 1411 or 1412, and its object was to obtain the payment of an annuity from the exchequer which had been granted to him, but the payment of which was very irregular. The book was dedicated to the Prince of Wales. After mentioning his purpose to translate from the (apocryphal) letter of Aristotle to Alexander and "Gyles of Regement of Prynces," he proceeds:--

"There is a booke, Jacob de Cessoles, Of the ordre of Prechours, made, a worthy man,

That the Chesse moralisede clepede is, In whiche I purpose eke to labour ywis And here and there, as that my litelle witte Afforthe may, I thynke translate it.

And al be it that in that place square Of the lystes, I meane the eschekere, A man may learn to be wise and ware; I that have avanturede many a yere, My witte therein is but litelle the nere, Save that somewhat I know a Kynges draught, Of other draughts lernede have I naught."--(p. 77.)

"In those days," says Warton, "ecclesiastics and schoolmen presumed to dictate to kings and to give rules for administering states, drawn from the narrow circle of speculation, and conceived amid the pedantries of a cloister. It was probably recommended to Occleve's notice by having been translated into English by John Trevisa, a celebrated translator about the year 1390.[21]

Having thus traced the stream back to its fountain, we return to Caxton. The story of his life has been told by Mr. Blades, and only the most essential facts of his busy and useful career need be recapitulated here. He was born in the Weald of Kent, and it has been conjectured that the manor of Caustons, near Hadlow, was the original

home of the family. He was apprenticed to Alderman Robert Large, a mercer, who was afterwards Lord Mayor. The entry in the books of the Mercers' Company leads to the inference that Caxton was born about 1422. Probably on the death of Large, in 1441, Caxton went abroad, for he tells us that in 1471 he had been resident outside England for thirty years. About 1462 or 1463 he was Governor of the English Nation or Merchant Adventurers at Bruges. This was a position of great influence, and it is thought to have enabled the loyal mercer to give good service to Edward IV., who was an exile in 1470. Caxton's marriage was not much later than 1469, and it is conjectured that this led him to enter the service of the Duchess of Burgundy. She had literary tastes, and at her request he translated the "Recuyell des Histoires de Troyes" of Raoul Le Fevre. It was the demand for copies of this that exhausted Caxton's calligraphic patience, and led to his employment of a printer. The incident may have been casual, but it led to great results. It has been said that he learned the printers' art at Cologne, but Mr. Blades supposes that he entered its mystery at Bruges under Colard Mansion, with whom he appears to have had some partnership. Probably towards the end of 1476 Caxton returned to England. He had the favour of Edward IV. and of his sister, Duchess of Burgundy, and the friendship of the King's brother-in-law, Earl Rivers. Ninety-nine distinct productions issued from Caxton's press, he was printer, publisher, translator, and something of author as well. He set in good earnest about the work that is still going on--of making the best accessible literature widely and commonly known. This useful career was only ended by his death. The exact date is not known, but it was probably late in 1491. He left a married daughter. Caxton was a good business man. He was also a sincere lover of literature, and he was at his favourite work of translation only a few hours before the final summons came.

The quality of Caxton as a translator is not a matter of much doubt. It may be that the archaic forms give an additional flavour to his style, since they present few difficulties to the modern reader, and yet sound like echoes from the earlier periods of the language. Generally he is content to follow his author with almost plodding fidelity, but occasionally he makes additions which are eminently characteristic. His author having remarked:--"Il nest an Jour Duy nulle chose qui tant grieue Rome ne ytalie com~e fait le college Des notaires publiques Car ilz ne sont mie en accort ensemble"--Caxton improves the passage thus:--

"For ther is no thynge at this day that so moche greueth rome and Italye as doth the college of notaries and aduocates publicque. For they ben not of oon a corde/ Alas and in Engeland what hurte doon the aduocats. men of law. And attorneyes of court to the comyn peple of y'e royame as well in the spirituell lawe as in the temporall/ how torne they the lawe and statutes at their pleasir/ how ete they the peple/ how enpouere they the comynte/ I suppose that in alle Cristendom ar not so many pletars attorneys and men of the lawe as ben in englond onely/ for yf they were nombrid all that lange to the courtes of the channcery kinges benche. comyn place. cheker. ressayt and helle And the bagge berars of the same/ hit shold amounte to a grete multitude And how alle thyse lyue & of whome. yf hit shold be vttrid & told/ hit shold not be beleuyd. For they entende to theyr synguler wele and prouffyt and not to the comyn/"

Another addition is the brief passage in the first chapter of the fourth tract in which the "good old times" are lamented and contrasted with the decadence of the then present--now the four centuries past.

"Alas what haboundance was some tymes in the royames. And what prosþite/ In whiche was Iustice/ And euery man in his office contente/ how stood the cytees that tyme in worship and renome/ how was renomed the noble royame of Englond Alle the world dredde hit And spack worship of hit/ how hit now standeth and in what haboundance I reporte me to them that knowe hit yf ther ben theeuis wyth in the royame or on the see/ they knowe that laboure in the royame And sayle on the see I wote well the same is grete therof I pray god saue that noble royame And sende good true and politicque counceyllours to the gouernours of the same &c./"

The concluding paragraph of the book is also due to Caxton.

"And therfore my ryght redoubted lord I pray almighty god to saue the kyng our souerain lord & to gyue hym grace to yssue as a kynge & tabounde in all vertues/ & to be assisted with all other his lordes in such wyse y't his noble royame of Englond may prospere & habounde in vertues/ and y't synne may be eschewid iuftice kepte/ the royame defended good men rewarded malefactours punysshid & the ydle peple to be put to laboure that he wyth the nobles of the royame may regne gloriously In conquerynge his rightfull enheritaunce/ that verray peas and charite may endure in bothe his royames/ and that marchandise may haue his cours in suche wise that euery man eschewe synne/ and encrece in vertuous occupacions/ Praynge your good grace to resseyue this lityll and symple book made vnder the hope and shadowe of your noble protection by hym that is your most humble seruant/ in gree and thanke And I shall praye almighty god for your longe lyf & welfare/ whiche he preferue And sende yow thaccomplisshement of your hye noble. Ioyous and vertuous desirs Amen:/: Fynysshid the last day of marche the yer of our lord god. a. thousand foure honderd and lxxiiii"

This was struck out in the second edition, and the following briefer farewell substituted:--

"Thenne late euery man of what condycion he be that redyth or herith this litel book redde take therby ensaumple to amend hym.

Explicit per Caxton."

The alteration may perhaps be received as an evidence of our first English printer's fastidiousness as an author.

The bibliography of the editions, translations, and imitations of Cessoles is long and intricate. Details of MSS. have not been thought necessary. They have been amply described by Dr. Van der Linde. The treatise on the rule of princes of Colonna has been taken as furnishing the matter which Jacques de Cessoles afterwards re-arranged under the attractive form of a description of the game of chess. The editions of the Latin text are followed by particulars of the translations into French, English, Spanish, Italian, and other languages. Each title has appended the name of the bibliographer on whose authority it is given.

These are as follows:--

Hain.--Repertorium Bibliographicum ... opera Ludovici Hain. Stuttgart, 1826.

Ebert.--A General Bibliographical Dictionary, from the German of Frederic Adolphus Ebert. Oxford, 1837. 4 vols.

Græsse.--Trésor de Livres rares et précieux: par Jean George Théodore Græsse. Dresde, 1859-67. 6 vols.

Brunet.--Manuel du Libraire par Jacques-Charles Brunei. Paris, 1860.

Linde.--Geschichte und Literatur des Schachspiels von Antonius van der Linde. Berlin, 1874.

Das erste Jartausend der Schachlitteratur (850-1880) zusammengestellt von Dr. A.v.d. Linde. Berlin, 1881.

Dr. van der Linde's work is so complete that, for the most part, it has been thought sufficient to give his name, even when older authorities have been consulted.

COLONNA.

(See _antè_, p. xxviii.)

Ægidius Romanus de regimine principum L. III. s. l. 1473. Folio.

This Ebert and Græsse conjecture to have been printed by G. Zainer. They describe it as the first edition of a work frequently reprinted, and say that the last edition appeared at Lugd. Batav. in 1643, and had on the title-page the name of St. Thomas Aquinas as author. Hain mentions editions at Rome--Stephanum Plannck, 1482, folio; Venetiis, 1498.

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(_French translation._)

Miroir exemplaire, selon la compilation du Gilles de Rome du regime et gouvernement des rois etc. (by Henri de Gauchy or de Gauchay) et avec est compris le secret de Aristote appellé le secret des secrets, et les noms des rois de France com bien de temps ils out regné. Paris, 1517. Folio.

(_Græsse._)

This was printed by Guillaum Eustace: "On les v=et au palais au Tiers pillier Et a la me neufue nostre dame a lenseigne de Lagnus dei" (_Brunef_). Ebert mentions a French translation as having been printed at Paris, in 1497; but Brunet, in the article on Aristotle, gives a somewhat minute account of the book, to show that it is not that of Colonna.

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(_Spanish translation._)

Regimi[=e]to de los principes sechs y ordenado par Don fray Gil de Roma de la orden de s[=a]t Augustin. E fizolo trasladar de latín en rom[=a]ce do Bernardo obispo

de osma etc. Suilla--a espenses de Mæstre Conrado aleman. & Melchior gurrizo, mercadores de libros, fue impresso per Meynardo Ungut alememo: & Stanislas Polono compañeros. Acabaron se a veynte dias del mes de octubre Año del señor de Mill & quarto cientos & nouenta & quarto [1494] folio.

(_Hain, Brunet, Græffe_.)

Ebert notes that there was an edition under the name of Th. Aquino at Madrid, 1625, 4to.

(_Catalan translation_.)

Regiment des Princeps. Barcelona per Mestre Nicolau Spindaler emprentador. 1480. Folio.

(_Græffe_.)

Regiment del Princeps. Barcelona per Johan Luchner. 1498. Fol.

(_Brunei, Græffe_.)

(_Italian translation_.)

Ebert mentions an Italian version by Val. Averoni. Firenze, 1577, 8vo.

(_Græffe_.)

(_English translation_.)

De regimine Principum, a poem by Thomas Occleve, written in the reign of Henry IV. Edited for the first time by Thomas Wright, Esq., M.A., F.S.A., &c. Printed for the Roxburghe Club. London, J.B. Nichols. 1860. 4to.

(See _antè_, p. xxxii., for notice of another Early English version.)

CESSOLES.

(See _antè_, p. xxiv.)

Incipit solati[=u] ludi schacor. Scilicz regiminis ac morum nominu= et officium viror' nobili[=u] quor' si quis formas menti impresserit bellum ipsum et ludi virtutem cordi faciliter poterit optinere. (E)Go frater iacobus de thessolonia multor' fratru= &c. Ends: Explicit folaci[=u] ludi schacor'. Folio. 40 leaves.

There is neither date, place, nor printer's name given; but it is considered to have been the work of Nic. Ketelær and Ger. de Leempt, at Utrecht (Ultrajectus), about 1473.

(_Linde, Græsse_.)

Incipit libellus de ludo Scaccorum, et de dictis factisque nobilium virorum, philosophorum et antiquorum. Explicit tabula super ludum Scacchorum. Deo gratias. 4to. 29 leaves. Sign. A--H.

This is in black letter, and has neither date nor place.

(_Linde_.)

Incipit libelles de ludo Schaccorum.... Explicit doctrina vel morum informatio, accepta de modo et ordine Ludi Schaccorum. 4to.

(_Linde_.)

Incipit liber quem composuit frater. Jacobus' de cessolis ordinis fratr[=u] predicatorum qui intitulatur liber de moribus hominum et officiis nobilium super ludo scacorum. Impressum Mediolani ad impensas Paulini de suardis Anno a natali christiano. MCCCCLXXviiij. die xxiij. Mensis augusti. Folio. 24 leaves.

(_Linde, Græsse_.)

Jacobi de Cessolis Ord. Præd. Informatio morum, excerpta ex modo et ratione ludi Scacchorum; sive de moribus hominum officiisque nobilium et super eo commentarius. Mediolani. 1497. Folio.

(_Linde, Græsse_.)

Tractatus de Scachis mistice interpretatus de moribus per singulos homin[=u] status. 4to. Anno 1505.

On leaf 31b:--

"Ad lectorum Qum paucis rigidos possis compescere mons Accipe: quod offert hiberna ex arce Johannes Scacherii munus: sapiens Philometer et illud Tradidit. ut regis babilonis crimina mergat Hunc tibi si soties capiet te lectio frequens Noveris et iuste que ius moderamina vite."

No place or date, but supposed to be printed at Vienna, by Joh. Winterburg.

(_Linde, Græsse_.)

Jacobus de Cessoles. Von Prof. Dr. Ernft Köpke, Mittheilungen, aus den Handschriften der Ritter. Akademie zu Brandenburg. Brandenburg a.d. Havel, 1879, 4to.

(_Linde_, "Jartausend.")

(_French translation_.)

Les jeu des Echez moralisé, nouvellement imprimé à Paris (ends). Cy finist le livre des Echez et l'Ordre de Chevalerie, translaté de latin en françois, imprimé nouvellement à Paris; et fut achevé le vendredy, VI'e jour de septembre, l'an MVC et IIII, pour Anthoine Verart, libraire juré en l'université de Paris, demourant à Paris, à l'imaige Sainct Jehan l'evangeliste, devant la rue neufve Nostre Dame, &c. Folio, 102 leaves.

(_Linde._)

"On trouve an f. LX un autre traité de Morale et an f. lxxxij celui de _Melibee et de Prudence_. Il y a à la bibl. imp. un exempl. de cette éd. tiré sur vélin et orné de 4 Miniatures."

(_Græsse._)

Le Jeu de Echets moralisé ... Cy finist le liure des eschecz et lordre de cheualerie, translattée de latin en françoys imprimé à Paris: et fut acheué le xiiii iour de nouembre mil cinq cent et cinq. Par Michel le noir libraire ... demourant deuant Saint Denys de la chartre à limaige nostre dame. 90 leaves.

(_Linde._)

On trouve à la fin du _Livre de l'ordre de chevalerie_ le même Dialogue entre Melibée et Prudence sous le titre: _Ung petit traictie a lenseignement et au prouffit de tous princes barons & aultres que le vouldront entendre & garder lequel fut fonde & extrait d'une fiction trouvee en escript_. Ce qui a induit _Du Verdier_ (vol. i. p. 556) en erreur de croire que cette traduction, publiée en 1505, diffère de celle de 1504.

(_Græsse._)

{_Italian translation_.}

Libro di Giuocho di Scacchi intitulato de costumi degli huomin et degli officii de nobili. 4to.

"Ohne Angabe des Druckortes und des Jahres. Ausser dem Titelblattbildchen bringt das Buch dreizehn Abbildungen, welche die von Cessoles auf dem Schachbrett statuirten Würden und Gewerke darstellen."

(_Linde_)

Libro di givocho di scacchi intitulato de costumi degl huomini & degli offitii de nobili. (Fol. 2a:) In comincia un tractato gentile & utile della uirtu del giuocho degli scachi cioe intitulato de costumi deglhuomini & degli ufitii denobili: composto pel Reu[=e]redo Mæstro Jacopo dacciesole dellordine de fratri predicatori. Fol. 67b: Impresso in Fir[=e]ze per Mæstro Antonio Miscomini Anno M.CCCCLXXXXIII. Adi primo di Marzo 8vo.

(_Linde_.)

"Cette ed. bien incorrecte quant an texte (comme les reimpressions: f. l. 1534, in 8vo. [56 ff.] I 1. 206, Gallarini) est recherchée pour ses belles gravures en bois, don't une partie a été copiée par Dibdin, Aedes Althorp, vol. ii. p. 5-13. II y a une nouvelle édition: _Mil. tipogr. di Giulio Terrario_, 1829, gr. in 8°, avec des copies de ces mêmes figures et des corrections du texte d'après des de Florence. On a tiré de cette dernière édition 24 exempl. _in carte distinte_, 1 sur peau velin d'Augsbourg et 1 _in capretti di Roma_."

(_Græsse_.)

Opera nvova nella quale se insigna il vero regimento delli huomini & delle do[=n]e di qualunqu grado, stato, e condition esser si voglia:, Composta per lo Reuerendissimo Padre Frate Giacobo da Cesole del ordine di predicatori sopra il giuoco delli Scacchi, Intitulata Costvme delli hvomini, & vfficii delli nobeli, nuouamente Stampata. M.D. XXXIIII. Stampata in Vineggia per Fransesco di Alessandro Bin doni & Mapheo Pasini compagni: Nelli anni del Signore, 1534. del mese di Zenaro 8vo. 56 leaves.

(_Linde_.)

Volgarizzamento del libro de' costumi e degli officii de' nobili sopra il giuoco degli scacchi di frate Jacopo da Cessole tratto nuovamente da un codice Magliabechiano. Milano, 1829. Dalla tipografia del dottore Giulio Ferrario Contrado del Bocchetto al No. 2465 8vo. Pp. xx and 162, and 1 leaf.

(_Linde_.)

Catalan translation.

This does not appear to have been printed. There is a codex in the Vatican and another at Barcelona. They are described by Linde. See ante, p. xxviii.

Spanish translation.

Dechado de la vida humana. moralmento Sacado del juego del Axedrez. tradizado agora de nuevo per el licenciado Reyna Vezino della Villa de Aranda de duero. En este año M.D.XLIX. 4to. 56 leaves.

Printed at Valladolid by Francifque Fernandes de Cordoue.

(_Linde_.)

German translation.

Ich bruder Jacob von Caffalis prediger ordens, bin überwunder worden von der bruder gebet ... (Ends.) Hie endet sich das buch menschlicher sitten vnd d'ampt der edeln. Folio. 40 leaves.

Without place or year, but printed before the year 1480.

(_Linde_.)

I (Ch) bruder Jacob von Cassalis prediger ordens bin vberwunden worden vo(n) der brüder gebet wegen vn(d) der weltlichen studenten vn(d) andern edlen leut die mich haben horen predigen das spil das do heysset schachzabel. Das ich davon gemacht hab ditz buch. vn(d) hab das pracht zenutz menschlichs geschlechts. Vn(d) hab es geheissen das buch menschlicher sitten vnnd der ampt der edlen ... (Ends.) Hie endet sich das buch menschlicher sitten vnd der ampt der edeln I.4.7.7. Folio. 40 leaves.

This is believed to have been printed with the type of G. Zainer at Augftmrg.

(_Linde_)

(I)ch bruder Jacob vo(n) Cassalis prediger ordens bin vberwunden worden von der brüder gebet ... (Ends.) Hie endet sich das Buch menschlicher sitten vnd der ampt der edlen. Gedruckt zu Augsburg in der Kayserliche(n)stat anno dni MCCCC LXXX IIJ. am osterabe(n)t geent. Folio. 36 leaves.

(_Linde_.)

Dis buchlein weiset die aufzlegung des schachzabel spils, Vnd menschlicher fitten, Auch von den ampten der edeln. (Leaf Aiia)

(I)ch bruder Jacob vo(n) Cassalis prediger orde(n)s ... (Leaf 39b) Getruckt vnd volendet von henrico knoblochzern in der hochgelobten stat Strassburg vff Sant Egidius tag In dem LXXX iij Jor. &c. Folio. 39 leaves.

(_Linde_.)

Jacobus de Cessolis, de moribus hominum et officiis nobilium ac popularium; oder, Das Schachwerk des Cessolis, von den Sitten der Menschen und den Pflichten der Vornehmen und Niedern. Von Heydebrand v. d. Lafa. (Schachzeitung, 1870.)

(_Linde._)

(_German rhyming version of Conrad von Ammenhausen_.)

Ueber das Schachzabelbuch Konrads von Ammenhausen und die Zofinger Handsschrift desselben, von Wilhelm Wackernagel (Beitrage zur Geschichte und Literatur vorzuglich aus den Archiven und Bibliotheken des Kanton Aargau. Herausgegeben von Dr. Heinrich Kurz ... und Placid Weissenbach. Erster Band. Aarau 1846.)

Dr. van der Linde gives particulars of various MSS. of this rhyming version of Cessolis.

(_German rhyming version of Dr. Jacob Mennel_.)

Schachzabel. (Ends.) Getruckt vund vollendet in der loblichen statt Costentz vo Hanfen schäffeler. Vf zinftag vor sant Vits tag Anno M. cccc vn vii iar. 4to 13 leaves. Sig. a ii--c ii.

In the prologue Jacob Mennel, doctor, claims the paternity of this rhyming treatise, but he is supposed to have taken much of his material--ready made--from Ammenhausen.

Schachtzabel Spiel. D Esz Ritterlich[=e] kunst lich[=e] Schachtzabel Spiels vnderweygung, erclärung, vn(d) verstant, wo here das kommen, were das am ersten erfunden, vund ausz was vrsach es erdacht sey, Auch wie man das künstlich lernen ziehen vn(d) spielen solle, sampt etlich[=e] kunstlich[=e] geteylten spielen &c. [Illustration: hand] Zu dem Schachtzieher.

"Dein Augen scherpff, nicht uberseh Dem wyderteyl, sleiszlich nach speh, Wie fich gebürt, im Feld und Heer, Dein volck das schich an zu der weer, Vnd orden das recht an dem streyt, Ders überlicht, gern vnden leyt."

Getruckt zu Oppenheym. 4to.

This second edition was issued by Jacob Köbel, who printed about 1520.

(_Linde._)

Des Altenn Ritterlichenn spils des Schachzabels, grüntlich bedeutung vund klarer bericht, dasselbig künstlich zuziehenn vund spilen. Mit ein newenn zusatz ettlicher besonderen Meisterstück, nach der Current, welfchen art, vn(d) von Hutten, deszgleichen ettlichener besondern Regeln des Schachziehens, vormals nie auszgangen. Franckfurt, 1536. 4to.

(_Linde._)

Vnderweifzung, erklärung, vund auszlegung desz Ritterlichenn, kunstlichenn spielfz des Schachzabels, durch den Hochgelartenn Doctor Jacob Mennel... auff dem heiligen Reichsztag zu Kostentz, Anno &c. 1507 in Rheimen gedicht, vund desselbinn spiels Vrsprung vn(d) wesenn, Auch wie man das auff das aller kurtzest zu ziehenn vund spilen begreissen mag, offenbart. Frankfurt, 1536, 4to.

This is given on the authority of Massmann by Dr. van der Linde.

Das Schachzabelspiel. Des alten ritterlichen Spiels des Schachzabels' gründlich Bedeutung... Frankf. 1536. [Reprint.]

Dr. van der Linde does not speak well of this reprint which appeared in:--Schaltjahr, welches ist der teutsch Kalendar, durch J. Scheible. Dritter Band. Stuttgart, 1847.

(_German rhyming version of Heinrich von Beringen._)

There is a third rhyming version of the Chessbook by Heinrich von Beringer, of which a MS., dated 1438, is in the Stuttgart library. (_Linde._)

(_Low German rhyming translation by Stephan._)

Van dogheden vnde van guden zeden fecht dyt boek wol dat valen ouer left de wert ok des schackspeles klock. (Lubeck, about 1489.) Small 4to. or large 8vo.

"Hir gheyt vth ghemaket to dude Dat schackspil der eddelen lude Des bokes dichter het stephan."

(_Linde._)

(_Dutch Translation._)

(D)It is die tafel van desen boeck datmen hiet dat scæcspel (Fol. 2'a) (H)Ier beghint ee suuerlyc boec vanden tytuerdryf edelre heren ende vrouwen. als vande scæc spul. dær nochtant een ygherlyck mensche van wat stæt dat hi si. vele scoenre en(de) saliger leren wt neme(n) mach. næ welcken hi syn leuen sal regieren tot profyt ende salicheyt synre sielen (Fol. 67'b), ghebruyken Amen In iær ons heren dusent vierhondert ende neghentseuentich. opten anderden dach van october, soe is dit ghenoechlycke boeck voleynt en(de) Ghemæct ter goude in hollant. by my gherært leeu. Lof heb god Folio.

(_Linde._)

Tractat van den Tydverdryf der Edele Heeren ende Vrouwen, genoemt dat scækspel, verciert met veele schoone historien (Ends:) Int iær ons heren M.CCCC.LXXXIII. opten veertienden dach van februario: so is dat ghenoecklike bock volmæckt te Delff in hollant. 4to.

(_Linde._)

Hier beghint een suyuerlijck boeck vande(n) tytuerdrijf edelre heere(n) ende vrouwen, als vanden scæck spel, dær nochtans een ieghelijck me(n)sche va wat stæt dz by sy, vele scoonre en(de) saligher leerighe(n) wt nemen mach, næ welcken hy sijn

leuen sal regeren tot profijt ende salicheyt synre sielen. (Ends.) Gheprint tot Louen in de Borchstrate in den Lupært by my Anthonis Maria Bergaigne ghesworen boecprinter. Int iær ons Heren. M.CCCCC. ende LI. den VI. dach van Augustus. 8vo. 120 leaves.

(_Linde_.)

(_Scandinavian rhyming translation_.)

De ludo Scacchorum seu de moribus hominum et officiis nobilium ac popularium. Poema suecanum vetustum. e codice manuscripto biblioth. Reg. Universitatis Havn. nunc primum editum. quod consensu ampl. ord. phil. Lund. p.p. Ernestus Rietz et Augustus Ludovicus Sjöberg, scanus in Academia Carolina die vi Decembris MDCCCXLVIII. Lundæ, Typis Berlingianis. MDCCCXLVIII. 8vo.

Fourteen dissertations, of which there is a set in the Jena Library.

There is a MS. of this Scandinavian poetical version of Cessolis dated 1492, and another dated 1492 in the Kopenhagen University Library.

(_Linde_.)

(_English translation._)

The Game and Playe of the Chesse. folio. E. P.

The Game and Playe of the Chesse. Explicit per Caxton. folio.

The Game at Chesse, a metaphorical Discourse shewing the present Estate of this Kingdome. London. 1643, 4to.

This title is given by Lowndes, but examination only would show whether it is in any way an imitation of Caxton.

The Game of the Chesse by William Caxton. [Facsimile reprint of the second edition, with remarks by Vincent Figgins.] London: J. R. Smith, 1855. folio.

The Game of the Chesse by William Caxton. Reproduced in facsimile from a copy in the British Museum. With a few remarks on Caxton's Typographical Productions. By Vincent Figgins. London: John Russell Smith. 1860.

The Game of the Chesse by William Caxton. A facsimile reproduction of the first work printed in England, from the copy in the British Museum. London: Trübner and Co. 1862. fol.

Caxton and the Spelling Reform. [Signed] Isaac Pitman, Bath, 10th March, 1877. 4to. Pp. 4.

This contains an extract from the "Game of the Chess" in four columns:--i. Caxton's spelling. 2. The supposed pronunciation of the same represented by the Phonetic alphabet. 3. Modern spelling. 4. Phonetic spelling.

The Game of the Chesse: a moral treatise on the duties of life. The First Book Printed in England, by William Caxton in the year 1474. Reprinted in Phonetic spelling, with a preface and contents in Caxton's orthography, and a fac-simile page

of the original work. Second edition. London, F. Pitman. Bath, Isaac Pitman, James Davies. 1872 [1879].

The printing of this book began in 1872, when the title-page and earlier sheets were worked, but it was not finished until May, 1879. This is the second time that Mr. Pitman has printed the Chess-book in his reformed orthography. The first issue was in 1855. Although the title-page repeats the old belief that "The Game of Chess" was the first book printed in England, and gives the date of 1474, it is really a reprint of the second edition of Caxton.

(_Sloane's version_.)

The Buke of the Chesse. Auchinleck Press. 1818. 4to.

This is printed from a MS. which is believed to have been written about the beginning of the sixteenth century. The work is in verse, and ends: "Heir endis y'e buke of y'e Chess, Script per manu Jhois Sloane." Only forty copies were reprinted by Sir Alexander Boswell at the Auchinleck Press.

(_Linde. Lowndes_.)

The "Game and Play of the Chess" is an interesting specimen of mediæval English literature. It is so near our own time that the language prefents few difficulties, in spite of its many Gallicisms, and yet it is so remote as to seem like the echo of an unknown world. The distinctly dogmatic portions of the book are but few, and their paucity is indeed a matter of some surprise, since it is in effect a detailed treatise on practical ethics, and is, in part if not wholly, systematized from the discourses of one distinguished preacher, who had borrowed much of his matter from another eminent ecclesiastic. The author aims not at the enforcement of doctrine, but at the guidance of life, though he no doubt assumes that his hearers are all faithful and orthodox sons of the Church.[22]

The ideal of the commonwealth of the middle ages finds an interesting expression. The sharp lines of demarcation between class and class are stated with the frankness that comes of a belief that the then existing social fabric was the only one possible in the best of worlds. There is no doubt in the author's mind as to the rightful position of king and baron, of bishp and merchant. The "rights of man" had not been invented, apparently, and the maxim that the king reigns but does not govern, would have perplexed the souls of Cessoles and his translators. They had no more doubt as to the divine right of the monarch, than the Thibetan has of the divine right of the grand lama. The Buddhist thinks he has secured the continuous re-appearance of supernatural wisdom in human form, and the regular transmission of political ability in the same family was the ideal for which the devotees of mediæval despotism had to hope. Nothing could be further from the aspirations of our author than a race of mere palace kings seeking enjoyment only in self-indulgence. The king was to be the ruler and leader of his people. The relation and interdependence of the several classes is emphatically proclaimed, and the claims of duty are urged upon each.

The book enables us to gauge the literary culture of the thirteenth, fourteenth, and fifteenth centuries. Poor as it may now seem, it belonged, in those days, to the

"literature of power," and had great influence. The form is one which lent itself readily to poetic and historic illustration, and indeed demanded such treatment. The authors and translators were chiefly learned and distinguifhed ecclesiastics. Caxton, the representative of the new time when literature was to be the common heritage, was filled to overflowing with the best literature then accessible. A writer of the present century, probably borrowing his sentiment, has defined originality to be undetected imitation. Such refinements were unknown to Cessoles and his contemporaries. A writer took whatever suited his purpose from any and every source that was open to him. A quotation was always as good as an original sentiment, and sometimes much better. Why should a man take the trouble of laboriously inventing fresh phrases about usury or uncleanness when there were the very words of St. Augustine or St. Basil ready to hand? Why seek modern instances when the great storehouse of anecdotes of Valerius Maximus was ready to be rifled? Very frequently the author is given, mostly it may be imagined from a sense of the value of the authority of the names thus cited. Whatever the intention of the writer, the effect is to show us what were the authors known, studied, and quoted in the middle ages.

The authors named are:--Saint Ambrose (2 references), Anastasius (1), Avicenna (2), Saint Augustine (9), Saint Basil (1), Saint Bernard (2), Boethius (3), Cassiodorus (1), Cato (5), Cicero (6), Claudian (2), "Crete" (1), Diomedes (1), Florus (1), Galen (1), Helinand (4), Hippocrates (4), Homer (1), Saint Jerome (3), John the Monk (1), Josephus (4), Livy (2), Lucan (1), Macrobius (1), Martial (1), Ovid (6), Paulus Diaconus (1), Petrus Alphonsus (2), Plato (4), Quintilian (3), Sallust (1), Seneca (15), Sidrac (1), Solinus (1), Symmachus (1), Theophrastus (1), "Truphes of the Philosophers" (2), Turgeius Pompeius (1), Valerius Maximus (23), Valerian (7), Varro (1), Virgil (2), "Vitas Patrum" (2).

It will be seen that the great classical writers are but poorly represented, and the main dependence has been upon the later essayists, and chiefly upon Valerius Maximus, who has pointed many of the morals enforced in this book. It may, perhaps, be doubted if the writer had more to work from than Valerius, Seneca, and St. Augustine, with occasional quotations such as memory would supply from other sources. The verification of all these quotations would not repay the labour it would involve; but in most cases where the experiment has been tried, the result has been fairly creditable to the old author.

The biblical allusions may be taken as typical. There are references to the "bible," "holy scripture," "Ecclesiastes," and "Canticles." There also occur the names of Adam, Eve, Abel, Cain, Noah, Ham, Lot, David, Abner, Joab, Abishai, Solomon, Isaiah, Evilmerodach, Belshazzar, Darius, Cyrus, Tobias, John the Baptist, and Paul. The citations are not all literally exact. Solomon had not a very good opinion of his fellow-men; but the comprehensive estimate of the number of fools with which he is credited on p. 3 is not to be found in the writings canonically attributed to him. The quotation from the Canticles on p. 25 may be compared with the translation in the Wicliffite verfion made by Nicholas de Hereford, A. D. 1380. This passage is rendered: "His left hond is vndur myn heed; and his ri3t hond shal biclippe me" ("Song of Solomon," ii. 6). Clip is still current in Lancashire, in the sense of embrace.

The extract from St. Paul, with which the prologue to the second edition opens, is no doubt intended for the following passage: "All Scripture is given by inspiration of God, and is profitable for doctrine, for reproof, for correction, for instruction in righteousness" (2 Tim. iii. 16).

In the reference to the Athenians (p. 16), we seem to hear an echo of the words: "For all the Athenians and strangers that were there spent their time in nothing else, but either to tell or to hear some new thing " (Acts xvii. 21).

The most curious reference to a biblical personage is that relating to Evilmerodach (p. 10). Cessoles seems to have been the first to associate the name of the son of Nebuchadnezzar with the invention of the game of chess. The biblical references to Evilmerodach are few; they throw no light on the reason of his selection by the mediæval scribe for a bad pre-eminence of parricide. The epithet of _joli_ applied to the king has an odd effect, followed as it is by the narrative of his most unfilial conduct. Dr. Van der Linde shows how widely the legend spread. Lydgate evidently hesitates between the divided authority of Guido--that is, Colonna, the author of the Troy book--and Cessoles, whom he quotes through Jacobus de Vitriaco.[23]

Amongst the authors not identified are "Crete" (p. 133), and Diomedes (p. 10). The account of the origin of chess attributed to the last is amplified a little further on. The legend that Palamedes invented a game of this kind at the siege of Troy is emphatically rejected by our author, who pins his fame on Xerxes, a Greek philosopher! This became the received opinion, as may be gathered from the unhesitating language of Polydore Vergil in a passage which is thus rendered by John Langley:--"The chesse were invented the year of the world 3635, by a certain Wise man called Xerxes, to declare to a Tyrant, that Majesty or Authority without strength, assistance & help of his subjects, was casual feeble & subject to many calamities of fortune; his intent was to break the fierce cruelty of his heart, by fear of such dangers as might come to passe in the life of man." [24]

The curious treatise which contains the supposed conversations of King Bocchus and the philosopher Sidrac (p. 171) was a favourite science book of the middle ages. It is probably of oriental origin, but there are editions in Latin, French, German, Flemish, Dutch, Italian, and English. By way of question and answer very decided statements are made on a wide variety of topics of which the author was profoundly ignorant. The particular part referred to by Cessoles is chap, cclxxxi: "Pourquoy sacostent les hommes charnellement aux femmes grosses et les bestes ne le font pas?"[25] John the Monk (p. 70) is the noted canonist Giovanni Andrea, who died at the plague of Bologna in 1347. His learning gained him such titles as _rabbi doctorum_ and _normaque morum_. His commentaries on the decretals were frequently reprinted. He gave the name of "Novellæ" to this work after the name of his mother and daughter. His code of morality contained no prohibition of literary theft, for his additions to the "Speculum Juris" of Durand are said to have been taken bodily from Oddrale. In the same magnificent manner he appropriated the treatise "De Sponsalibus et Matrimonio" of Anguissola. His daughter Novella was a learned woman, and became the wife of Giovanni Calderino, a jurist of Bologna. Their son, Gaspard Calderino, wrote a commentary on the decretals. Father, daughter,

son-in-law, and grandson appear to have all been experts in the canon law.[26]

The reference to the "first book of the Truphes of the Philosophers by figure" does not convey a very definite idea as to the particular work intended. It must have been somewhat miscellaneous in character, for one extract describes the fountain of the syrens (p. 122), and the other is an anecdote, which though told here of Julius Cæsar (p. 71), is really the story of the soldier who had fought at Actium with Augustus Cæsar. It occurs also in the "Gesta Romanorum," where the emperor is named Agyos.

"Helmond" (p. 33, &c.) is intended for Helinand, who died some time after 1229. After a brilliant period at the court of Philip Augustus, where he is represented as reciting his heroic verses before the king and his surrounding, he became a monk of the Cistercian Abbey of Froidmont. One of his surviving poems deals with the melancholy subject of death. The "Flores Helinandi" are said to have been popular as well as his "Chronique." He is also the reputed author of some sermons, and of the life of St. Gereon, published by the Bollandists, and of other works still inedited. He is sometimes confounded with another French monk of the same name, who lived in the eleventh century, and was an inmate of the monastery at Persigne in Maine. This second Helinand was the author of commentaries or glosses on the Apocalypse and Exodus.[27] The first-named has been credited with the authorship of "Gesta Romanorum." The grounds for this are very slight. "On a longtemps ignoré le nom de l'auteur de cette compilation, mais un passage du 68e dialogue du livre intitulé 'Dialogus creaturarum' nous le révele par ces mots: _Elimandus in gestis romanorum_."[28] But, as Sir F. Madden and Mr. Herrtage have pointed out, the name of "Gesta Romanorum" was given to any book treating of Roman affairs. A French translation of Livy, by Robert Gaguin, has been catalogued as a version of the "Gesta." The reference cited by Brunet is to the Chroniques of Helinand.[29]

Many of the stories and anecdotes are the commonplaces of ancient history, such as the friendship of Damon and Pythias, the sword of Damocles, the chastity of Scipio, the magnanimity of Alexander, the fable of the Dog and the Shadow, &c. Others current in the middle ages had great popularity, and even in our own days occasionally renew their youth. The story of John of Ganazath (p. 48) is to be found in Occleve's translation of Colonna. Mr. Thomas Wright remarks: "This story, under different forms, was a very common one in the middle ages. One version will be found in my 'Latin Stories,' p. 28. It will hardly be necessary to remark that the story of King Lear and his daughters is another version."[30]

The story appears also in some modern compilations. In one instance it is given as the will of Jehan Connaxa, of Antwerp, about 1530.[31] The incident is given in the following form in the popular collection known as the "Percy Anecdotes":[32]--

"An eminent trader at Lyons, who had acquired an easy fortune, had two handsome daughters, between whom, on their marriage, he divided all his property, on condition that he should pass the summer with one and the winter with the other. Before the end of the first year, he found sufficient grounds to conclude that he was not a very acceptable guest to either; of this, however, he took no notice, but hired a handsome lodging, in which he resided a few weeks; he then applied to a friend, and

told him the truth of the matter, desiring the gift of two hundred livres, and the loan of fifty thousand, in ready money, for a few hours. His friend very readily complied with his request; and the next day the old gentleman made a very splendid entertainment, to which his daughters and their husbands were invited. Just as dinner was over, his friend came in a great hurry; told him of an unexpected demand upon him, and desired to know whether he could lend him fifty thousand livres. The old man told him, without any emotion, that twice as much was at his service, if he wanted it; and going into the next room, brought him the money. After this, he was not suffered to stay any longer in lodgings; his daughters were jealous if he stayed a day more in one house than the other; and after three or four years spent with them, he died; when, upon examining his cabinet, inftead of livres, there was found a note containing these words: 'He who has suffered by his virtues, has a right to avail himself of the vices of those by whom he has been injured; and a father ought never to be so fond of his children as to forget what is due to himself.'"

Amongst other versions of the story is a novelle by Giovanni Brevio, published as part of his "Rime" in 1545. Piron's comedy of "Les Fils Ingrats," also known as "L'Ecole des Pères," appeared in 1728. "The story," adds Dunlop, "is also told in the 'Pieuses Recreations d'Angelin Gazée,' and is told in the 'Colloquia Mensalia' of Luther, among other examples to deter fathers from dividing their property during life among their children--a practice to which they are in general little addicted."[33]

There is yet another verfion of the story in John of Bromyard's "Summa Predicantium." After describing the discovery of the club it says, "in quo Anglice scriptum erat"--

"Wyht fuyle a betel be he smetyn, That al the werld hyt mote wyten, That gyfht his sone al his thing, And goht hym self a beggyn."

Mr. Wright gives another version, and adds that he is inclined to think that the story and verses had some connection with "a superstition not yet forgotten, which is thus told by Aubrey in his 'Remains of Gentilism'" (Thorn's "Anecdotes and Traditions," p. 84)--"The Holy Mawle, which they fancy was hung behind the church door, which when the father was seaventie, the sonne might fetch to knock his father in the head, as effete and of no more use."[34]

Herodotus has attributed the same unfilial conduct to some Indian tribes.

The incident of St. Bernard playing at dice for a soul (p. 151), is in the "Gesta Romanorum." The anecdote how a son induced his father to become a monk (p. 81) which is quoted from the "Vitas Patrum" is also in the "Gesta Romanorum," and has so much of the Buddhist flavour as to give rise to the suspicion that it comes from an Oriental source.[35] The story of two merchants quoted from Petrus Alphonsus is also in the "Gesta Romanorum." It is the foundation of Lydgate's "Two Friends," and is beyond doubt an Eastern importation. In a MS. of the "Speculum Laicorum," described by Prof. Ingram, the writer has transformed one of the merchants into an Englishman.[36]

The story quoted from "Paul, the historiagraph of the Lombards" (p. 46), is also given in the "Gesta Romanorum." Mr. Herrtage says it is "evidently founded on the

classical legend of Tarpeia." The narrative in the chess-book is taken from Paulus Diaconus.[37]

The stratagem by which deposited money was recovered from a dishonest trustee (p. 114) is told by Petrus Alphonsus, and is also in the "Gesta Romanorum."

The story of the danger of drunkenness (p. 129) was a favourite with our forefathers. It is given by John of Bromyard, and is the subject of a fabliau which is given by Meon.[38]

The somewhat violent remedy recorded as having been adopted by Demosthenes (p. 103) will remind some readers of a passage in the life of St. Francis of Assisi. "He had given up," says Mrs. Oliphant, "without hesitation, as would appear, all the indefinite sweetness of youthful hopes. But, nevertheless, he was still young, still a man, with human instincts and wishes, the tenderest nature, and an imagination full of all the warmth and grace of his age and his country. It does not appear that he ever put into words the musings which caught him unawares--the relics of old dreams or soft recollections which now and then would steal into his heart. But one night suddenly he rose from the earthen floor which was his bed, and rushed out into the night in an access of rage and passion and despair. A certain brother who was praying in his cell, peering, wondering, through his little window, saw him heap together seven masses of snow in the clear moonlight. 'Here is thy wife,' he said to himself; 'these four are thy sons and daughters, the other two are thy servant and thy handmaid; and for all these thou art bound to provide. Make haste, then, and provide clothing for them, lest they perish with cold. But if the care of so many trouble thee, be thou careful to serve our Lord alone.' Bonaventura, who tells the story, goes on, with the true spirit of a monkish historian, to state how, 'the tempter being vanquished, departed, and the holy man returned victorious to his cell.' The piteous human yearning that is underneath this wild tale, the sudden access of self-pity and anger, mixed with a strange attempt, not less piteous than the longing, at self-consolation--all the struggle and conflict of emotion which stilled themselves, at least for a moment, by that sudden plunge into the snow, and wild, violent, bodily exertion, are either lost upon the teller of the tale, or perhaps he fears to do his master injustice by revealing any consciousness of the possibility of such thoughts. But it is a very remarkable peculiarity of Francis's history, that whereas every saint in the Calendar, from Antony downwards, is sometimes troubled with visions of voluptuous delight, only Francis, in his pure dreams, is tempted by the modest joys of wife and children--the most legitimate and tenderest love."[39]

The reader must not expect any historical exactitude or critical spirit from our author. For his purpose a narrative was just as useful whether true or false, but it probably never occurred to him to question the exact truth of any statement that he found written in a book. The murder of Seneca (p. 9) is certainly not the least of the many crimes which stain the memory of Nero, but the circumstances of his death are not exactly described by the mediæval scribe. Whether the philosopher and former tutor was implicated in the conspiracy of Piso may be doubted, but some ambiguous phrases he had used were reported to the Emþeror, whose messenger demanded an explanation of their meaning. The reply of Seneca was either unsatisfactory or the

tyrant had decided to be rid of his former guide. As in more recent times in Japan the condemned man was expected to be his own executioner, and Seneca opened his veins and allowed the life to ooze from them with a stoicism that was certainly heroic if not untainted by theatrical display. The character of Seneca will ever remain one of the puzzles of history, for the grave moralist was accessory to the murder of Agrippina, and not unsuspected of licentiousness, and of the accumulation of an enormous fortune of three hundred million sestertii by injustice and fraud. The statements of Dion Cassius as to the misdeeds of the philosopher must be weighed against the absence of any condemnation of his proceedings in the pages of Tacitus.

The Theodore Cerem named on p. 12, is Theodorus Cyrenaicus, who was probably a native of Cyrene, and a disciple of Aristippus. He was banished from the (supposed) place of his birth, and was shielded at Athens by Demetrius Phalerus, whose exile he is assumed to have shared. Whilst in the service of Egypt he was sent as an ambassador to Lysimachus, whom he offended by the directness and plainness of his speech. The offended monarch threatened him with crucifixion, and he replied in a phrase which became famous, "Threaten thus your courtiers, for it matters not to me whether I rot on the ground or in the air."[40] The king's threat was not executed, as Theodorus was afterwards at Corinth, and is believed to have died at Cyrene. That he was condemned to drink hemlock is a statement cited from Amphicrates by Diogenes Lærtius (_Aristippus_, xv.). The anecdote of his colloquy with Lysimachus would easily be perverted into a belief that he had been put to death for the freedom with which he exercised his biting wit.

The Democreon mentioned at pp. 12 and 16 is Democritus of Abdera, of whom the anecdote is told. He was a man whose knowledge and wisdom won even the respect of Timon, the universal scoffer. The tradition that he deprived himself of sight with a view to philosophic abstraction is mentioned by Cicero, Aulus Gellius, and others, but it is hardly necessary to account for a too uncommon calamity by a supposition so remarkable.

The transformations of some of the names are peculiar. At p. 12 we read of Defortes. The philosopher disguised under this strange name appears to be Socrates. The story is told in the Apology of Socrates attributed to Xenophon. The person to whom the saying was addressed was not Xanthippe, but was a disciple named Apollodorus, whose understanding was not equal to his admiration.

The statement that Didymus voluntarily blinded himself is made both by Jerome (_Ep_. 68) and in the Ecclesiastical History of Socrates (iv. 29). Didymus was born 309 or 314, and became blind at the age of four, as the result of disease. He learned the alphabet by wooden letters, and by application and force of character became learned in all the learning of his time. Is this a real anticipation of the use of raised letters for the blind? What would be the use of a knowledge of the alphabet so acquired in obtaining that skill in geometry, rhetoric, arithmetic, and music for which he was famous? He owed to Athanasius his position as head of the Catechetical School of Alexandria.

The readers of "Cymbeline" will remember the passage in the concluding scene:--

"The piece of tender air, thy virtuous daughter, Which we call _mollis ær_; and _mollis ær_ We term it _mulier_; which mulier, I divine, Is this most constant wife: who even now, Answering the letter of the oracle, Unknown to you unsought, were clipp'd about With this most tender air."

This quaint piece of etymology will be found at p. 123 of the present volume.

There is an interesting personal reference in the following passage which has not, it is believed, been pointed out:--

"And also hit is to be supposyd that suche as haue theyr goodes comune & not propre is most acceptable to god/ For ellys wold not thise religious men as monkes freris chanons obseruantes & all other auowe hem & kepe the wilfull pouerte that they ben professid too/ For in trouth I haue my self ben conuersant in a religious hous of white freris at gaunt Which haue all thynge in comyn amonge them/ and not one richer than an other/ in so moche that yf a man gaf to a frere .iii.d or iiii.d to praye for hym in his masse/ as sone as the masse is doon he deliuerith hit to his ouerest or procuratour in whyche hows ben many vertuous and deuoute freris And yf that lyf were not the beste and the most holiest/ holy church wold neuer suffre hit in religion."

This description by the busy merchant of the "best life" might serve to point anew the distinction between the real and the ideal, and perhaps not to the advantage of the latter.

Nothing has yet been said as to the place of this book in the history of chess, and, indeed, it must be confessed that it has very little practical bearing on the game. The learned dreams by which the chess of to-day was connected with the _latrunculi_ and with the amusement said to have been invented by Palamedes, have been dissipated by the cool air of modern criticism. The student of the history of chess may now follow its fortunes under the safe guidance of Dr. van der Linde, who rejects unhesitatingly the claim made for it, and admitted even by Forbes, of an antiquity of 5,000 years.[41] The game of chess, which, whilst remaining an amusement, has acquired the dignity of a science, is one that Europe owes to India, where it was probably invented not earlier than five centuries before Christ; the triumphant progress of Islam aided in the extension of this oriental pastime. It was known at the courts of Nicephorus at Conftantinople and his contemporary Haroun-al-Rashid at Bagdad. One would like to add that Charlemagne also was acquainted with it, but there is no good evidence for that legend. It was known in Spain in the tenth century, since the library of the learned caliph Hakam II. of Cordova contained some Arabic MSS. on the game. By the middle of the eleventh century it was common in the western world. In 1061 a Florentine bishop is said to have been ordered by Cardinal Damiani to expiate the offence of playing chess in public by three recitations of the Psalter, by washing the feet of twelve poor persons, and by giving them liberal alms. The gradual developments of the game in Europe are illustrated in detail by Dr. van der Linde. Chess in its prefent form is comparatively modern, and refults from the enlargement of the powers of the Queen (originally the Vizier or minister) and of the Bishop (formerly the Alfil or Elephant). The greater powers of these pieces came into

play between 1450 and 1500, but the period of transition was prolonged to a much later date in some cafes, and the Portuguese Damiano may be regarded as the founder of the modern school. The player of to-day on consulting the elementary directions given in this book (p. 159, _et seq_.), will see how greatly the present play exceeds in complexity and scientific interest the moves that excited the enthusiasm of Jacobus de Cessoles, and led him to the composition of the book of the chess which has had such long and widespread popularity.

Incidentally his book is a monument in the history of chess, but it was never intended to make its primary object that of teaching the game. The author's aim was almost exclusively ethical. It was to win men to a sober life and to the due performance of individual and social duties, that the preacher exhausted his stores of learning, and invoked alike the reproofs of the fathers of the Church, the history and legend of chroniclers, pagan and Christian, and the words of prophets and poets. As a memorial of the literature and learning of the middle ages, it must always possess a permanent value. From it we may learn, and always with interest, what was the literary taste and social ideal of the thirteenth, fourteenth, and fifteenth centuries. There is, doubtless, ample room for dissatisfaction with that ideal, but it is not without some bright aspects. Possibly there are modern realms that are not any happier now than they would be if governed in strict accordance with the rules laid down by the earnest author of the game and play of the chess.

* * * * *

It only remains for the editor to thank the friends who have interested themselves in his work. Mr. J.E. Bailey, F.S.A., has shown his usual scholarly courtesy and liberality in the communication of books and references. To Mr. R.C. Christie, the Chancellor of the Diocese of Manchester, a similar acknowledgment is due. Mr. C.W. Sutton, and Mr. W.R. Credland, of the Manchester Free Library, on this, as on many other occasions, have not only given the editor many facilities for his work, but some suggestions by which he trusts he has profited. The index is chiefly the work of the editor's eldest daughter.

[DEDICATION.]

[42] To the right noble/ right excellent & vertuous prince George duc of Clarence Erle of warwyck and of salifburye/ grete chamberlayn of Englond & leutenant of Irelond oldest broder of kynge Edward by the grace of god kynge of England and of france/ your most humble servant william Caxton amonge other of your seruantes sendes unto yow peas. helthe. Joye and victorye upon your Enemyes/ Right highe puyssant and redoubted prynce/. For as moche as I haue understand and knowe/ that y'e are enclined unto the comyn wele of the kynge our sayd saueryn lord. his nobles lordes and comyn peple of his noble royame of Englond/ and that y'e sawe gladly the Inhabitants of y'e same enformed in good. vertuous. prouffitable and honeste maners. In whiche your noble persone wyth guydyng of your hows haboundeth/ gyuyng light and ensample unto all other/ Therfore I haue put me in deuour to translate a lityll book late comen in to myn handes out of frensh in to englisshe/ In which I fynde

thauctorites. dictees. and stories of auncient Doctours philosophes poetes and of other wyse men whiche been recounted & applied unto the moralite of the publique wele as well of the nobles as of the comyn peple after the game and playe of the chesse/ whiche booke right puyssant and redoubtid lord I haue made in the name and under the shadewe of your noble protection/ not presumyng to correcte or enpoigne ony thynge ayenst your noblesse/. For god be thankyd your excellent renome shyneth as well in strange regions as with in the royame of england gloriously unto your honour and lande/ which god multeplye and encrece But to thentent that other of what estate or degre he or they stande in may see in this sayd lityll book/ yf they gouerned themself as they ought to doo/ wherfor my right dere redoubted lord I requyre & supplye your good grace not to desdaygne to resseyue this lityll sayd book in gree and thanke/ as well of me your humble and unknowen seruant as of a better and gretter man than I am/. For the right good wylle that I haue had to make this lityll werk in the best wyse I can/ ought to be reputed for the fayte and dede/ And for more clerely to procede in this sayd book I haue ordeyned that the chapitres ben sette in the begynnynge to thende that y'e may see more playnly the mater wherof the book treteth &c.

[PREFACE TO THE SECOND EDITION.]

The holy appostle and doctour of the peple saynt Poule sayth in his epystle. Alle that is wryten is wryten unto our doctryne and for our lernyng. Wherfore many noble clerkes haue endeuoyred them to wryte and compyle many notable werkys and historyes to the ende that it myght come to the knowlege and vnderstondyng of suche as ben ygnoraunt. Of which the nombre is infenyte/ And accordyng to the same saith Salamon. that the nombre of foles. is infenyte/ And emong alle other good werkys. It is a werke of ryght special recomendacion to enforme and to late vnderstonde wysedom and vertue vnto them that be not lernyd ne can not dyscerne wysedom fro folye. Th[=e]ne emonge whom there was an excellent doctour of dyuynyte in the royame of fraunce of the ordre of thospytal of Saynt Johns of Jherusalem which entended the fame and hath made a book of the chesse moralysed. which at suche tyme as J was resident in brudgys in the counte of Flaundres cam in to my handes/ which whan J had redde and ouerseen/ ne semed ful necessarye for to be had in englisshe/ And in eschewyng of ydlenes And to thende that s[=o]me which haue not seen it/ ne understonde frenssh ne latyn I delybered in my self to translate it in to our maternal tongue/ And whan I so had achyeued the sayd translacion/ I dyde doo sette in enprynte a certeyn nombre of theym/ Whiche anone were depesshed and folde. wherfore by cause thys sayd book is ful of holsom wysedom and requysyte unto every astate and degree/ J haue purposed to enprynte it/ shewyng therin the figures of suche persons as longen to the playe. Jn whom al astates and degrees ben comprysed/ besechyng al them that this litel werke shal see/ here/ or rede to have me for excused for the rude & symple makyng and reducyn in to our englisshe/ And where as is defaute to correcte and amende/ and in so doyng they shal deserve meryte and thanke/ and I shal pray for them/ that god of his grete mercy shal rewarde them in his everlastyng blisse in heven/ to the whiche he brynge us/ that wyth his precious blood redemed us Amen

[TABLE.]

This booke conteyneth .iiii. traytees/

The first traytee is of the Invencion of this playe of the chesse,/ and conteyneth .iii. chapitres

The first chapitre is under what kynge this play was founden

The .ii. chapitre/ who fonde this playe

The .iii. chapitre/ treteth of .iii. causes why hit was made and founden

The second traytee treteth of the chesse men/ and conteyneth .v. chapitres

The first chapitre treteth of the form of a kynge and of suche thinges as apperteyn to a kynge

The .ii. chapitre treteth of y'e quene & her forme & maners

The .iii. chapitre of the forme of the alphins and her offices and maners

The .iiii. chapitre is of the knyght and of his offices

The .v. is of the rooks and of their maners and offices

The thirde traytee is of the offices of the comyn peple And hath .viii. chapitres

The first chapitre is of the labourers & tilinge of the erthe

The .ii. of fmythis and other werkes in yron & metall

[43] The .iii. is of drapers and makers of cloth & notaries

The .iiii. is of marchantes and chaungers

[44] The .v. is of phisicyens and cirugiens and apotecaries

[45] The .vi. is of tauerners and hostelers

[46] The .vii. is of y'e gardes of the citees & tollers & cuftomers

[47] The .viii. is of ribauldes disepleyars and currours The .iiii. traytee is of the meuyng and yssue of them And hath .viii. chapitres

The first is of the eschequer

The seconde of the yssue and progression of the kynge

The thirde of the yssue of the quene

The fourth is of the yssue of the alphyns

The fifth is of the yssue of the knyghtes

The sixty chapitre of the yssue of the rooks

The seuenth is of the meuynge & yssue of the comyn peple

And the eyght and laste chapitre is of the epilegacion.

And of the recapitulacion of all these forsaid chapitres.

BOOK I.

[Illustration]

This first chapiter of the first tractate sheweth under what kynge the play of the chesse was founden and maad.:.

Amonge all the euyll condicions and signes that may be in a man the first and y'e grettest is whan he feereth not/ ne dredeth to displese and make wroth god by synne/ and the peple by lyuyng disordynatly/ whan he reccheth not/ ner taketh hede unto them that repreue hym and his vices/ but fleeth them/ In suche wyse as dide the emperour Nero/ whiche dide do slee his maister seneque For as moche as he might not suffre to be repreuid and taught of hym In lyke wyse was somtyme a kynge in babiloine that was named Evilmerodach a Jolye man with oute Justice and so cruell that he dyde do hewe his faders body in thre honderd pieces/ And gaf hit to ete and deuour to thre honderd birdes that men calle wultres And was of suche condicion as was Nero/ And right well resemblid and was lyke unto his fader Nabogodonosor/ whiche on a tyme wold do flee alle the sage and wyse men of babylonye/ For as moche as they coude not telle hym his dreme that he had dremed on a nyght and had forgoten hit lyke as it is wreton in the bible in the book of danyell/ Under this kynge than Evilmerodach was this game and playe of the chesse founden/ Trewe it is that some men wene/ that this playe was founden in the tyme of the bataylles & siege of troye But that is not soo For this playe cam to the playes of the caldees as dyomedes the greek sayth and reherceth That amonge the philosophrs was the most renomed playe amonge all other playes/ And after that/ cam this playe in the tyme of Alixandre the grete in to Egipte And so unto alle the parties toward the south/ And the cause wherfore thys playe was so renomed shall be sayd in the thirde chapitre.

[Illustration]

This second chapitre of the first tra3tate sheweth who fonde first the playe of the chesse.

Thys playe fonde a phylosopher of Thoryent whiche was named in Caldee Exerses or in greke philometor/ which is as moche to saye in english as he that loveth Justice and mesure/ And this philosopher was renomed gretly amonge the grekes and them of Athenes whiche were good clerkys and philosophers also renomed of theyr connynge. This philosopher was so Juste and trewe that he had leuyr dye/ than to lyue longe and be a fals flaterer wyth the sayd kynge. For whan he behelde the foull and synfull lyf of the kynge/ And that no man durst blame hym. For by his grete cruelte he putte them alle to deth that displesid hym/ he put hym self in paryll of deth/ And louyd and chees rather to dye than lenger to lyue: The euyll lyf and diffamed of a kynge is the lyf of a cruell beste/ And ought not longe to be susteyned/ For he destroyeth hym that displesith hym/ And therfore reherceth valerius/ that ther was a wise man named theodore cerem whom his kynge dyde do hange on the crosse for as moche as he repreuyd hym of his euyll & fowll lyf And all way as he was in the torment he said to

y'e kynge/ upon thy counceyllours & them that ben cladd in thy clothynge & robes were more reson that this torment shold come/ For as moche as they dar not saye to the The trouthe for to do Justice right wysly/ of my self I make no force whether I dye on the lande or on the water or otherwyse &c as who sayth he recched not to dye for Justice/ In lyke wyse as democreon the philosophre put out his owen eyen be cause he wold not see that no good myght come to the euyll and vicyous peple wyth out right And also defortes the philosophre as he went toward his deth/ his wyf that folowed after hym saide that he was dampned to deth wrongfully/ than he answerd and sayd to her/ holde thy peas and be styll/ hit is better and more merytorye to dye by a wronge and unrightfull Jugement/ than that I had deseruyd to dye.

[Illustration.]

The thirde chapitre of the first tractate treteth wherfore the playe was founden and maad.

The causes wherfore this playe was founden ben thre/ the first was for to correcte and repreue the kynge .For whan this kynge Evilmerodach sawe this playe And the barons knyghtes and gentillmen of his court playe wyth the philosopher/ he meruaylled gretly of the beaulte and nouelte of the playe/ And desired to playe agaynst y'e philosopher/ The philosopher answerd and sayd to hym that hit myght not be doon. But yf he first lerned the playe/ The kynge said hit was reson and that he wold put him to the payne to lerne hit Than the philosopher began to teche hym and to shewe hym the maner of the table of the chesse borde and the chesse meyne/ And also the maners and condicions of a kynge of the nobles and of the comun peple and of theyr offices and how they shold be touchid and drawen. And how he shold amende hymself & become vertuous And whan this kynge herde that he repreuyd hym/ He demanded hym upon payne of deth to tell hym wherfore he had founden and made this playe/ And he answerd my ryght dere lord and kynge/ the grettest and most thinge that I desire is that thou haue in thy self a gloryous and vertuous lyf And that may I not see/ but yf thou be endoctrined and well manerd and that had/ so mayst thou be belouyd of thy peple Thus than I desire y't thou haue other gouernement than thou hast had/ And that thou haue upon thy self first seygnorye and maistrye suche as thou hast upon other by force and not by right Certaynly hit is not ryght that a man be mayster ouer other and comandour/ whan he can not rewle ner may rewle himself and that his vertues domyne aboue his vices/. For seygnourye by force and wylle may not longe endure/ Than thus may thou see oon of the causes why and wherfore I haue founden and maad thys playe/ whyche is for to correcte and repent the of thy tyrannye and vicyous lyuynge/ .For alle kynges specyally ought to here her corrygeours or correctours and her corrections to hold and kepe in mynde/ In lyke wyse as Valerius reherceth that the kynge Alixandre had a noble and renomed knyght that sayd in repreuynge of Alixandre that he was to moche couetous and in especyall of the honours of the world/ And sayd to hym yf the goddes had maad thy body as greet as is thy herte Alle the world coude not holde the/. For thou holdest in thy right hand alle the Oryent/ And in thy lyfte hande the occident/ syn than hit is so/ or thou art a god or a man or nought/ yf thou be god doo than well and good to the peple as god doth/ And take not from them that they ought to haue and is theyres. yf thou be a

man/ thinke that thou shalt dye/ And than thou shalt doo noon euyll/ yf thou be nought forgete thy self/ ther is no thynge so stronge and ferme/ but that somtyme a feble thinge casteth doun and ouerthrowe hit How well that the lyon be the strengest beste/ yet somtyme a lityll birde eteth hym/ The seconde cause wherfore this playe was founden and maad/ was for to kepe hym from ydlenesse/ whereof senecque saith unto lucylle ydlenes wyth oute ony ocupacion is sepulture of a man lyuyng/ and varro saith in his sentences that in lyke wise as men goo not for to goo/ the same wyse the lyf is not gyuen for to lyue but for to doo well and good/ And therfore secondly the philosopher fonde this playe for to kepe the peple from ydlenes/. For there is moche peple. Whan so is that they be fortunat in worldly goodes that they drawe them to ease and ydlenes wherof cometh ofte tymes many euyllys and grete synnes And by this ydlenes the herte is quenchid wherof cometh desperacion/ The thirde cause is that euery man naturelly desireth to knowe and to here noueltees and tydynges. For this cause they of atthenes studyed as we rede/ and for as the corporall or bodyly fight enpessheth and letteth otherwhyle the knowleche of subtyll thinges/ therfore we rede that [48] democrion the phylosopher put oute his owen eyen/ for as moche as he myght haue the better entendement and understondynge/ Many haue ben made blynde that were grete clerkis in lyke wyse as was dydymus bisshop of Alixandrye/ that how well that he sawe not yet he was so grete a clerk/ that gregore nazan & saynt Ierome that were clerkes and maystres to other/ came for to be his scolers & lerned of hym And saynt Anthonie The grete heremyte cam for to see hym on a tyme/ and amonge all other thynges/ he demanded hym yf he were not gretly displesid that he was blynde and sawe not. And he answerd that he was gretly abasshid for that he supposid not that he was not displesid in that he had lost his sight/ And saynt Anthonye answerd to hym I meruayle moche that hit displesith the that thou hast lost that thynge whiche is comyn betwene the and bestes. And thou knowest well that thou hast not loste that thynge that is comyn bitwene the and the angellis And for thise causes forsayd the philosopher entended to put away alle pensisnes and thoughtes/ and to thinke only on this playe as shall be said & appere in this book after.

BOOK II.

[Illustration]

The seconde tractate/ the first chapiter treteth of the forme of a kynge of his maners and of his estate.

The kynge must be thus maad. For he must sitte in a chayer clothed in purpure/ crowned on his heed in his ryght hand a ceptre and in the lyfte hande an apple of gold/. For he is the most grettest and hyest in dignyte aboue alle other and most worthy. And that is signefyed by the corone/. For the glorye of the peple is the dignite of the kynge/ And aboue all other the kynge ought to be replenysshid with vertues and of grace/ and thys signefieth the purpure. For in lyke wyse as the robes of purpure maketh fayr & enbelysshith the body/ the same wise vertues maketh the sowle/ he ought alleway thenke on the gouernement of the Royame and who hath thadmynystracion of Justice/ And thys shuld be by hym self pryncipally. This

signefieth the appell of gold that he holdeth in his lyfte honde/ And for as moche as hit apperteyneth unto hym to punysshe the rebelles hath he y'e sceptre in his right hand And for as moche as mysericorde and trouthe conserue and kepe the kynge in his trone/ Therfore ought a kynge to be mercyfull and debonayr For whan a kynge or prynce desired or will be belouyd of his peple late hym be gouerned by debonarite And valerius saith that debonairte percyth the hertes of straungers and amolisshith and maketh softe the hertes of his enemyes/ wherof he reherceth that philostratus that was due of athenes had a doughter/ whom a man louyd so ardantly/ that on a tyme as he sawe her wyth her moder/ sodaynly he cam and kyssed her/ wherof the moder was so angry and soroufull that she wente and requyred of her lord the duc/ that his heed myght be smyten of/ The prynce answerd to her and sayde/ yf we shold slee them that loue us/ what shall we doo to our enemyes that hate us/ Certaynly this was thanswer of a noble & debonair prynce That suffred that villonye don to his doughter and to hymself yet more This prince had also a frende that was named Arispe that sayd on a tyme as moche villonye unto the prynce as ony man miht saye And that might not suffise hym/ but he scracchid hym in the visage/ The prynce suffryd hym paciently in suche wyse as thowh he had doon to hym no vilonye but curtoysye And whan his sones wold haue auengid this vilonye/ he comanded them that they shold not be so hardy so to do The next day folowyng arispe remembrid of the right grete vilonye that he had don to his frende and lord wythoute cause. He fyll in dispayr and wold haue slayn hym self/ whan the duc knewe and understode that/ he cam to hym and sayd ne doubte the nothynge And swore to hym by his fayth/ that also well he was and shold be his frende fro than forthon as euery he had ben to fore yf he wold And thus he respited hym of his deth by his debonairte. And in lyke wyse rede we of the kynge pirre to whom was reported that they of tarente had said grete vilonye of hym. For whiche cause he maad alle them to come to fore hym And demanded of them yf they had so sayd. Than oon of them answerd and sayd/ yf the wyn and the candellys had not fayllyd/ thys langage had ben but a Iape/ In regarde of that we had thought to haue doon/ Than the kynge began to lawhe/ for they had confessid that suche langage as was sayd and spoken was by dronkenship/ And for this cause of debonairte the peple of tarante toke for a custome that the dronken men shold be puuysshyd/ And the sobre men preyfed. The kynge than thus ought to loue humylyte and hate falsite after the holy scripture that speketh of euery man generally/ For the kynge in his royame representeth god/ And god is verite/ And therfore hym ought to saye no thynge but yf hit were veritable and stable. Valerius reherceth that Alixandre wyth alle his ooste rood for to destroye a cyte whyche was named lapsare/ whan than a phylosophre whiche had to name Anaximenes which had ben to fore maistre & gouernour of Alixandre herd and understood of his comyng Cam agayn Alixandre for to desire and requyre of hym. And whan he sawe Alixandre he supposid to haue axid his requefte/ Alixandre brake his demande to fore and swore to hym to fore he axid ony thynge by his goddes. That suche thynge as he axid or requyryd of hym/ he wold in no wyse doon/ Than the philosopher requyred hym to destroye the cyte/ whan Alixandre understood his desire/ and the oth that he had maad/ he suffrid the cyte to stande and not to be destroyed For he had leuer doo his wyll than to be periured and forsworn and doo agaynst his oth/ Quyntilian saith that no grete man ne lord shold not swere/ but where as is grete nede/ And that the

symple parole or worde of a prynce ought to be more stable than the oth of a marcha[=u]t/ Alas how kepe the prynces their promisses in thise dayes/ not only her promises but their othes her fealis and wrytynges & signes of their propre handes/ alle faylleth god amende hit &c. A kynge also ought to hate alle cruelte/ For we rede that neuer yet dyed ony pietous persone of euyll deth ne cruell persone of good deth Therfore recounteth valerius that ther was a man named theryle a werke-man in metall/ that made a boole of coppre and a lityll wyket on the side/ wherby men myght put in them that shuld be brent therin/ And hit was maad in suche manere/ that they that shold be put and enclosid therin shold crye nothinge lyke to the wys of a man but of an oxe. And this made he be cause men shold haue the lasse pite of them. Whan he had made this hole of copper/ he presented hit unto a kynge which was callyd philarde that was so cruell a tyrant that he delited in no thinge but in cruelte And he told hym the condicion of the bole/ Whan philarde herde and understode this/ he alowed and preysed moche the werke/ And after sayde to hym/ thou that art more cruell than I am/ thou shalt assaye & prove first thy þsente and yeft/ And so made hym to goo in to the boole and dye an euyll deth/ Therfore faith Ouide ther is no thinge more raisonable than that a man dye of suche deth as he purchaseth unto other Also the kynge ought souerainly kepe Iustice/ who maketh or kepeth a royame with oute Iustice/ of verray force ther muste be grete robberye and thefte Therfor reherceth saint Augustyn in a book which is intituled the cyte of god/ that there was a theef of the see named diomedes that was a grete rouar and dide so moche harme that the complaintes cam to fore Alixander whiche dide hym to be taken & brought to fore hym/ and he demanded hym wherfore he was so noyous & cruell in the see And he answerd to hym agayn/ for as moche as thou art oon a lande in the world/ so am I another in y'e see/ but for as moche as the euyll y't I doo is in oon galeye or tweyne therfore I am callyd a theef/ but for as moche as thou dost in many shippis and with grete puyssance and power/ therfore art thou callyd an emperour/ but yf fortune were for me in suche wyse/ I wold be come a good man and better than I now am/ but thou/ the more richer and fortunat that thou art/ the more worse art thou/ Alixander sayd to hym I shall change thy fortune in suche wyse as thou ne saye/ that thou shalt doo hit by pouerte/ but for euyll and mauaiste/ And so he made hym ryche/ And thys was he that afterward was a good prynce and a good Iusticyer/ The kynge ought to be soueraynly chaste/ And this signefyeth a quene that is only on his ryght syde For hit is to be beleuyd and credible that whan the kynge is a good man Iuste. trewe & of good maners and condicions/ that his children shall folowe gladly the same/ for a good sone & a trewe ought not to forsake & goo fro y'e good condicions of his fader. For certes hit is agaynst god and nature in partie whan a man taketh other than his propre wyf/ And that see we by birdes/ of whom the male and female haue to gyder the charge in kepynge and norisshinge of their yonge fowlis and birdis/. For some maner of fowlis kepen them to theyr femeles only/ As hit appereth by storkes dowues and turtils/ But tho fowles that norisshith not their birdes haue many wyues and femelles/ As the cock that no thynge norisshith his chekens/ And therfore amonge alle the bestes that been/ Man and woman putteth most theyr entente and haue moste cure & charge in norisshyng of their children/ And therfore doon they agaynst nature in partye whan they leue theyr wyues for other women/ Of this chastete reherceth valerius an example and faith that ther was a man of rome which was named scipio affrican. For

as moche as he had conquerd affricque how well that he was of rome born. Whan he was of .xxxiiii. yer of age he conquerd cartage And toke moche peple in Ostage/ Amonge whom he was presented wyth a right fair mayde for his solas and playsir whiche was assurid and handfast unto a noble yong gentillman of cartage whiche was named Indiuicible/ And anon as this gentill scipio knewe that Notwythstandyng that he was a prynce noble & lusty Dyde do calle anon the parents and kynnesmen of them And deliuerid to them their doughter wyth oute doyng of ony vilonye to her/ and y'e rænsom or gold that they had ordeyned for their doughter/ gaf hit euery dele In dowaire to her And the yong man that was her husbonde sawe the fraunchise and gentilnes of hym/ torned hymself and the hertes of the noble peple unto the loue & alliance of the romayns/ And this suffiseth as towchynge the kynge &c.

[Illustration]

The seconde chapitre of the seconde book treteth of the forme and maners of the Quene.

Thus ought the Quene be maad/ she ought to be a fair lady sittynge in a chayer and crowned wyth a corone on her heed and cladd wyth a cloth of gold & a mantyll aboue furrid wyth ermynes And she shold sytte on the lyfte syde of the kinge for the amplections and enbrasynge of her husbonde/ lyke as it is sayd in scripture in the canticles/ her lyfte arme shall be under my heed And her ryght arme fhall[49] be clyppe and enbrace me/ In that she is sette on his lyfte syde is by grace gyuen to the kynge by nature and of ryght. For better is to haue a kynge by succession than by election/ For oftentymes the electours and chosers can not ne wyll not accorde/ And so is the election left/ And otherwhyle they chese not the beste and most able and conuenyent/ but hym that they best loue/ or is for them most proffytable/ But whan the kynge is by lignage and by trewe succession/ he is taught enseygned and nourrishid in his yongth in alle good & vertuous tacches and maners of hys fader/ And also the prynces of the royame dar not so hardily mene warre agaynst a kynge hauynge a sone for to regne after hym And so a Quene ought to be chaste. wyse. of honest peple/ well manerd and not curyous in nourisshynge of her children/ her wyfedom ought not only tappere in feet and werkes but also in spekynge that is to wete that she be secrete and telle not suche thynges as ought to be holden secrete/ Wherfore it is a comyn prouerbe that women can kepe no counceyle And accordyng therto Macrobe reherceth in the book of the dremes of Scipio. That ther was a child of rome that was named papirus that on a tyme went with his fader whiche was a senatour into the chambre where as they helde their counceyll And that tyme they spak of suche maters as was comanded and agreed shold be kept secrete upon payn of their heedes And so departed And whan he was comen home from the senatoire and fro the counceyll with his fader/ his moder demanded of hym what was the counceyll and wherof they spack and had taryed so longe there And the childe answerd to her and sayd he durst not telle ner saye hit for so moche as hit was defended upon payn of deth Than was the moder more desirous to knowe than she was to fore/ And began to flatere hym one tyme And afterward to menace hym that he shold saye and telle to her what hit was And whan the childe sawe that he might haue no reste of his moder in no wife He made her first promise that she shold kepe hit

secrete And to telle hit to none of the world/ And that doon/ he fayned a lesing or a lye and sayd to her/ that the senatours had in counceyll a grete question and difference whiche was this/ whether hit were better and more for the comyn wele of rome/ that a man shold have two wyuys/ or a wyf to haue two husbondes/ And whan she had understonde this/ he defended her that she shold telle hit to none other body And after this she wente to her gossyb and told to her this counceyll secretly/ And she told to an other/ And thus euery wyf tolde hit to other in secrete And thus hit happend anone after that alle the wyues of rome cam to the senatorye where the senatours were assemblid/ And cryed wyth an hye voys/ that they had leuer/ and also hit were better for the comyn wele that a wyf shold haue two husbondes than a man two wyues/ The senatours heerynge this. were gretly abasshid and wist not what to saye/ ner how to answere/ tyll at laste that the child papire reherced to them all the caas and feet how hit was happend And whan the senatours herd & understood the mater they were gretly abasshid/ and comended gretly y'e Ingenye & wytte of the child that so wisely contriued the lye rather than he wolde discouere their co[=u]ceyll/ And forthwith made hym a senatour/ and establisshid & ordeyned fro than forthon that no childe in ony wise sholl entre in to y'e counceyll hous amonge them with their faders exept papirus/ whome they wold y't he shold alwey be among them/ also a quene ought to be chaste/ for as she is aboue all other in astate & reuer[=e]ce so shold she be ensample to all other in her liuyng honestly/ wherof Ierome reherceth agaynst Ionynyan/ that ther was a gentilman of rome named duele/ and this man was he y't first fond y'e maner to fight on y'e water/ and had first victorie/ this duele had to his wif one of the best women & so chaste/ that euery woman might take ensample of her/ And at y't tyme the synne of the flesshe was the grettest synne y't ony might doo agaynst nature/ And this sayd good woman was named ylye/ and so it happend that this duele becam so olde that he stowped & quaqued for age And on a tyme one of his aduersaries repreuyd & reprochid hym sayng that he had a stynkynge breth/ And forthwyth he wente home to his wyf alle angry and abasshid and axid her why and wherfore she had not told his defaulte to hym that he myght haue founden remedye to haue ben purgid therof/ And she answerd that as for as moche as she supposid that euery man had that same faute as well as he. For she kyst neuer ony mannes mouth but her husbondes/ O moche was this woman to be preysed & haue a singuler lawde wenynge that this defaulte had not ben only in her husbonde/ wherfore she suffrid hit paciently in suche wyse that her husbonde knewe his defaute sonner by other than by her/ Also we rede that ther was a wedowe named anna/ whiche had a frende that counceyllid her to marye/ For she was yong fayr and riche/ to whom she answerd that she wold not so doo in no wise For yf I shold haue an husbond as I haue had and that he were as good as he was/ I shold euer ben a ferd to lose hym/ lyke as I lost that other/ And than shold I lyue all wey in fere & drede/ whiche I wyll not And yf hit happend me to haue awors/ what shold hyt prouffite me to haue an euyll husbond after a good. And so she concluded that she wold kepe her chastete. Saynt Austyn reherceth in the book de Civitate dei that in rome was a noble lady gentill of maners & of hyghe kynrede named lucrecia/ And had an husbonde named colatyne/ whiche desired on a tyme the Emþours sone named Torquyne thorguyllous or the proude and he was callid sixte for to come dyne and sporte hym in his castell or manoir And whan he was entrid amonge many noble ladyes he sawe lucrecia/ And whan this Emþours

sone had seen & aduertised her deportes. her contenance. her manere. and her beaulte/ he was all rauysshid and esprised wyth her loue forthwyth And espyed a tyme whan her husbonde collatyn wente unto the ooste of themþour/ and camm to the place where as lucresse was with her felawship/ whom she receyuyd honorably/ and whan tyme came to goo to bedde and slepe she made redy a bedde ryally for hym as hit apperteyned to the emperours sone And this sixtus espyed where lucresia laye. And whan he supposyd & knewe that euery body was in his first sleep/ he cam to the bedde of lucresse and that oon hand sette on her breste and in that other hand a naked swerd/ and sayd to her/ lucresse holde thy pees and crye not/ For I am sixte tarquynus sone/ for yf y'u speke ony worde thou shalt be dede/ And for fere she held her pees/ Than he began to praye and promise many thinges And after he menaced & thretenyd her that she shold enclyne to hym to do his wyll/ And whan he sawe he coude ner might haue his entent he sayd to her yf thou do not my wyll/ I shall slee the and o[=o]n of thy seruantes and shall leye hym all ded by thy syde And than I shall saye that I haue slayn yow for your rybawdrye/ And lucresse that than doubted more the shame of the world than the deth consentid to hym/ And anone after as the Emþours sone was departid/ the ladye sente l*res to her husbond her fader her brethern & to her frendes/ and to a man callid brute conceyllour & neuewe to tarquyn/ And sayd to them/ that yesterday sixte the emp*ours sone cam in to myn hous as an enemye in likenes of a frende/ & hath oppressid me And knowe y'u colatyn that he hath dishonorid thy bedde And how well y't he hath fowled & dishonored my body/ yet myn herte is not/ wherfore I beseche the of pardon foryfnes & absolucion of the trespas but not of the payne/ and he y't hath doon this synne to me hit shall ben to his meschance yf y'e doo your deuoir/ And be cause no woman take ensample of lucresse and lyue after the trespaas/ but that she in lyke wyse take ensample also of the payne And forthwyth wyth a swerd that she helde under her gowen or robe/ she roof her self unto the herte And deyde forthwyth to fore them/ And than brute the counseillr And her husbond collatyn and alle her other frendes swore by the blood of lucresse that they wold neuer reste vnto the tyme that they had put out of rome tarquyn and and alle his lignee/ And that neuer after none of them shold come to dignite/ And alle this was doon. For they bare the dede corps thurgh the cyte and meuyd the peple in suche wyse/ that tarquyn was put in exyle And fixte his sone was slayn/ A Quene ought to be well manerd & amonge alle she ought to be tumerous and shamefast/ For whan a woman hath loste shamefastnes/ she may ner can not well be chaast/ Wherfore saith symachus that they that ben not shamefast haue no conscience of luxurye/ And saynt Ambrose saith that oon of the best parements and maketh a woman most fayr in her persone/ is to be shamefast/ Senecque reherceth that ther was oon named Archezille whiche was so shamefast That she put in a pelow of fethers a certain some of money/ and put hit vnder y'e heed of a pour frende of heeris/ whiche dissimyled his pouerte and wold not ner durst not be a knowen of his pouerte For for shame she durst not gyue hit openly/ but had leuer that he shold fynde hit/ than that she had gyuen hit hym/ Wherfore otherwhile men shold gyue & helpe her frendes so secretly That they knowe not whens hit come/ For whan we kepe hit secret and make no boost therof/ our deedes and werkes shall plese god and them also/ A Quene ought to be chosen whan she shall be wedded of the most honest kynrede and peple/ For oftentymes the doughters folowen the tacches and maners of

them that they ben discended from/ Wherof Valerius maximus sayth that ther was one that wold marye/ whiche cam to a philosopher and axid counceyll what wif he might best take He answerd that he shold take her that thou knowe certaynly that her moder and her grauntdame haue ben chaast and well condicioned/ For suche moder/ suche doughter comunely/ Alfo a quene ought to teche her childern to ben contynent and kepe chastite entyerly/ as hit is wreton in ecclesiastes/ yf thou haue sones enseigne and teche them/ And yf thou haue doughters kepe well them in chastite/ For helemonde reherceth that euery kynge & prynce ought to be a clerke for to comande to other to studye and rede the lawe of our lord god/ And therfore wrote themperour to the kynge of france that he shold doo lerne hys children sones the seuen sciences lyberall/ And saide amonge other thynges that a kynge not lettryd resembleth an asse coroned/ Themperour Octauian maad his sones to be taught and lerne to swyme. to sprynge and lepe. to Iufte. to playe wyth the axe and swerde/ And alle maner thynge that apperteyneth to a knyght/ And his doughters he made hem to lerne. to sewe. to spynne. to laboure as well in wolle as in lynnen cloth/ And alle other werkis longynge to women And whan his frendes demanded wherfore he dyde so/ he answerd how well that he was lord & syre of alle the world/ yet wyste he not what shold befalle of his children and whether they shold falle or come to pouerte or noo/ and therfore yf they conne a good crafte they maye alleway lyue honestly/ The Quene ought to kepe her doughters in alle chastyte/ For we rede of many maydens that for theyr virginite haue ben made quenes/ For poule the historiagraph of the lombardes reherceth y't ther was a duchesse named remonde whiche had .iii. sones & two doughters And hit happend that the kynge of hongrye cantanus assaylled a castell where she behelde her enemyes And amonge all other she sawe the kynge that he was a well faryng and goodly man/ Anone she was esprised and taken wyth his loue/ And that so sore/ that forthwith she sent to hym that she wold deliuere ouer the castell to hym yf he wold take her to his wyf and wedde her And he agreed therto/ and sware that he wold haue her to his wyf on that condicion/ whan than the kynge was in the castell/ his peple toke men and women and alle that they fonde/ her sones fledde from her/ of whom one was named Ermoaldus and was yongest/ and after was duc of boneuentan/ And syn kynge of the lumbardis. And the two susters toke chikens And put hem vnder her armes next the flessh and bytwene her pappes/ that of the heete & chaffyng the flessh of the chikens stanke. And whan so was that they of hongrye wold haue enforcid & defowled hem anone they felte the stenche and fledde away and so lefte hem sayng/ fy how these lombardes stynke/ and so they kept their virginite/ wherfore that one of them afterward was Quene of france And that other Quene of Aleman/ And hit happend than that the kynge Catanus toke acordynge to his promyse the duchesse/ and laye with her one night for to saue his oth And on the morn he made her comune unto alle the hongres/ And the thirde day after he dyde doo put a staf of tre fro the nether part of her/ thurgh her body vnto her throte or mouthe/ for be cause of the lust of her flessh she betrayed her cyte and sayd suche husbond/ suche wyf &c And this sufficeth of the Quene.

The thirde chapitre of the seconde tractate treteth of the alphyns her offices and maners.

The Alphyns ought to be made and formed in manere of Iuges syttynge in a chayer wyth a book open to fore their eyen/ And that is be cause that some causes ben crymynell/ And some ben cyuyle as aboute possessyons and other temporell thynges and trespaces/ And therfore ought to be two Iuges in the royame/ one in the black for the first cause/ And that other in whyte as for the seconde/ Theyr office is for to counceyll the kynge/ And to make by his comandements good lawes And to enforme alle the royame in good and vertuous maners/ And to Iuge and gyue sentence well and truly after the caas is had/ And to counceyll well and Iustely alle them that are counceyll of hem/ wyth oute hauynge of ony eye opene to ony persone/ And to estudye diligently in suche wyse and to ordeygne alle that/ that ought to be kept be obseruyd be faste and stable/ So that they be not founde corrupt for yeft for favour ne for lignage ne for enuye variable And as touchynge the first poynt Seneque sayth in the book of benefetes that the poure Dyogenes was more stronge than Alixandre/ For Alixandre coude not gyue fo moche as Diogenes wold reffuse.

Marcus cursus a romayn of grete renome sayth thus. That whan he had besiegid & assayllyd them of amente And boneuentans whiche herde that he was poure/ they toke a grete masse and wegghe of gold and ended hit to hym prayng hym that he wold resseyue hyt and leue his assault and siege/ And whan they cam with the present to hym they fonde hym sittynge on the erthe and ete his mete oute of platers and disshes of tree and of wode and dyde than her message/ to whom he answerd and sayde that they shold goo hoome and saye to them that sente hem that marcus cursus loueth better to be lord and wynne richesses than richesses shold wynne hym/ For by bataylle he shall not be ouercome and vaynquysshid Nor be gold ne siluer he shal not be corrupt ne corompid Often tymes that thynge taketh an euyll ende that is vntrewe for gold and siluer/ And that a man is subgett vnto money may not be lord therof/ helimond reherceth that [50] demoncene demanded of aristodone how moche he had wonne for pletynge of a cause for his clyent/ And he answerd a marck of gold. [51] Demoscenes answerd to hym agayn that he had wonne as moche for to hold his pees and speke not Thus the tonges of aduocates and men of lawe ben þyllous and domegeable/yet they must be had yf thou wylt wynne thy cause for wyth money and yeft thou shall wynne And oftetymes they selle as welle theyr scilence/ as theyr vtterance/ Valerius reherceth that the senatours of rome toke counceyll to geder of two persones that one was poure/ And that other riche and couetous/ whiche of hem bothe were moft apte for to sende to gouerne and Iuge the contre of spayne/ and scipion of affricque sayd that none of them bothe were good ner prouffitable to be sente theder/ For that one hath no thynge And to that other may nothynge suffise And despised in his saynge alle pouerte and auerice in a Iuge/ For a couetous man hath nede of an halfpeny For he is seruant & bonde vnto money/ and not lord therof. But pouerte of herte & of wylle ought to be gretly alowed in a Iuge Therfore we rede that as longe as the romayns louyd pouerte they were lordes of all the world For many ther were that exposed alle their goodes for the comyn wele and for that was most prouffitable for the comynaulte that they were so poure that whan they were dede they were buryed & brought to erthe with the comyn good/ And theyr doughters were maryed by the comandement of the senatours/ But syn that they despised pouerte/ And begonne to gadre rychesses/ And haue maad grete bataylles/ they haue vsed

many synnes And so the comyn wele perysshid/ For there is no synne but that it regneth there/ Ther is none that is so [52] synfull as he that hath alle the world in despyte/ For he is in pees that dredeth no man/ And he is ryche that coueyteth no thynge/ Valere reherceth that he is not ryche that moche hath/ But he is ryche that hath lytyll and coueyteth no thynge/ Than thus late the Iuges take hede that they enclyne not for loue or for hate in ony Iugement/ For theophrast saith that alle loue is blynde ther loue is/ ther can not ryght Iugement by guyen/ For alle loue is blynde And therfore loue is none euyn Iuge For ofte tymes loue Iugeth a fowll & lothly woman to be fayr And so reherceth quynte curse in his first book that the grete Godaches sayth the same to Alixandre men may saye in this caas that nature is euyll For euery man is lasse auysed and worse in is owne feet and cause than in an other mans/ And therfore the Iuges ought to kepe hem well from yre in Iugement/ Tullius sayth that an angry & yrous þsone weneth that for to doo euyll/ is good counceyll/ and socrates saith y't .ii. thinges ben contraryous to co[=u]ceyll/ and they ben haftynes & wrath/ and Galeren sayth in Alexandrye/ yf yre or wrath ouercome the whan thou sholdest gyue Iugement/ weye all thinge in y'e balance so that thy Iugement be not enclyned by loue ne by yeste/ ne fauour of persone torne not thy corage. Helemond reherceth that Cambyses kynge of perse whiche was a rightwys kynge had an vnrightwys Iuge/ whiche for enuye and euyll will had dampned a man wrongfully and agaynst right/ wherfore he dide hym to be flain all quyk/ and made the chayer or fiege of Iugement to be couerid wyth his skyn/ And made his sone Iuge and to sitte in the chayer on the skyn of his fader/ to thende that the sone shold Iuge rightwysly/ And abhorre the Iugement & payne of his fader/ Iuges ought to punysshe the defaultes egally And fullfille the lawe that they ordeyne/ Caton sayth accomplisshe and do the lawe in suche wyse as thou hast ordeyned and gyuen. Valerius reherceth that calengius a consull had a sone whiche was taken in adwultrye. And therfore after the lawe at that tyme he was dampned to lose bothe his eyen The fader wold y't the lawe shold be acc[=o]plisshid in his sone with out fauour/ but all the cyte was meuyd herewyth And wold not suffre hit/ but in the ende his fader was vaynquysshid by theyr prayers/ And ordeyned that his sone shold lese oon eye whiche was put oute And he hymself lost an other eye/ And thus was the lawe obserued and kept/ And the prayer of the peple was accomplisshid We rede y't ther was a counceyllour of rome that had gyen counceill to make a statute/ that who some euer that entrid in to the senatoire/ & a swerd gyrt aboute hym shold be ded/ Than hit happend on a tyme that he cam from with out and entrid in to the senatoyre & his swerd gyrt aboute hym/ wherof he took n[=o]n heede/ and [=o]n of the senatours told hym of hit/ and whan he knewe hit & remembrid the statute/ he drewe oute his swerd & slewe hymself to fore them/ rather to dye than to breke the lawe/ for whos deth all the senatours made grete sorowe/ but alas we fynde not many in thise dayes that soo doo/ but they doo lyke as anastasius saith that the lawes of some ben lyke vnto the nettis of spyncoppis that take no grete bestes & fowles but lete goo & flee thurgh. But they take flyes & gnattes & suche smale thynges/ In lyke wise the lawes now a dayes ben not executed but vpon the poure peple/ the grete and riche breke hit & goo thurgh with all And for this cause sourden bataylles & discordes/ and make y'e grete & riche men to take by force and strengthe lordshippis & seignouries vpon the smale & poure peple/ And this doon they specially that ben gentill of lignage & poure of goodes And causeth them to robbe and reue

And yet constrayned them by force to serue them And this is no meruayll/ for they that drede not to angre god/ ner to breke the lawe and to false hit/ Falle often tymes by force in moche cursednes and wikkidnes/ but whan the grete peple doo acordinge to the lawe/ and punysh the tr[=a]nsgressours sharply The comyn peple abstayne and withdrawe hem fro dooyng of euyll/ and chastiseth hem self by theyr example/ And the Iuges ought to entende for to studie/ for y't yf smythes the carp[=e]ntiers y'e vignours and other craftymen saye that it is most necessarye to studye for the comyn prouffit And gloryfye them in their connyng and saye that they ben prouffitable Than shold the Iuges studie and contemplaire moche more than they in that/ that shold be for the comyn wele/ wherfore sayth seneke beleue me that they seme that they do no thynge they doo more than they that laboure For they doo spirytuell and also corporall werkis/ and therfore amonge Artificers ther is no plesant reste/ But that reson of the Iuges hath maad and ordeyned hit/ And therfore angelius in libro actiui atticatorum de socrate sayth That socrates was on a tyme so pensyf that in an hole naturell daye/ He helde one estate that he ne meuyd mouth ne eye ne foote ne hand but was as he had ben ded rauyshyd. And whan one demanded hym wherfore he was fo pensyf/ he answerd in alle worldly thynges and labours of the fame And helde hym bourgoys and cytezeyn of the world And valerius reherceth that carnardes a knyght was so age wye and laborous in pensifnes of the comyn wele/ that whan he was sette at table for to ete/ he forgate to put his hande vnto the mete to fede hymself. And therfore his wys y't was named mellye whom he had taken more to haue her companye & felawship than for ony other thynge/ Fedde hym to thende that he shold not dye for honger in his pensifnes/ Dydymus sayd to Alix-andrie we ben not deynseyns in the world but stra[=u]gers/ ner we ben not born in the world for to dwell and abyde allway therein/ but for to goo and passe thurgh hit/ we haue doon noon euy dede/ but that it is worthy to be punysshid and we to suffre payne therfore And than we may goon with opon face and good conscience And so may we goo lightly and appertly the way that we hope and purpose to goo This suffiseth as for the Alphyns.

[Illustration]

The fourth chapitre of the seconde book treteth of the ordre of cheualerye and knyghthode and of her offices and maners.

The knyght ought to be made alle armed upon an hors in suche wyse that he haue an helme on his heed and a spere in his ryght hande/ and coueryd wyth his sheld/ a swerde and a mace on his lyft syde/ Cladd wyth an hawberk and plates to fore his breste/ legge harnoys on his legges/ Spores on his heelis on his handes his gauntelettes/ his hors well broken and taught and apte to bataylle and couerid with his armes/ whan the knyghtes ben maad they ben bayned or bathed/ that is the signe that they shold lede a newe lyf and newe maners/ also they wake alle the nyght in prayers and orysons vnto god that he wylle gyue hem grace that they may gete that thynge that they may not gete by nature/ The kynge or prynce gyrdeth a boute them a swerde in signe/ that they shold abyde and kepe hym of whom they take theyr dispenses and dignyte. Also a knyght ought to be wise, liberall, trewe, stronge and full of mercy and pite and kepar of the peple and of the lawe/ And ryght as cheualrye

passeth other in vertu in dignite in honour and in reu[=e]rece/ right so ought he to surmounte alle other in vertu/ For honour is no thing ellis but to do reuer[=e]ce to an other þsone for y'e good & vertuo'9 disposicion y't is in hym/ A noble knyght ought to be wyse and preuyd to fore he be made knyght/ hit behoued hym that he had longe tyme vsid the warre and armes/ that he may be expert and wyse for to gouerne the other For syn that a knyght is capitayn of a batayll The lyf of them that shall be vnder hym lyeth in his hand And therfore behoueth hym to be wyse and well aduysed/ for some tyme arte craft and engyue is more worth than strengthe or hardynes of a man that is not proued in Armes/ For otherwhyle hit happeth that whan the prynce of the batayll affieth and trusteth in his hardynes and strength And wole not vse wysedom and engyne for to renne vpon his enemyes/ he is vaynquysshid and his peple slayn/ Therfore saith the philosopher that no man shold chese yong peple to be captayns & gouernours For as moche as ther is no certainte in her wysedom. Alexandra of macedone vaynquysshid and conquerid Egypte Iude Caldee Affricque/ and Affirye vnto the marches of bragmans more by the counceyll of olde men than by the strength of the yong men/ we rede in the historye of rome y't ther was a knyght whiche had to name malechete that was so wyse and trewe that whan the Emþour Theodosius was dede/ he made mortall warre ayenst his broder germain whiche was named Gildo or Guye For as moche as this said guye wold be lorde of affricque with oute leue and wyll of the senatours. And this sayd guye had slayn the two sones of his broder malechete/ And dide moche torment vnto the cristen peple And afore that he shold come in to the felde ayenst his broder Emyon/ he wente in to an yle of capayre And ladde with hym alle the cristen men that had ben sente theder in Exyle And made hem alle to praye wyth hym by the space of thre dayes & thre nyghtis/ For he had grete truste in the prayers of good folk/ & specially that noman myght counceyll ne helpe but god/ and .iii. dayes to fore he shold fight saynt Ambrofe whiche was ded a lityl to fore apperid to hym/ and shewde hym by reuelacion the tyme & our that he shold haue victorie/ and for as moche as he had ben .iii. dayes and .iii nyghtes in his prayers & that he was assewrid for to haue victorie/ He faught with .v. thousand men ayenst his broder y't had in his companye .xxiiii. thousand men And by goddes helpe he had victorie And whan the barbaryns y't were comen to helpe guion fawe y'e disconfiture they fledde away/ and guion fledd also in to affricque by shiipp/ and whan he was ther arryued he was sone after stranglid/ These .ii. knyghtes of whom I speke were two bredern germayns/ whiche were sent to affricque for to defende the comyn weele/ In likewise Iudas machabe'9 Ionathas & symon his bredern put hem self in the mercy and garde of our lord god And agayn the enemyes of the lawe of god with lityll peple in regard of the multitude that were agayn them/ and had also victorye/ The knights ought to ben trewe to theyr princes/ for he that is not trewe leseth y'e name of a knight Vnto a prince trouth is the grettest precious stone whan it is medlid with Iuftice/ Paule the historiagraph of the lombardes reherceth that ther was a knight named enulphus and was of the cyte of papye that was so trewe to his kynge named patharich/ that he put hym in parill of deth for hym/ For hit happend that Grymald Due of [53] buuentayns of whom we haue touched to fore in the chapitre of the Quene/ Dyde do flee Godebert whiche was kynge of the lombardes by the hande of Goribert duc of Tauryn/ whiche was discended of the crowne of lombardis And this grimald was maad kynge of lombardis in his place/ and after this

put & bannysshid out of the contrey this patharych whiche was broder vnto the kynge Godebert/ that for fere and drede fledd in to hongrye/ And than this knyght Enulphus dide so moche that he gate the peas agayn of his lord patharich agaynft the kynge grymalde/ and that he had licence to come out of hongrye where he was all wey in paryll. and so he cam and cryed hym mercy And the kynge grymalde gaf hym leue to dwelle and to lyue honestly in his contree/ allway forseen that he toke not vpon hym and named hymself kynge/ how well he was kynge by right This doon a litill while after/ the kynge that beleuyd euyll tonges/ thought in hymself how he myght brynge this patharich vnto the deth And alle this knewe well the knyght enulphus/ whiche cam the same nyght with his squyer for to visite his lord And made his squyer to vnclothe hym & to lye in the bedde of his lord And made his lord to ryse and clothe hym wyth the clothis of his squyer/ And in this wyse brought hym oute/ brawlynge and betynge hym as his seruant by them that were assigned to kepe the hows of patharik y't he shold not escape Whiche supposid that hit had ben his squyer that he entretid so outragiously/ & so he brought hym to his hous whiche Ioyned with the walles of the toun/ And at mydnyght whan alle men were asleepe/ he lete a doun his maistre by a corde/ whiche toke an hors oute of the pasture And fled vnto the cyte of Aast and ther cam to the kynge of fraunce/ And whan hit cam vnto the morn. Hit was founden that Arnolphus and his squyer had deceyvyd the kynge and the wacchemen/ whom the kyng comanded shold be brought to fore hym And demanded of them the maner how he was escaped And they told hym the trouthe/ Than the kynge demanded his counceyll of what deth they had deseruyd to dye that had so doon and wrought agayn the wylle of hym/ Some sayde that they shold ben honged/ and some sayd they shold ben slayn And other sayd that they shold be beheedid. Than sayd the kynge by that lord that made me/ they ben not worthy to dye/ but for to haue moche worship and honour/ For they haue ben trewe to theyr lord/ wherfore the kynge gaf hem a grete lawde and honour for their feet And after hit happend that the propre squyer and seruant of godeberd slewe the traytre Goribalde that by trayson had slayn his lord at a feste of seynt Iohn in his Cyte of Tauryn wherof he was lord and duc/ Thus ought the knyghtes to love to gyder/ And eche to put his lyf in aventure for other/ For so ben they the strenger And the more doubted/ Lyke as were the noble knyghtes Ioab and Abysay that fought agaynst the syryens and Amonytes/ And were so trewe that oon to that other that they vaynquysshid theyr enemies And were so Ioyned to gyder that yf the siryens were strenger than that one of them/ that other helpe hym/ we rede that damon and phisias were so ryght parfyt frendes to gyder that whan Dionisius whiche was kynge of cecylle had Iuged one to deth for his trespaas in the cyte of syracusane whom he wold haue executed/ he desired grace and leue to goo in to hys contre for to dispose and ordonne his testament/ And his felawe pleggid hym and was sewrte for hym vpon his heed that he shold come agayn. Wherof they that sawe & herd this/ helde hym for a fool and blamed hym/ And he said all way that he repentid hym nothynge at all/ For he knewe well the trouth of his felawe And whan the day cam and the oure that execusion shold be doon/ his felawe cam and presented hymself to fore the Iuge/ And dischargid his felawe that was plegge for hym/ wherof the kynge was gretly abasshid And for the grete trouthe that was founden in hym He pardonyd hym and prayd hem bothe that they wold resseyue hym as their grete frende and felawe/ Lo here the vertues of loue that a man ought nought to doubte the

deth for his frende/ Lo what it is to doo for a frende/ And to lede a lyf debonayr And to be wyth out cruelte/ to loue and not to hate/ whiche causeth to doo good ayenst euyll And to torne payne into benefete and to quenche cruelte Anthonyus sayth that Julius Cesar/ lefte not lightly frenshippe and Amytye/ But whan he had hit he reteyned hit faste and maynteyned hit alleway/ Scipion of Affricque sayth that ther is no thynge so stronge/ as for to mayntene loue vnto the deth The loue of concupiscence and of lecherye is sone dissoluyd and broken/ But the verray true loue of the comyn wele and prouffit now a dayes is selde founden/ where shall thou fynde a man in thyse dayes that wyll expose hymself for the worshippe and honour of his frende/ or for the comyn wele/ selde or neuer shall he be founden/ Also the knyghtes shold be large & liberall For whan a knyght hath regarde vnto his singuler prouffit by his couetyse/ he dispoylleth his peple For whan the souldyours see that they putte hem in paryll. And theyr mayster wyll not paye hem theyr wages liberally/ but entendeth to his owne propre gayn and proussryt/ than whan the Enemyes come they torne sone her backes and flee oftentymes/ And thus hit happeth by hym that entendeth more to gete money than victorye that his auaryce is ofte tymes cause of his confusion Than late euery knyght take heede to be liberall in suche wyse that he wene not ne suppose that his scarcete be to hym a grete wynnynge or gayn/ And for thys cause he be the lasse louyd of his peple/ And that his aduersarye wythdrawe to hym them by large gyuynge/ For oftetyme bataylle is auaunced more for getynge of siluer. Than by the force and strengthe of men/ For men see alle daye that suche thynges as may not be achieuyd by force of nature/ ben goten and achieuyd by force of money/ And for so moche hit behoueth to see well to that whan the tyme of the bataylle cometh/ that he borowe not ne make no tayllage/ For noman may be ryche that leuyth his owne/ hopyng to gete and take of other/ Than all waye all her gayn and wynnynge ought to be comyn amonge them exept theyr Armes. For in lyke wyse as the victorie is comune/ so shold the dispoyll and botye be comune vnto them And therfore Dauid that gentyll knyght in the fyrst book of kynges in the last chapitre made a lawe/ that he that abode behynde by maladye or sekenes in the tentes shold haue as moche parte of the butyn as he that had be in the bataylle/ And for the loue of thys lawe he was made afterward kynge of Israell/ Alexander of Macedone cam on a tyme lyke a symple knyght vnto the court of Porus kynge of Inde for to espye thestate of the kynge and of the knyghtes of the court/ And the kynge resseyuyd hym ryght worshipfully/ And demanded of hym many thynges of Alexander and of his constance and strengthe/ nothynge wenynge that he had ben Alexander But antygone one of his knyghtis and after he had hym to dyner And whan they had feruyd Alexander in vayssell of gold and siluer with dyuerce metes &c. After that he had eten suche as plesid hym he voyded the mete and toke the vayssell and helde hit to hymself and put hit in his bosom or sleuys/ wherof he was accusid vnto the kynge After dyner than the kynge callid hym and demanded hym wherfore he had taken his vayssell And he answerd/ Syre kynge my lord I pray the to vnderstande and take heede thy self and also thy knyghtes/ I haue herd moche of thy grete hyenes And y't thou art more myghty and puyssant in cheualrye & in dispensis than is Alexander/ and therfore I am come to the a pour knyght whiche am named Antygone for to serue the/ Than hit is the custome in the Courte of Alexandre/ that what thynge a knyght is seruyd wyth all is alle his/ mete and vayssell and cuppe And therfore I had supposid that this custome had ben kept in thy court for thou art richer

than he/ whan the knyghtes herd this/ an[=o]n they lefte porus/ and wente for to serue alixandre/ and thus he drewe to hym y'e hertes of them by yeftes/ whiche afterward slewe Porus that was kynge of Inde/ And they made Alexandra kynge therof Therfore remembre knyght alleway that wyth a closid and shette purse shalt thou neuer haue victorye. Ouyde sayth that he that taketh yeftes/ he is glad therwyth/ For they wynne wyth yeftes the hertes of the goddes and of men For yf Iupiter were angrid/ wyth yestes he wold be plesid/ The knyghtes ought to be stronge not only of body but also in corage. Ther ben many stronge and grete of body/ that ben faynt and feble in the herte/ he is stronge that may not be vaynquysshid and ouercomen/ how well that he suffryth moche otherwhile/ And so we beleue that they that be not ouer grete ne ouer lityll ben most corageous & beste in batayll. We rede that cadrus duc of athenes shold haue a batayll agayn them of polipe/ And he was warned and had a reuelacion of the goddes/ that they shold haue the victorie of whom the prynce shold be slayn in the batayll/ And the prince whiche was of a grete corage and trewe herte Toke other armes of a poure man/ And put hymself in the fronte of the batayll to thende that he might be slain And so he was/ for the right trewe prince had leuer dye Than his peple shold be ouercomen/ And so they had the victorye/ Certes hyt was a noble and fayr thynge to expose hym self to the deth for to deffende his contrey. But no man wold doo so/ but yf he hopyd to haue a better thynge therfore/ Therfore the lawe sayth that they lyue in her sowles gloriously that ben slain in the warre for the comyn wele A knyght ought also to be mercifull and pyetous For ther is nothynge y't maketh a knyght so renomed as is whan he sauyth the lyf of them that he may slee/ For to shede and spylle blood is the condicion of a wylde beste and not the condicion of a good knyght Therfore we rede that scylla that was Duc of the Romayns wyth oute had many fayr victoyres agaynst the Romayns wyth Inne that were contrayre to hym/ In so moche that in the batayll of puylle he slewe .xviii. thousand men/ And in champanye .lxx. thousand. And after in the cyte he slewe thre thousand men vnarmed And whan one of his knyghtes that was named Quyntus catulus sawe this cruelte sayd to hym/ Sesse now and suffre them to lyue and be mercyfull to them wyth whom we haue ben victorious And wyth whom we ought to lyue/ For hit is the most hyest and fayr vengeance that a man may doo/ as to spare them & gyue hem her lyf whome he may slee Therfore Joab ordeyned whan absalom was slayn/ he sowned a trompette/ that his peple shold no more renne & slee theyr aduersaryes. For ther were slayn aboute .xx. thousand of them/ and in lyke wyse dide he whan he faught ayenst Abner And Abner was vaynquysshid and fledde. For where that he wente in the chaas he comanded to spare the peple The knyghtes ought to kepe the peple/ For whan the peple ben in theyr tentes or castellis/ the knyghtes ought to kepe the wacche/ For this cause the romayns callyd them legyons And they were made of dyuerce prouynces and of dyuerce nacyons to thentente to kepe the peple/ And the peple shold entende to theyre werke/ For no crafty man may bothe entende to his craft & to fighte/ how may a crafty man entende to hys werke sewrely in tyme of warre but yf he be kept And right in suche wyse as the knyghtes shold kepe y'e peple in tyme of peas in lyke wise the peple ought to pourveye for theyr dispensis/ how shold a plowman be sewre in the felde/ but yf the knyghtes made dayly wacche to kepe hem/ For lyke as the glorye of a kynge is vpon his knyghtis/ so hit is necessarye to the knyghtes that the marchantis craftymen and comyn peple be defended and kepte/ therfore late the

knyghtes kepe the peple in suche wyse that they maye enioye pees and gete and gadre the costis and expensis of them bothe/ we rede that Athis sayd to dauid whiche was a knyght/ I make the my kepar and defendar alleway. Thus shold the knightes haue grete zele that the lawe be kept/ For the mageste ryall ought not only to be garnysshid wyth armes but also wyth good lawes/ And therfore shold they laboure that they shold be well kept Turgeus pompeyus reherceth of a noble knyght named Ligurgyus that had made auncyent lawes the whiche the peple wold not kepe ne obserue/ For they semed hard for them to kepe And wold constrayne hym to rapele & sette hem a part whan the noble knight sawe that He dyde the peple to vnderstande that he had not made them/ but a god that was named Apollo delphynus. had made them/ And had comanded hym that he shold do the peple kepe them/ Thise wordes auayled not/ they wold in no wyse kepe them/ And than he sayd to them that hit were good that er the said lawes shold be broken that he had gyuen to them that he shold goo and speke wyth the god Appollo/ For to gete of hym a dispensacion to breke hem/ And that the peple shold kepe & obserue them tyll that he retorned agayn/ The peple acorded therto & swore that they shold kepe them to the tyme he retorned Than the knighte wente in to grece in exyle & dwellid ther alle his lyf/ And whan he shold dye he comanded that his body shold be cast in the see/ For as moche as yf his body shold be born theder/ the people shold wene to be quyt of theyr oth/ And shold kepe no lenger his lawes that were so good & resonable/ & so the knight had leuer to forsake his owne centre & to dye so than to repele his lawes And his lawes were suche/ The first lawe was that y'e peple shold obeye & serue the princes/ And the princes shold kepe the peple & do Iustice on the malefactours The second lawe that they shold be all sobre/ For he wiste well that the labour of cheualrye is most stronge whan they lyue sobrely/ The thirde was y't noman shold bye ony thynge for money but they shold change ware for ware & one marchandyse for an other/ The fourthe was that men shold sette no more by money ner kepe hit more than they wold donge or fylthe/ The fyfthe he ordeyned for the comyn wele alle thynge by ordre/ that the prynces myght meue and make bataylle by her power, to the maistres counceillours he comysid the Iugementis. And the Annuell rentes/ to the senatours the kepynge of the lawe/ And to the comyn peple he gaf power to chese suche Iuges as they wold haue/ The sixte he ordeyned that all thinge shold be departid egally & all thinge shold be comyn And none richer than other in patry-monye/ The seuenth that euery man shold ete lyke well in comen openly/ that riches shold not be cause of luxurye whan they ete secretly/ The eygthe that the yonge peple shold not haue but o[=n] gowne or garment in the yere/ The nynth that men shold sette poure children to laboure in the felde/ to thende that they shold not enploye theyr yongthe in playes and in folye/ but in labour/ The tenthe that the maydens shold be maryed wythoute dowayre/ In suche wyfe that no man shold take a wyf for moneye/ The xi. that men shold rather take a wyf for her good maners and vertues than for her richesses/ The twelfthe that men shold worshippe the olde and auncyent men for theyr age and more for theyr wysedom than for her riches this knyght made none of thyse lawes/ but he first kepte hem.

[Illustration]

The fyfthe chapitre of the second book of the forme and maners of the rooks.

The rooks whiche ben vicaires and legats of the kynge ought to be made lyke a knyght vpon an hors and a mantell and hood furryd with meneuyer holdynge a staf in his hande/ & for as moche as a kyng may not be in alle places of his royame/ Therfore the auctorite of hym is gyuen to the rooks/ whiche represent the kynge/ And for as moche as a royame is grete and large/ and that rebellion or nouelletes might sourdre and aryse in oon partye or other/ therfore ther ben two rooks one on the right side and that other on the lifte side They ought to haue in hem. pyte. Iuftice. humylite. wilfull pouerte. and liberalite/ Fyrst Iustice for hit is most fayr of the vertues/ For it happeth oftetyme that the ministris by theyr pryde and orgueyll subuerte Iuftice and do no ryght/ Wherfore the kynges otherwhyle lose theyr royames with out theyr culpe or gylte/ For an vntrewe Iuge or officyer maketh hys lord to be named vnIufte and euyll And contrarye wyse a trewe mynestre of the lawe and ryghtwys/ causeth the kynge to be reputed Iuste and trewe/ The Romayns therfore made good lawes/ And wolde that/ that they sholde be Iufte and trewe/ And they that establisshid them for to gouerne the peple/ wold in no wyse breke them/ but kepe them for to dye for them/ For the auncyent and wyse men sayd comynly that it was not good to make and ordeygne that lawe that is not Iuste Wherof Valerius reherceth that ther was a man that was named Themistides whiche cam to the counceyllours of athenes and sayd that he knewe a counceyll whiche was ryght prouffytable for them/ But he wolde telle hyt but to But to one of them whom that they wold/ And they asligned to hym a wyse man named Aristides/ And whan he had vnderstand hym he cam agayn to the other of the counceyll And sayd that the counceyll of Themystides was well prouffitable/ but hit was not Iuste/ how be hit y'e may reuolue hit in your mynde/ And the counceyll that he sayd was this/ that ther were comen two grete shippis fro lacedome and were arryued in theyr londe. And that hit were good to take them/ And whan the counceyll herde hym that sayde/ that hit was not Iuste ner right/ they lefte hem alle in pees And wold not haue adoo with alle/ The vicarye or Iuge of the kynge ought to be so Iuste/ that he shold employe alle his entente to saue the comyn wele And yf hit were nede to put his lyf and/ lose hit therfore/ we haue an ensample of marcus regulus wherof Tullius reherceth in the book of offices And saynt Augustyn also de ciuitate dei/ how he faught agayn them of cartage by see in shippis and was vaynquysshid and taken/ Than hit happend that they of cartage sente hymm in her message to rome for to haue theyr prisoners there/ for them y'e were taken/ and so to cha[=u]ge one for an other And made hym swere and promyse to come agayn/ And so he cam to rome And made proposicion tofore the senate And demanded them of cartage of the senatours to be cha[=u]ged as afore is sayd And than the senatours demanded hym what counceyll he gaf Certayn sayd he I co[=u]ceyll yow that y'e do hit not in no wise For as moche as the peple of rome that they of cartage holde in prison of youris ben olde men and brusid in the warre as I am my self/ But they that y'e holde in prison of their peple is alle the flour of alle their folke/ whiche counceyll they toke/ And than his frendes wolde haue holde hym and counceyllyd hym to abide there and not retorne agayn prysoner in to cartage/ but he wold neuer doo so ner abide/ but wold goo agayn and kepe his oth How well that he knewe that he went toward his deth For he had leuyr dye than to breke his oth Valeri9 reherceth in the sixth book of one Emelye duc of the romayns/ that in the tyme whan he had assieged the phalistes/ The scole maystre of the children deceyuyd the children of the gentilmen that he drewe hym a

lityll and a lytyll vnto the tentys of the romayns by fayr speche. And sayd to the duc Emelie/ that by the moyan of the children that he had brought to hym/ he shold haue the cyte/ For theyr faders were lordes and gouernours. Whan Emelie had herde hym he sayd thus to hym Thou that art euyll and cruell And thou that woldest gyue a gyfte of grete felonnye and of mauuastye/ thou shalt ner hast not founden here Duc ne peple that resembleth the/ we haue also well lawes to kepe in batayll & warre As in our contres & other places/ and we wole obserue and kepe them vnto euery man as they ought to be kept And we ben armed agaynst our enemyes y't wole defende them And not ayenst them y't can not saue their lyf whan their contre is taken/ as thise lityll children/ Thou hast vaynquysshid them as moche as is in the by thy newe deceyuable falsenes and by subtilnes and not by armes/ but I that am a romayn shall vainquysshe them by craft and strengthe of armes/ And anon he comanded to take the said scole maister/ And to bynde his handes behynde hym as a traytour and lede hem to the parentis of the children And whan the faders & parentis sawe the grete courtosie that he had don to them They opend the yates and yelded them vnto hym/ we rede that hanyball had taken a prince of rome whiche vpon his oth and promyse suffrid hym to gon home/ and to sende hym his raunson/ or he shold come agayn within a certain tyme And whan he was at home in his place/ he sayde that he had deceyuyd hym by a false oth And whan the senatours knewe therof/ they constrayned hym to retorne agayn vnto hanyball/ Amos florus tellyth that the phisicien of kynge pirrus cam on a nyght to fabrice his aduersarye And promyfid hym yf he wold gyue hym for his laboure that he wold enpoysone pirrus his maister/ whan fabricius vnderstode this He dyde to take hym and bynde hym hande & foote/ and sente hym to his maistre and dyde do saye to hym word for worde lyke as the physicien had sayd and promysid hym to doo/ And whan pirrus vnderstode this he was gretly ameruaylled of the loyalte and trouth of fabrice his enemye/ and sayd certaynly that the sonne myghte lighther and sonner be enpesshid of his cours/ than fabrice shold be letted to holde loyalte and trouthe/ yf they than that were not cristen were so Iuste and trewe and louyd their contrey and their good renomee/ what shold we now doon than that ben cristen and that cure lawe is sette alle vpon loue and charyte/ But now a dayes ther is nothynge ellys in the world but barate Treson deceyte falsenes and trecherye Men kepe not theyr couenantes promyses. othes. writynges. ne trouthe/ The subgettis rebelle agayn theyr lorde/ ther is now no lawe kepte. nor fidelite/ ne oth holden/ the peple murmure and ryse agayn theyr lord and wole not be subget/ they ought to be pietous in herte/ whiche is auaillable to all thinge ther is pite in effecte by compassion/ and in worde by remission and pardon/ by almesse/ for to enclyne hymself to the poure For pite is nothynge ellis but a right grete will of a debonaire herte for to helpe alle men/ Valerius reherceth that ther was a Iuge named sangis whiche dampned a woman that had deseruyd the deth for to haue her heed smyten of or ellis that she shold dye in prison/ The Geayler that had pite on the woman put not her anone to deth but put her in the pryson/ And this woman had a doughter whiche cam for to se and conforte her moder But allway er she entryd into the pryson the Iayler serchid her that se shold bere no mete ne drynke to her moder/ but that she shold dye for honger/ Than hit happend after this that he meruaylled moche why this woman deyd not/ And began to espye the cause why she lyuyd so longe/ And fonde at laste how her doughter gaf souke to her moder/ And fedde her with her melke. whan

the Iayler aawe this meruaill/ he wente & told the Iuge/ And whan the Iuge sawe this grete pite of the doughter to the moder he pardoned her and made her to be delyuerid oute of her pryson what is that/ that pite ne amolisshith/ moche peple wene that it is agaynst nature and wondre that the doughter shold gyue the moder to souke/ hit were agayn nature but the children shold be kynde to fader and moder/ Seneca sayth that the kynge of bees hath no prykke to stynge with as other bees haue. And that nature hath take hit away from hym be cause he shold haue none armes to assaylle them And this is an example vnto prynces that they shold be of the fame condicion/ Valerius reherceth in his .v. book of marchus martellus that whan he had taken the cyte of siracusane. And was sette in the hyest place of the cyte/ he behelde the grete destruction of the peple and of the cyte/ he wepte and sayde/ thou oughtest to be sorofull/ for so moche as thou woldest haue no pite of thy self/ But enioye the for thou art fallen in the hande of a right debonaire prynce. Also he recounteth whan pompeye had conqueryd the kynge of Germanye that often tymes had foughten ayenst the romayns And that he was brought to fore hym bounden/ he was so pietous that he wold not suffre hym to be longe on his knees to fore hym/ but he receyuyd hym cortoysly And sette the crowne agayn on his heed and put hym in thestate that he was to fore/ For he had oppynyon that hit was as worshipfull and fittynge to a kynge to pardone/ as to punysshe. Also he reherceth of a co[=u]ceyllour that was named poule that dide do brynge to fore hym a man that was prisonner And as he knelid to fore hym he toke hym vp fro the ground & made hym to sytte beside hym for to gyue hym good esperance and hoope And sayd to the other stondynge by/ in this wyse. yf hit be grete noblesse that we shewe our self contrarye to our enemyes/ than this fete ought to be alowed that we shew our self debonair to our caytyfs & prisonners Cesar whan he herde the deth of cathon whiche was his aduersarye sayde that he had grete enuye of his glorye. And no thinge of his patrimonye/ and therfore he lefte to his children frely all his patrimonye Thus taught vyrgyle and enseygned the gloryus prynces to rewle and gouerne the peple of rome. And saynt Augustin de ciuitate dei saith thus Thou emperour gouerne the peple pietously And make peas ouerall/ deporte and forbere thy subgets/ repreue & correcte the prowde/ for so enseyne And teche the the lawes/ And hit was wreton vnto Alexander/ that euery prynce ought to be pyetous in punysshynge/ and redy for to rewarde/ Ther is no thynge that causeth a prynce to be so belouyd of hys peple/ As whan he speketh to hem swetly/ and co[=u]ersith with hem symply/ And all this cometh of the roote of pyte/ we rede of the Emperour Traian that his frendes repreuyd hym of that he was to moche pryue and familier wyth the comyn peple more than an emperour ought to be/ And he answerd that he wold be suche an emperour as euery man desired to haue hym/ Also we rede of Alixander that on a tyme he ladde his oost forth hastely/ and in that haste he beheld where satte an olde knight that was sore acolde Whom he dide do arise and sette hym in his owne sete or siege/ what wondre was hit though y'e knightes desired to serue suche a lord that louyd better theyr helth than his dignite/ The rookes ought also to be humble & meke After the holy scripture whiche saith/ the gretter or in the hier astate that thou arte/ so moche more oughtest thou be meker & more humble Valerius reherceth in his .vii. book that ther was an emperour named publius cesar/ That dide do bete doun his hows whiche was in the middis of y'e market place for as moche as hit was heier than other houses/

for as moche as he was more glorious in astate than other/ Therfore wold he haue a lasse hous than other And scipion of affrique that was so poure of vol[=u]tarie pouerte y't whan he was dede/ he was buried at y'e dispencis of y'e comyn good/ They shold be so humble y't they shold leue theyr offices/ and suffre other to take hem whan her tyme comyth/ & doo honour to other/ for he gouerneth wel y'e royame y't may gouerne hit whan he will Valeri'9 saith In his thirde book that fabyan the grete had ben maistre counceyllour of his fader his grauntsire/ And of his grauntsirs fader & of alle his antecessours And yet dide he alle his payne and labour/ that his sone shold neuer haue that office after hym/ but for nothynge that he mystrusted his sone/ For he was noble and wise and more attemprid than other/ but he wold that the office shold not all way reste in the familye and hows of the fabyans Also he reherceth in his seuenth book that they wold make the sayd fabyan emþour/ but he excused hym and sayd that he was blynde and myght not see for age/ but that excusacion myght not helpe hym/ Than sayd he to hem/ seke y'e and gete yow another/ For yf y'e make me your emþour I may not suffre your maners/ nor y'e may not suffre myn/ Ther was a kynge of so subtyll engyne That whan men brought hym the crowne/ to fore that he toke hit/ he remembrid hym a lityll and saide/ O thou crowne that art more noble than happy For yf a kynge knewe well and parfaytly how that thou art full of paryls of thoughte and of charge/ yf thou were on the grounde/ he wolde neuer lyfte ner take the vp/ Remembre the that whan thou art most gloryous/ than haue some men moste enuye on the/ and whan thou haste moste seignourye and lordships than shalt thou haue moste care. thought and anguysshes/ Vaspasian was so humble that whan Nero was slayn alle the peple cryed for to haue hym emþour/ and many of his frendes cam & prayde hym that he wold take hit vpon hym/ so at the last he was constrayned to take hit vpon hym. And sayd to his frendes Hit is better and more to preyse and alowe for a man to take thempire agaynst his wil/ than for to laboure to haue hit and to put hym self therin/ Thus ought they to be humble and meke for to resseyue worship/ Therfore sayth the bible that Ioab the sone of Saryre that was captayn of the warre of the kynge Dauid/ whan he cam to take and wynne a Cyte/ He sente to Dauid and desired hym to come to the warre/ that the victorye shold be gyuen to Dauid/ And not to hym self/ Also they ought to be ware that they chaunge not ofte tymes her officers/ Josephus reherceth that the frendes of tyberyus meruaylled moche why he helde hys offycyers so longe in theyr offices wyth oute changynge/ And they demanded of hym the cause/ to whom he answerd/ I wold chaunge them gladly/ yf I wyste that hit shold be good for the peple/ But I sawe on a tyme a man that was roynyous & full of soores/ And many flyes satte vpon the soores and souked his blood that hit was meruaylle to see/ wherfore I smote and chaced them away. And he than said to me why chacest and smytest away thyse flyes that ben full of my blood/ And now shallt thou late come other that ben hongrye whiche shall doon to me double payne more than the other dide/ for the prikke of the hongrye is more poyngnant the half/ than of y'e fulle And therfore sayde he I leue the officiers in their offices. for they ben all riche/ and doo not so moch euyl & harme As the newe shold doo & were poure yf I shold sette hem in her places/ They ought also to be pacyent in herynge of wordes & in suffrynge payne on her bodyes/ as to the first One said to alisander that he was not worthy to regne. specially whan he suffrid that lecherie and delyte to haue seignoire in hym/ he suffrid hit paciently/ And answerd none otherwyse but that he wolde correte hym

self. And take better maners and more honeste Also hit is reherced that Iulius cezar was ballyd wherof he had desplaysir so grete that he kempt his heeris that laye on the after parte of his heed forward for to hyde the bare to fore. Than sayd a knyght to him Cezar hit is lighther And sonner to be made that thou be not ballid/ than that I haue vsid ony cowardyse in the warre of rome/ or hereafter shall doo ony cowardyse/ he suffrid hit paciently and sayd not aword/ Another reproched hym by his lignage And callyd hym fornier/ he answerd that hit is better that noblesse begynne in me/ than hit shold faylle in me/ Another callid hym tyraunt/ he answerd yf I were one. thou woldest not saie soo A knight callid on a tyme scipion of affricque fowle & olde knyght in armes And that he knewe lityll good And he answerd I was born of my moder a lityll child and feble and not a man of armes. And yet he was at alle tymes one of the best and moste worthy in armes that liuyd. Another sayd to vaspasian/ And a wolf shold sonner change his skyn and heer/ than thou sholdest cha[=u]ge thy lyf For the lenger thou lyvest the more thou coueytest And he answerd of thyse wordes we ought to laughe. But we ought to amende our selfe And punysshe the trespaces. Seneque reherceth that the kynge Antygonus herde certayn peple speke and saye euyll of hym/ And therwas betwene hem nomore but a courtyne/ And than he sayde make an ende of your euyll langage leste the kynge here yow/ for the courtyne heereth yow well[54] I nowhe. Than as towchynge to the paynes that they ought to suffre paciently Valerius reherceth that a tyrant dide do tormente Anamaximenes & thretenyd hym for to cutte of his tonge. To whom he sayd hit is not in thy power to doo soo/ and forthwyth he bote of his owne tonge/ And shewed hit wyth his teth and casted hit in the visage of the Tyrant Hit is a grete vertu in a man that he forgete not to be pacyent in corrections of wronges/ Hit is better to leue a gylty man vnpunysshyd/ than to punysshe hym in a wrath or yre Valerius reherceth that archita of tarente that was mayster to plato sawe that his feldes & lande was destroyed and lost by the necligence of his seruant To whom he sayd yf I were not angry with the I wold take vengeance and turmente the/ Lo there y'e may see that he had leuer to leue to punysshe/ than to pugnysshe more by yre & wrath than by right And therfore sayth seneque/ doo no thynge that thou oughtest to doo whan y'u art angry/ For whan thou art angry thou woldest doo alle thynges after thy playsir/ And yf thou canst not vaynquysshe thyn yre/ than muste thyn yre ouercome the/ After thys ought they to haue wylfull pouerte/ lyke as hit was in the auncyent prynces/ For they coueyted more to be riche in wytte and good maners than in moneye/ And that reherceth Valerius in his .viii. booke that scipion of Affryque was accused vnto the Senate that he shold haue grete tresour/ And he answerd certes whan I submysed affryque in to your poeste/ I helde no thynge to myself that I myght faye this is myn save only the surname of affryque/ Ner the affryquans haue not founden in me ner in my broder ony auarice/ ner y't we were so couetouse that we had ne had gretter enuye to be riche of name than of rychesses/ And therfore sayth seneque that the kynge Altagone vsid gladly in his hows vessels of erthe/ And some sayde he dyde hit for couetyse/ But he sayde that hit was better and more noble thynge to myne in good maners than in vayssell And whan some men demanded hym why and for what cause he dyde so/ he answerd I am now kynge of secylle/ and was sone of a potter/ and for as moche as I doubte fortune. For whan I yssued out of the hous of my fader and moder/ I was sodaynly made riche/ wherfore I beholde the natiuyte of me and of my lignage/

whiche is humble & meke/ And alle these thynges cometh of wilfull pouerte/ for he entended more to the comyn prouffyt than to his owen/ And of thys pouerte speketh saynt Augustyn in the booke of the cyte of god That they that entende to the comyn prouffyt. sorowe more that wilfull pouerte is lost in rome/ than the richesses of rome/ For by the wilfull pouerte was the renomee of good maners kept entierly/ thus by this richesse pouerte is not only corrupt in thyse dayes ner the cyte ner the maners/ but also the thoughtes of the men ben corrupt by thys couetyse and by felonnye that is worse. than ony other enemye And of the cruelte of the peple of rome speketh the good man of noble memorye Iohn the monke late cardynall of rome in the decretall the syxte in the chapitre gens sancta where he sayth/ that they ben felo[=u]s ayenst god. contrarye to holy thynges. traytres one to that other. enuyous to her neyghbours. proude vnto straungers. rebelle and vntrewe vnto theyr souerayns Not suffringe to them that ben of lower degree than they and nothinge shamfast to demande thinges discouenable and not to leue tyll they haue that they demande/ and not plesid but disagreable whan they haue resseyuyd the yeft They haue their tonges redy for to make grete boost/ and doo lityll/ They ben large in promysynges/ And smale gyuers/ they ben ryght fals deceyuours/ And ryght mordent and bitynge detractours/ For whiche thynge hit is a grete sorowe to see the humylite the pacyence And the good wisedom that was woute to be in this cyte of rome whiche is chief of alle the world is peruertid & torned in to maleheurte and thise euylles/ And me thynketh that in other partyes of crestiante they haue taken ensample of them to doo euyll/ They may saye that this is after the decretale of seygnourye and disobeysance/ that sayth That suche thynges that the souerayns doo/ Is lightly and sone taken in ensample of theyr subgets/ Also thise vicayres shold be large and liberall/ In so moche that suche peple as serue them ben duly payd and guerdoned of her labour/ For euery man doth his labour the better and lightlyer whan he seeth that he shall be well payd and rewarded/ And we rede that Titus the sone of vaspasian was so large and so liberall/ That he gaf and promysyd somewhat to euery man/ And whan hys moste pryuy frendes demanded of hym why he promysid more that he myght gyue/ he answerd for as moche as hyt apperteyneth not to a prynce that ony man shold departe sorowfull or tryste fro hym/ Than hit happend on a day that he gaf ner promysid no thynge to ony man And whan hit was euen auysed hymself/ he sayd to hys frendes/ O y'e my frendes thys day haue I lost for this day haue I don no good,' And also we rede of Iulius Cefar that he neuer saide in alle his lyue to his knyghtes goo oon but all way be sayde come come/ For I loue allway to be in youre companye/ And he knewe well that hit was lasse payne & trauayll to the knyghtes whan the prynce is in her companye that loueth hem & c[=o]forted hem And also we rede of the same Iulius cesar in the booke of truphes of phylosophers/ that ther was an Auncyent knyght of his that was in paryll of a caas hangynge to fore the Iuges of rome so he callyd cefar on a tyme and said to hym to fore all men that he shold be his aduocate And cesar deliueryd and assigned to hym a right good aduocate And the knyght sayd to hym O cesar I put no vicaire in my place whan thou were in parill in y'e batayll of assise/ But I faught for the. And than he shewed to hym the places of his woundes that he had receyuyd in the batayll And than cam cesar in his propre persone for to be his aduocate & to plete his cause for hym/ he wold not haue the name of vnkyndenes/ but doubted that men shold saye that he were proude And that he wold not do for them that had seruyd hym

They that can not do so moche/ as for to be belouyd of her knyghtes/ can not loue the knyghtes And this sufficeth of the rooks.

BOOK III.

[Illustration]

The thirde tractate of the offices of the comyn peple. The fyrst chapitre is of the office of the labourers and werkemen.

For as moche as the Noble persone canne not rewle ne gouerne with oute y'e seruyce and werke of the peple/ than hit behoueth to deuyse the oeuurages and the offices of the werkemen/ Than I shall begynne fyrst at the fyrst pawne/ that is in the playe of the chesse/ And signefieth a man of the comyn peple on fote For they be all named pietous that is as moche to saye as footemen And than we wyll begynne at the pawne whiche standeth to fore the rooke on the right side of the kinge for as moche as this pawne apperteyneth to serue the vicaire or lieutenant of the kynge and other officers vnder hym of necessaryes of vitayll/ And this maner a peple is figured and ought to be maad in the forme & shappe of a man holdynge in his ryght hande a spade or shouell And a rodde in the lifte hand/ The spade or shouell is for to delue & labour therwith the erthe/ And the rodde is for to dryue & conduyte wyth all the bestes vnto her pasture also he ought to haue on his gyrdell/ a crokyd hachet for to cutte of the supfluytees of the vignes & trees/ And we rede in the bible that the first labourer that euer was/ was Caym the firste sone of Adam that was so euyll that he slewe his broder Abel/ for as moche as the smoke of his tythes went strayt vnto heuen'/ And the smoke & fumee of the tythes of Caym wente downward vpon the erthe And how well that this cause was trewe/ yet was ther another cause of enuye that he had vnto his broder/ For whan Adam their fader maried them for to multyplie y'e erthe of hys lignye/ he wolde not marye ner Ioyne to gyder the two that were born attones/ but gaf vnto caym her that was born wyth Abel/ And to Abel her that was born with caym/ And thus began thenuye that caym had ayenst abel/ For his wyf was fayrer than cayms wyf And for this cause he slough abel with the chekebone of a beste/ & at that tyme was neuer no maner of yron blody of mannes blood/ And abel was y'e first martier in tholde testament/ And this caym dide many other euyl thinges whiche I leue/ for hit apperteyneth not to my mater/ But hit behoueth for necessite y't some shold labour the erthe after y'e synne of adam/ for to fore er adam synned/ the erthe brought forth fruyt with out labour of handes/ but syn he synned/ hit muste nedes be labourid with y'e handes of men And for as moche as the erthe is moder of alle thynges And that we were first formed and toke oure begynnyng of the erthe/ the same wyse at the laste. she shall be the ende vnto alle vs and to alle thynges/ And god that formed vs of the erthe hath ordeyned that by the laboure of men she shold gyue nourysshyng vnto alle that lyueth/ and first the labourer of y'e erthe ought to knowe his god that formed and made heuen & erthe of nought And ought to haue loyaulte and trouth in hymself/ and despise deth for to entende to his laboure And he ought to gyue thankyngis to hym that made hym And of whom he receyueth all his goodes temporall/ wherof his lyf is susteyned/ And also he is bounden to paye the dismes and tythes of alle his thynges And not as Caym dyde. But as Abell dyde of the beste that

he chese allway for to gyue to god & to plese hym/ For they that grucche and be greuyd in that they rendre and gyue to god the tienthes of her goodes/ they ought to be aferd and haue drede that they shall falle in necessite And y't they might be dispoyllyd or robbed by warre or by tempeste that myght falle or happen in the contrey And hit is meruayll though hit so happen For that man that is disagreable vnto god And weneth y't the multiplynge of his goodes temporell cometh by the vertu of his owne co[=u]ceyll and his wytte/ the whiche is made by the only ordenance of hym that made alle. And by the same ordenance is soone taken away fro hym that is disagreable/ and hit is reson that whan a man haboundeth by fortune in goodes/ And knoweth not god/ by whom hit cometh/ that to hym come some other fortune by the whiche he may requyre grace and pardon And to knowe his god/ And we rede of the kynge Dauid that was first symple & one of the comyn peple/ that whan fortune had enhaunsed and sette hym in grete astate/ he lefte and forgate his god/ And fyll to aduoultrye and homicyde and other synnes/ Than anon his owne sone Absalom assaylled & began to persecute hym And than whan he sawe that fortune was contrarye to hym/ he began to take agayn his vertuous werkis and requyred pardoun and so retorned to god agayn. We rede also of the children of ysræl that were nyghe enfamyned in desert and sore hongry & thrusty that they prayd & requyred of god for remedy/ Anon he changed his wyll & sente to hem manna/ & flessh &c./ And whan they were replenesshid & fatte of the flessh of bestes & of the manna/ they made a calf of gold and worshippid hit. Whiche was a grete synne & Inyquyte/ For whan they were hongry they knewe god/ And whan theyre belyes were fylde & fatted/ they forgid ydoles & were ydolatrers. After this euery labourer ought to be faythfull & trewe That whan his maystre delyuereth to hym his lande to be laboured/ that he take no thinge to hymself but that hym ought to haue & is his/ but laboure truly & take cure and charge in the name of his maistre/ and do more diligently his maisters labours than his owen/ for the lyf of y'e most grete & noble men next god lieth in y'e handes of the labourers/ and thus all craftes & occupacions ben ordeyned not only to suffise to them only/ but to the comyn/ And so hit happeth ofte tyme that y'e labourer of the erthe vseth grete and boystous metes/ and bringeth to his maister more subtile & more deyntous metes/ And valerius reherceth in his. vi. book that ther was a wife & noble maistre y't was named Anthoni9 that was accused of a caas of aduoultrye/ & as the cause henge to fore the Iuges/ his accusers or denonciatours brought I labourer that closid his land for so moche as they sayde whan his maistre wente to doo the aduoultrye/ this same seruant bare the lanterne. wherof Anthonyus was sore abasshyd and doubted that he shold depose agaynst hym But the labourer that was named papirion sayd to his maister that he shold denye his cause hardyly vnto the Iuges For for to be tormentid/ his cause shold neuer be enpeyrid by hym/ ner no thynge shold yssue out of his mouth wherof he shold be noyed or greuyd And than was the labourer beten and tormentid and brent in many places of his body But he sayd neuer thynge wherof his mayster was hurte or noyed/ But the other that accused his maister were punysshid And papiryon was deliuerid of his paynes free and franc/ And also telleth valerius that ther was another labourer that was named penapion/ that seruyd a maister whos name was Themes which was of meruayllous faith to his maystre For hit befell that certain knyghtes cam to his maisters hows for to slee hym And anone as papiryon knewe hit/ he wente in to his maisters chambre And wold not

be knowen For he dide on his maisters gowne and his rynge on his fynger/ And laye on his bedde And thus put hym self in parill of deth for to respite his maisters lyf/ But we see now a dayes many fooles that daigne not to vse groos metes of labourers. And flee the cours clothynge And maners of a seruant Euery wise man a seruant that truly serueth his maister is free and not bonde/ But a foole that is ouer proude is bonde/ For the debilite and feblenes of corage that is broken in conscience by pryde Enuye. or by couetyse is ryght seruytude/ yet they ought not to doubte to laboure for feere and drede of deth/ no man ought to loue to moche his lyf/ For hit is a fowll thynge for a man to renne to the deth for the enemye of his lyf/ And a wyse man and a stronge man ought not to flee for his lyf/ but to yssue For ther is no man that lyueth/ but he must nedes dye. And of this speketh claudyan and sayth that alle thoo thynges that the Ayer goth aboute and enuyronned. And alle thynge that the erthe laboureth/ Alle thyngys that ben conteyned wyth in the see Alle thynges that the floodes brynge forth/ Alle thynges that ben nourysshid and alle the bestes that ben vnder the heuen shall departe alle from the world/ And alle shall goo at his comandement/ As well Kynges Prynces and alle that the world enuyronned and gooth aboute/ Alle shall goo this waye/ Than he ought not to doubte for fere of deth. For as well shail dye the ryche as the poure/ deth maketh alle thynge lyke and putteth alle to an ende/ And therof made a noble versifier two versis whiche folowe Forma. genus. mores. sapi[=e]cia. res. et honores/ Morte ruant subita sola manent merita/ Wherof the english is Beaulte. lignage. maners. wysedom. thynges & honoures/ shal ben deffetid by sodeyn deth/ no thynge shal abide but the merites/ And herof fynde we in Vitas patrum. that ther was an erle a riche & noble man that had a sone onely/ and whan this sone was of age to haue knowlech of the lawe/ he herde in a sermone that was prechid that deth spareth none/ ne riche ne poure/ and as well dyeth y'e yonge as the olde/ and that the deth ought specially to be doubted for .iii. causes/ one was/ y't noman knoweth whan he cometh/ and the seconde/ ner in what state he taketh a man/ And the thirde he wote neuer whither he shall goo. Therfore eche man shold dispise and flee the world and lyue well and hold hym toward god And when this yong man herde this thynge/ he wente oute of his contrey and fledde vnto a wyldernesse vnto an hermytage/ and whan his fader had loste hym he made grete sorowe/ and dyde do enquere & seke hym so moche at last he was founden in the hermitage/ and than his fader cam theder to hym and sayde/ dere sone come from thens/ thou shalt be after my deth erle and chyef of my lignage/ I shall be lost yf thou come not out from thens/ And he than that wyste non otherwise to eschewe the yre of his fader bethought hym and sayde/ dere fader ther is in your centre and lande a right euyll custome yf hit plese yow to put that away I shall gladly come out of this place and goo with yow The fader was glad and had grete Ioy And dema[=u]ded of hym what hit was And yf he wold telle hym he promysid him to take hit away and hit shold be left and sette aparte. Than he sayde dere fader ther dyen as well the yong folk in your contrey as the olde/ do that away I pray yow/ Whan his fader herde that he sayde Dere sone that may not be ner noman may put that away but god only/ Than answerd the sone to the fader/ than wylle I serue hym and dwelle here wyth hym that may do that. And so abode the childe in the hermytgage & lyuyd there in good werkes After this hit apperteyneth to a labourer to entende to his laboure and flee ydlenes/ And thou oughtest to knowe that Dauid preyseth moche in the sawlter the treve labourers and

sayth/ Thou shalt ete the labour of thyn handes and thou art blessid/ and he shall do to the good And hit behoueth that the labourer entende to his labour on the werkedayes for to recuyell and gadre to gyder the fruyt of his labour/ And also he ought to reste on the holy day/ bothe he and his bestes. And a good labourer ought to norysshe and kepe his bestes/ And this is signefied by the rodde that he hath. Whiche is for to lede and dryue them to the pasture/ The fiste pastour that euer was/ was Abel whiche was Iuste and trewe/ and offryd to god the bestes vnto his sacrefice/ And hym ought he to folowe in craft & maners But no man that vseth the malice of Caym may ensue and folowe Abel/ And thus hit apperteyneth to the labourer to sette and graffe trees and vygnes/ and also to plante and cutte them And so dyde noe whiche was the first that planted the vygne after y'e deluge and flood For as Iosephus reherceth in y'e book of naturell thinges Noe was he that fonde fyrst the vygne/ And he fonde hym bitter and wylde/ And therfore he toke .iiii. maners of blood/ that is to wete the blood of a lyon. the blood of a lamb, the blood of a swyne. and the blood of an ape and medlid them alto geder with the erthe/ And than he cutte the vygne/ And put this aboute the rootes therof. To thende that the bitternes shold be put away/ and that hyt shold be swete/ And whan he had dronken of the fruyt of this vygne/ hit was so good and mighty that he becam so dronke/ that he dispoylled hym in suche wise y't his pryuy membres might be seen/ And his yongest sone cham mocqued and skorned hym And whan Noe was awakid & was sobre & fastinge/ he assemblid his sones and shewid to them the nature of the vygne and of the wyn/ And told to them the caufe why y't he had put the blood of the bestes aboute the roote of the vygne and that they shold knowe well y't otherwhile by y'e strength of the wyn men be made as hardy as the lyon and yrous And otherwhile they be made symple & shamefast as a lambe And lecherous as a fwyn/ And curyous and full of playe as an Ape/ For the Ape is of suche nature that whan he seeth one do a thynge he enforceth hym to doo the same/ and so doo many whan they ben dronke/ they will medle them wyth alle officers & matiers that apperteyne no thynge to them/ And whan they ben fastynge & sobre they can scarfely accomplisshe theyr owne thynges And therfore valerian reherceth that of auncyente and in olde tyme women dranke no wyn for as moche as by dronkenship they myght falle in ony filthe or vilonye And as Ouide sayth/ that the wyns otherwhyle apparaylle the corages in suche manere that they ben couenable to alle synnes whiche take away the hertes to doo well/ They make the poure riche/ as longe as the wyn is in his heed And shortly dronkenshyp is the begynnynge of alle euyllys/ And corrompith the body/ and destroyed the fowle and mynusshith the goodes temporels/ And this suffyseth for the labourer.

[Illustration]

The seconde chapitre of the thirde tractate treteth of the forme and maner of the second pawne and of the maner of smyth.

The seconde pawne y't standeth to fore the knyght on the right side of the kynge hath the forme and figure of a man as a smyth and that is reson For hit apperteyneth to y'e knyghtes to haue bridellys sadellys spores and many other thynges made by the handes of smythes and ought to holde an hamer in his right hande. And in his lyfte hand a dolabre and he ought to haue on his gyrdell a trowell For by this is signefied

all maner of werkemen/ as goldsmithes. marchallis, smithes of all forges/ forgers and makers of monoye & all maner of smythes ben signefyed by [55] the hamer/ The carpenters ben signefyed by the dolabre or squyer/ And by the trowell we vnderstande all masons & keruars of stones/ tylers/ and alle them that make howses castels & tours/ And to alle these crafty men hit apperteyneth that they be trewe. wise and stronge/ and hit is nede y't they haue in hemself faith and loyaulte/ For vnto the goldsmythes behoueth gold & siluer And alle other metallys. yren & steel to other/ And vnto the carpenters and masons/ ben put to theyr edifices the bodyes and goodes of the peple/ And also men put in the handes of the maronners body and goodes of the peple/ And in the garde and sewerte of them men put body & sowle in the paryls of the see/ and therfore ought they to be trewe/ vnto whom men commytte suche grete charge and so grete thynges vpon her fayth and truste. And therfore sayth the philosopher/ he that leseth his fayth and beleue/ may lose no gretter ne more thynge. And fayth is a fouerayn good and cometh of the good wyll of the herte and of his mynde And for no necessite wyll deceyue no man/ And is not corrupt for no mede. Valerius reherceth that Fabius had receyuyd of hanybal certayn prysoners that he helde of the romayns for a certayn some of money whiche he promysid to paye to the sayd hanyball/ And whan he cam vnto the senatours of rome and desired to haue y'e money lente for hem They answerd that they wold not paye ner lene And than fabius sente his sone to rome & made hym to selle his heritage & patrimonye/ and fente the money that he resseyuyd therof vnto hanibal/ And had leuer & louyd better to be poure in his contrey of herytage/ than of byleue and fayth/ But in thyfe dayes hit were grete folye to haue fuche affiance in moche peple but yf they had ben preuyd afore For oftentymes men truste in them by whom they ben deceyuyd at theyr nede/ And it is to wete that these crafty men and werkemen ben souerainly prouffitable vnto the world And wyth oute artificers and werkmen the world myght not be gouerned/ And knowe thou verily that alle tho thynges that ben engendrid on the erthe and on the see/ ben made and formed for to do prouffit vnto the lignage of man/ for man was formed for to haue generacion/ that the men myght helpe and prouffit eche other And here in ought we to folowe nature/ For she shewed to vs that we shold do comyn prouffit one to an other/ And y'e first fondement of Iustice is that no man shold noye or greue other But that they ought doo the comyn prouffit/ For men saye in reproche That I see of thyn/ I hope hit shall be myn But who is he in thyse dayes that entendeth more to the comyn prouffit than to his owne/ Certaynly none/ But all way a man ought to haue drede and feere of his owne hows/ whan he seeth his neyghbours hous a fyre And therfore ought men gladly helpe the comyn prouffit/ for men otherwhile sette not be a lityll fyre And might quenche hit in the begynnyng/ that afterward makyth a grete blasyng fyre. And fortune hath of no thinge so grete playsir/ as for to torne & werke all way/ And nature is so noble a thynge that were as she is she wyll susteyne and kepe/ but this rewle of nature hath fayllid longe tyme/ how well that the decree sayth that alle the thynges that ben ayenst the lawe of nature/ ought to be taken away and put a part And he sayth to fore in the .viii. distinction that the ryght lawe of nature differenceth ofte tymes for custome & statutes establisshid/ for by lawe of nature all thinge ought to be comyn to euery man/ and this lawe was of old tyme And men wene yet specially y't the troians kept this lawe And we rede that the multitude of the Troians was one herte and one sowle/ And verayly we fynde that in

tyme passid the philosophres dyde the same/ And also hit is to be supposyd that suche as haue theyr goodes comune & not propre is most acceptable to god/ For ellys wold not thise religious men as monkes freris chanons obseruantes & all other auowe hem & kepe the wilfull pouerte that they ben professid too/ For in trouth I haue my self ben conuersant in a religio'9 hous of white freris at gaunt Which haue all thynge in comyn amonge them/ and not one richer than an other/ in so moche that yf a man gaf to a frere .iii. d or .iiii. d to praye for hym in his masse/ as sone as the masse is doon he deliuerith hit to his ouerest or procuratour in whyche hows ben many vertuous and deuoute freris And yf that lyf were not the beste and the most holiest/ holy church wold neuer suffre hit in religion And acordynge thereto we rede in plato whiche sayth y't the cyte is well and Iustely gouernid and ordeyned in the whiche no man maye saye by right, by cuftome. ne by ordenance/ this is myn/ but I say to the certaynly that syn this custome cam forth to say this is myn/ And this is thyn/ no man thought to preferre the comyn prouffit so moche as his owen/ And alle werkemen ought to be wise & well aduysyd so that they haue none enuye ne none euyll suspecion one to an other/ for god wylle that our humayne nature be couetous of two thynges/ that is of Religion. And of wysedom/ but in this caas ben some often tymes deceyued For they take ofte tymes religion and leue wisedom And they take wysedom and reffuse religion And none may be vraye and trewe with oute other For hit apperteyneth not to a wyse man to do ony thynge that he may repente hym of hit/ And he ought to do no thynge ayenst his wyll/ but to do alle thynge nobly, meurely. fermely. and honestly And yf he haue enuye vpon ony. hit is folye For he on whom he hath enuye is more honest and of more hauoir than he whiche is so enuyous/ For a man may haue none enuye on an other/ but be cause he is more fortunat and hath more grace than hym self/ For enuye is a sorowe of corage y't cometh of dysordynance of the prouffit of another man And knowe thou verily that he that is full of bounte shall neuer haue enuye of an other/ But thenuyous man seeth and thynketh alleway that euery man is more noble/ And more fortunat that hymself And sayth alleway to hymself/ that man wynneth more than I/ and myn neyghebours haue more plente of bestes/ and her thynges multiplye more than myn/ and therfore thou oughtest knowe that enuye is the most grettest dedely synne that is/ for she tormenteth hym that hath her wythin hym/ wyth oute tormentynge or doyng ony harme to hym/ on whome he hath enuye. And an enuyous man hath no vertue in hymself/ for he corrumpeth hymself for as moche as he hateth allway the welthe and vertues of other/ and thus ought they to kepe them that they take none euyll suspec[=o]n For a man naturally whan his affection hath suspecion in ony man that he weneth that he doth/ hit semeth to hym verily that it is doon. And hit is an euyll thynge for a man to haue suspecion on hymfelf/ For we rede that dionyse of zecyll a tyrant Was so suspecionous that he had so grete fere and drede For as moche as he was hated of all men/ that he putte his frendes oute of theyr offices that they had/ And put other strangers in theyr places for to kepe his body/ and chese suche as were ryght Cruell and felons/ And for fere and doubte of the barbours/ he made hys doughters to lerne shaue and kembe/ And whan they were grete. He wold not they shold vse ony yron to be occupied by them/ but to brenne and senge his heeris/ and manaced them and durst not truste in them/ And in lyke wyse they had none affiance in hym And also he dyde do enuyronne the place where he laye wyth grete diches and

brode lyke a castell/ And he entryd by a drawbrygge whiche closyd after hym/ And hys knyghtes laye wyth oute wyth his gardes whiche wacchid and kept straytly thys forteresse/ And whan plato sawe thys Dionyse kynge of cezille thus enuyronned and set aboute wyth gardes & wacche-men for the cause of his suspecion sayd to hym openly to fore all men kinge why hast thou don so moche euyll & harme/ that the behoueth to be kept wyth so moche peple/ And therfore I saye that hit apperteyneth not to ony man that wylle truly behaue hym self in his werkis to be suspecyous/ And also they ought to be stronge and seure in theyr werkes/ And specyally they that ben maysters and maronners on the see/ for yf they be tumerous and ferdfull they shold make a ferde them that ben in theyr shippis/ that knowe not the paryls/ And so hit might happene that by that drede and fere alle men shold leue theyr labour/ And so they myght be perisshid and despeyred in theyr corages/ For a shippe is soone perisshid and lost by a lityll tempest/ whan the gouernour faylleth to gouerne his shippe for drede/ And can gyue no counceyll to other than it is no meruayll/ thangh they be a ferd that ben in his gouernance/ And therfore ought be in them strengthe force and corage/ and ought to considere the peryls that might falle/ And the gouernour specially ought not to doubte/ And if hit happen that ony paryll falle/ he ought to promyse to the other good hoope/ And hit apperteyneth well/ that a man of good and hardy corage be sette in that office/ In suche wyse that he haue ferme and seure mynde ayenst the paryls that oftetymes happen in the see/ and with this ought the maroners haue good and ferme creance and beleue in god/ and to be of good reconforte & of fayr langage vnto them that he gouerneth in suche paryls/ And this sufficeth to yow as touchynge the labourers.

[Illustration]

The thirde chapitre of the thirde book treteth of the office of notaryes aduocats skryueners and drapers or clothmakers.

The thirde pawne whiche is sette to fore the Alphyn on the right side ought to be figured as a clerk And hit is reson that he shold so be/ For as moche as amonge y'e comon peple of whom we speke in thys book they plete the differencis contencions and causes otherwhile the whiche behoueth the Alphins to gyue sentence and Iuge as Iuges And hit is reson that the Alphin or Iuge haue his notarye/ by whom y'e processe may be wreton/ And this pawne ought to be made and figured in this mamere/ he muste be made like a man that holdeth in his right hand a pair of sheres or forcetis/ and in the lifte hand a grete knyf and on his gurdell a penuer and an ynkhorn/ and on his eere a penne to wryte wyth And that ben the Instrumentis & the offices that ben made and put in writynge autentyque/ and ought to haue passed to fore the Iuges as libelles writtes condempnacions and sentences/ And that is signefied by the scriptoire and the penne and on that other part hit appertayneth to them to cutte cloth. shere. dighte. and dye/ and that is signefied by the forcettis or sheres/ and the other ought to shaue berdes and kembe the heeris/ And the other ben coupers. coryers. tawiers. skynners. bouchers and cordwanners/ and these ben signefyed by the knyf that he holdeth in his hand and some of thise forsayd crafty men ben named drapers or clothmakers for so moche as they werke wyth wolle. and the Notayres. skynners. coryours. and cardewaners werke by skynnes and hydes/ As parchemyn velume.

peltrye and cordewan/ And the Tayllours. cutters of cloth, weuars. fullars. dyers/ And many other craftes ocupye and vse wulle/ And alle thyse crafty men & many other that I haue not named/ ought to doo theyr craft and mestyer/ where as they ben duly ordeyned Curyously and truly/ Also ther ought to be amonge thyse crafty men amyable companye and trewe/ honest contenance/ And trouthe in their wordes/ And hit is to wete that the notaries ben right prouffitable and ought to be good & trewe for the comyn And they ought to kepe them fro appropriynge to themself that thynge y't apperteyneth to the comyn And yf they be good to them self/ they ben good to other. And yf they be euyll for themself/ they ben euyll for other And the processes that ben made to fore the Iuges ought to ben wreton & passid by them/ and hit is to wete that by their writynge in the processis may come moche prouffit And also yf they wryte otherwyse than they ought to doo/ may ensewe moche harme and domage to the comyn Therfore ought they to take good heede that they change not ne corrumpe in no wyse the content of the sentence. For than ben they first forsworn And ben bounden to make amendes to them that by theyr tricherye they haue endomaged/ And also ought they to rede visite and to knowe the statutes. ordenances and the lawes of the cytees of the contre/ where they dwelle and enhabite/ And they ought to considere yf ther be ony thynge therein conteyned ayenst right and reson/ and yf they fynde ony thinge contraire/ they ought to admoneste and warne them that gouerne/ that suche thynges may be chauged into better astate/ For custome establisshid ayenst good maners and agaynst the fayth/ ought not to be holden by right. For as hit is sayd in the decree in the chapitre to fore/ alle ordenance made ayenst ryght ought to be holden for nought Alas who is now that aduocate or notaire that hath charge to wryte and kepe sentence that putteth his entente to kepe more the comyn prouffit or as moche as his owen/ But alle drede of god is put a back/ and they deceyue the symple men And drawen them to the courtes disordinatly and constrayned them to swere and make othes not couenable/ And in assemblyng the peple thus to gyder they make moo traysons in the cytees than they make good alyances And otherwhile they deceyue their souerayns/ whan they may doo hit couertly For ther is no thynge at this day that so moche greueth rome and Italye as doth the college of notaries and aduocates publicque For they ben not of oon a corde/ Alas and in Engeland what hurte doon the aduocats. men of lawe. And attorneyes of court to the comyn peple of y'e royame as well in the spirituell lawe as in the temporall/ how torne they the lawe and statutes at their pleasir/ how ete they the peple/ how enpouere they the comynte/ I suppose that in alle Cristendom ar not so many pletars attorneys and men of the lawe as ben in englond onely/ for yf they were nombrid all that lange to the courtes of the channcery kinges benche. comyn place. cheker. ressayt and helle And the bagge berars of the same/ hit shold amounte to a grete multitude And how alle thyse lyue & of whome. yf hit shold be vttrid & told/ hit shold not be beleuyd. For they entende to theyr synguler wele and prouffyt and not to the comyn/ how well they ought to be of good wyll to gyder/ and admoneste and warne the cytes eche in his right in suche wise that they myght haue pees and loue one with an other And tullius saith that frendshippe and good wyll that one ought to haue ayenst an other for the wele of hym that he loueth/ wyth the semblable wylle of hym/ ought to be put forth to fore alle other thynges/ And ther is no thynge so resemblynge and lyke to the bees that maken honye ne so couenable in prosperite and in aduersite as is loue/ For by loue gladly the

bees holden them to gyder/ And yf ony trespace to that other anone they renne vpon the malefactour for to punysshe hym/ And verray trewe loue faylleth neuer for wele ne for euyll/ and the most swete and the most confortynge thynge is for to haue a frende to whom a man may saye his secrete/ as well as to hym self/ But verayly amytye and frendship is somtyme founded vpon som thinge delectable And this amytye cometh of yongthe/ in the whiche dwelleth a disordinate heete.

And otherwhile amytie is founded vpon honeste/ And this amytie is vertuouse/ Of the whiche tullius faith y't ther is an amytie vertuous by the whiche a man ought to do to his frende alle that he requyreth by rayson For for to do to hym a thynge dishonneste it is ayenst the nature of verray frendshipe & amytie/ And thus for frendshipe ne for fauour a man ought not to doo ony thinge vnresonable ayenst the comyn prouffit ner agaynst his fayth ne ayenst his oth/ for yf alle tho thynges that the frendes desire and requyre were accomplisshid & doon/ hit shold seme that they shold be dishoneste coniuracions/ And they myght otherwhile more greue & hurte than prouffit and ayde/ And herof sayth seneque that amytie is of suche wylle as the frende wylle/ And to reffuse that ought to be reffusid by rayson/ And yet he sayth more, that a man ought to alowe and preyse his frende to fore the peple/ and to correcte and to chastyse hym pryuyly. For the lawe of amytie is suche For a man ought not to demande ner doo to be doon to his frende no vyllayns thynge that ought to be kept secrete And valerian sayth that it is a fowll thynge and an euyll excufacion/ yf a man conffesse that he hath done ony euyll for his frende ayenst right and rayson/ And sayth that ther was a good man named Taffile whiche herde one his frende requyre of hym a thynge dishonnefte whiche he denyed and wold not doo And than his frende sayth to hym in grete dispyte/ what nede haue I of thy frendship & amytie whan thou wylt not doo that thynge that I requyre of the And Taffile answerd to hym/ what nede haue I of the frendship and of the amytie of the/ yf I shold doo for the thynge dishonefte And thus loue is founded otherwhile vpon good prouffitable/ and this loue endureth as longe as he seeth his prouffit And herof men faye a comyn prouerbe in england/ that loue lasteth as longe as the money endureth/ and whan the money faylleth than there is no loue/ and varro reherceth in his smmes/ that y' riche men ben alle louyd by this loue/ for their frendes ben lyke as y'e huse whiche is aboute the grayn/ and no man may proue his frende so well as in aduersite/ or whan he is poure/ for the veray trewe frende faylleth at no nede/ And seneque saith y't some folowe the empour for riches/ and so doon y'e flies the hony for the swetenes/ and the wolf the karayn And thise companye folowe the proye/ and not the man And tullius saith that Tarquyn y'e proude had a neuewe of his suster which was named brutus/ and this neuewe had banysshid tarquyn out of rome and had sente hym in exyle/ And than sayd he first that he parceyuyd & knewe his frendes whiche were trewe & untrewe/ and y't he neuer perceyuyd a fore tyme whan he was puyssant for to doo their wyll/ and sayd well that the loue that they had to hym/ endured not but as longe as it was to them prouffitable/ and therfore ought till the ryche men of the world take hede/ be they Kynges Prynces or ducs to what peple they doo prouffit & how they may and ought be louyd of theyr peple/ For cathon sayth in his book/ see to whom thougyuyst/ and this loue whiche is founded vpon theyr prouffit/ whiche faylleth and endureth not/ may better be callyd and said marchandyse than loue/ For

yf we repute this loue to our prouffit only/ and nothynge to the prouffyt of hym that we loue/ It is more marchandyse than loue/ For he byeth our loue for the prouffit that he doth to vs/ and therfor saith the versifier thise two versis Tempore felici multi murmerantur amici Cum fortuna perit nullus amicus erit/ whiche is to saye in English that as longe as a man is ewrous and fortunat he hath many frendes but whan fortune torneth and perisshith, ther abideth not to hym one frende/ And of this loue ben louyd the medowes, feldes, Trees and the bestes for the prouffit that men take of them/ But the loue of the men ought to be charyte, veray gracious and pure by good fayth/ And the veray trewe frendes ben knowen in pure aduersite/ and pers alphons saith in his book of moralite that ther was a philosophre in arabye that had an onely sone/ of whom he demanded what frendes he had goten hym in his lyf. And he answerd that he had many And his fader sayd to hym/ I am an olde man/ And yet coude I neuer fynde but one frende in alle my lyf/ And I trowe verily that it is no lytyll thynge for to haue a frende/ and hit is well gretter and more a man to haue many/ And hit appertayneth and behoueth a man to assaye and preue his frende er he haue nede And than comanded the philosopher his sone/ that he shold goo and slee a swyne/ and putte hit in a sack/ and fayne that hit were a man dede that he had slayn and bere hit to his frendes for to burye hit secretly/ And whan the sone had don as his fader comanded to hym and had requyred his frendes one after an other as a fore is sayd/ They denyed hym/ And answerd to hym that he was a vylayne to requyre & desire of them thynge that was so peryllous And than he cam agayn to his fader and sayd to hym how he had requyred alle his frendes/ And that he had not founden one that wolde helpe hym in his nede And than his fader said to hym that he shold goo and requyre his frende whiche had but one/ and requyre hym that he shold helpe hym in his nede And whan he had requyred hym/ Anone he put oute alle his mayne oute of his hows/ And whan they were oute of the waye or a slepe he dide do make secretly a pytte in the grounde/ And whan hyt was redy and wold haue buryed the body/ he fonde hit an hogge or a swyne and not a man/ And thus thys sone preuyd thys man to be a veray trewe frende of his fader/ And preuyd that his frendes were fals frendes of fortune/ And yet reherceth the sayd piers Alphons/ That ther were two marchantes one of Bandach and that other of Egipte whiche were so Joyned to gyder by so grete frendshippe that he of Bandach cam on a tyme for to see hys frende in Egipte/ of whom he was receyuyd ryght honourably And thys marchant of Egipte had in his hows a fayr yonge mayden whom he shold haue had in maryage to hymslf/ Of the whiche mayde thys marchant of Bandach was esrysd wyth her loue so ardantly that he was ryght seeke/ And that men supposid hym to dye. And than the other dyde doo come the phisicyens whiche sayd that in hym was none other sekenes sauf passyon of loue/ Than he axid of the seeke man yf ther wer ony woman in hys hows that he louyd and made alle the women of his hows to come to fore hym/ And than he chees her that shold haue ben that others wyf and sayd that he was seek for the loue of her/ Than hys frende sayd to hym Frende conforte your self/ For trewly I gyue her to yow to wyf wyth alle the dowayre that is gyuen to me wyth her/ And had leuer to suffre to be wyth oute wyf than to lese the body of his frende And than he of Bandach wedded the mayde. And wente wyth his wyf and wyth his richesse ayen in to his contrey And after this anone after hit happend that the marcha[=n]t of Egipte be cam so poure by euyll fortune/ that he was constrayned to feche and begge his brede by the contrey in

so moche that he cam to bandach. And whan he entrid in to the toun hit was derke nyght that he coude not fynde the hows of his frende/ but wente and laye this nyght in an olde temple/ And on the morn whan he shold yssue oute of the temple/ the officers of the toun arestid hym and sayd that he was an homycide and had slayn a man whiche laye there dede And an[=o]n he confessid hit wyth a good wylle/ And had leuyr to ben hangid/ than to dye in that myserable and poure lyf that he suffrid And thus whan he was brought to Iugement And sentence shold haue ben gyuen ayenst hym as an homicide/ his frende of bandach cam and sawe hym and anone knewe y't this was his good frende of Egipte And forthwyth stept in and sayde that he hymself was culpable of the deth of this man/ and not that other/ and enforced hym in alle maners for to delyuer and excuse that other/ And than whan that he that had don the feet and had slayn the man sawe this thynge/ he considerid in hym sels that these two men were Innocente. of this feet/ And doubtynge the dyuyn Iugement he cam to fore the Iuge and confessid alle the feet by ordre/ And whan the Iuge sawe and herd alle this mater/ and also the causes he considerid the ferme and trewe loue that was betwene the two frendes And vnderstode the cause why that one wold saue that other/ and the trouth of the fayte of the homicide And than he pardoned alle the feet hoolly and entierly/ and after the marchant of bandach brought hym of egipte wyth hym in to his hous/ and gaf to hym his suster in mariage/ and departid to hym half his goodes/ And so bothe of hem were riche/ And thus were they bothe veray faythfull and trewe frendes/ Furthermore Notaires. men of lawe and crafty men shold and ought to loue eche other And also ought to be contynent chaste & honeste/ For by theyr craftes they ought so to be by necessite/ For they conuerse & accompanye them ofte tyme with women And therfor hit apperteyneth to them to be chaste and honeste And that they meue not the women ner entyse them to lawhe/ and Iape by ony disordinate ensignees or tokens/ Titus liuyus reherceth that the philosopher democreon dyde do put oute his eyen for as moche as he myght not beholde the women wyth oute flesshely desire/ And how well hit is said before that he dide hit for other certayn cause yet was this one of the pryncipall causes/ And Valerian telleth that ther was a yonge man of rome of ryght excellent beaute/ And how well that he was ryght chaste/ For as moche as his beaute meuyd many women to desyre hym/ in so moche that he vnderstode that the parents and frendes of them had suspecion in hym/ he dyde his visage to be cutte wyth a knyf and lancettis endlonge and ouerthwart for to deforme his visage/ And had leuer haue a fowle visage and disformed/ than the beaute of hys visage shold meue other to synne/ And also we rede that ther was a Nonne a virgyne dyde do put oute bothe her eyen For as moche as the beaute of her eyen meuyd a kynge to loue her/ whyche eyen she sente to the kynge in a presente/ And also we rede that plato the ryght ryche and wyse phylosophre lefte hys owne lande and Contre. And cheese his mansion and dwellynge in achadomye a town/ whiche was not only destroyed but also was full of pestelence/ so that by the cure and charge and customance of sorowe that be there suffrid/ myght eschewe the heetes and occasions of lecherye/ And many of his disciples dyde in lyke wyse/ Helemand reherceth that demostenes the philosopher lay ones by a right noble woman for his disporte/ and playnge with her he demanded of her what he shold gyue to haue to doo wyth her/ And she answerd to hym/ a thousand pens/ and he sayd agayn to her I shold repente me to bye hit so dere/ And whan he aduysed hym that he

was so sore chauffid to speke to her for tacc[=o]plissh his flesshely defire/ he dispoyled hym alle naked and wente and putte hym in the middes of the snowe And ouide reherceth that this thynge is the leste that maye helpe and moste greue the louers And therfore saynt Augustyn reherceth in his book de Ciuitate dei that ther was a ryght noble romayne named merculian that wan and toke the noble cyte of siracuse And to fore er he dyde do assaylle hit or befyghte hit/ and er he had do be shedde ony blood/ he wepte and shedde many teeris to fore the cyte And that was for the cause that he doubted that his peple shold defoyle and corrumpe to moche dishonestly the chastyte of the toun And ordeyned vpon payne of deth that no man shold be so hardy to take and defoylle ony woman by force what that euer she were/ After this the craftymen ought to vnderstond for to be trewe/ and to haue trouthe in her mouthes And that theyr dedes folowe theyr wordes For he that sayth one thynge and doth another/ he condempneth hymself by his word Also they ought to see well to that they be of one Acorde in good, by entente, by word, and by dede/ so that they ben not discordant in no caas/ But euery man haue pure veryte and trouth in hym self/ For god hym self is pure verite/ And men say comynly that trouthe seketh none hernes ne corners/ And trouthe is a vertu by the whyche alle drede and fraude is put away/ Men saye truly whan they saye that they knowe/ And they that knowe not trouthe/ ought to knowe hit/ And alleway vse trouthe/ For Saynt Austyn sayth that they that wene to knowe trouthe/ And lyuyth euyll & viciously It is folye yf he knoweth hit not/ And also he sayth in an other place that it is better to suffre peyne for trouthe. Than for to haue a benefete by falsenes or by flaterye. And man that is callyd a beste resonable and doth not his werkes after reson and trouthe/ Is more bestyall than ony beste brute/ And knowe y'e that for to come to the trouthe/ Hit cometh of a raysonable forsight in his mynde/ And lyenge cometh of an outrageous and contrarye thought in his mynde/ For he that lyeth wetyngly/ Knoweth well that hit is agaynst the trouthe that he thynketh/ And herof speketh Saynt Bernard and sayth/ That the mouthe that lyeth destroyeth the sowle/ And yet sayth Saynt Austyn in an other place For to saye ony thynge/ And to doo the contrarye. maketh doctryne suspecious/ And knowe y'e veryly that for to lye is a right perillous thynge to body and sowle For the lye that the auncyent enemye made Eue & adam to beleue hym/ made hem for to be dampned wyth alle theyr lignage to the deth pardurable And made hem to be cast oute of Paradyse terrestre/ For he made them to beleue that god had not forboden them the fruyt. But only be cause they shold not knowe that her maister knewe But how well that the deuyll said thise wordes yet had she double entente to hem bothe For they knewe ann as they had tasted of the fruyt that they were dampned to the deth pardurable/ And god knewe it well to fore But they supposid well to haue knowen many other thynges And to belyke vnto his knowleche and science And therfor fayth saynt poule in a pistyll/ hit ne apperteyneth to saure or knowe more than behoueth to saure or knowe/ but to fauoure or knowe by mesure or fobrenes/ And valerian reherceth that ther was a good woman of siracusane that wold not lye vnto the kynge of *ecylle whiche was named dyonyse And this kynge was so full of tyrannye & so cruell that alle the world defired his deth and cursid hym/ Saauf this woman onely whiche was so olde that she had seen thre or .iiii. kynges regnynge in the contre/ And euery mornynge as sone as she was rysen she prayd to god that he wold gyue vnto the tyrant good lyf and longe And that she myght neuer see his deth/

And when the kynge dyonise knewe this he sent for her And meruayllid moche herof For he knewe well that he was fore behated/ And demaunded her/ what cause meuyd her to pray for hym. And she answerd and said to hym Syre whan I was a mayde we had a right euyll tyrant to our kynge of whom we coueyted fore the deth And whan he was ded ther cam after hym a worse/ of whom we coueyted also the deth/ And whan we were deliueryd of hym/ thou camst to be our lord whiche arte worste of alle other. And now I doubte yf we haue one after the he shall be worse than thou art/ And therfore I shall pray for the And whan dionyse vnderstod that she was so hardy in sayynge the truthe/ he durste not doo tormente her for shame be cause she was so olde.

[Illustration]

The fourth chapitre of the thirde book treteth of the maner of the fourth pawn and of the marchants or changers.

The fourth pawn is sette to for the kynge And is formed in the fourme of a man holding in his ryght hand a balance/ And the weyght in the lifte hand/ And to fore hym a table And at his gurdell a purse fulle of monoye redy for to gyue to them that requyre hit And by this peple ben signefied the marchans of cloth lynnen and wollen & of all other marchandises And by the table that is to for hym is signefied y'e changeurs/ And they that lene money/ And they that bye & selle by the weyght ben signefyed by the balances and weight And the customers. tollers/ and resseyuours of rentes & of money ben signefied by the purse And knowe y'e that alle they that ben signefied by this peple ought to flee auaryce and couetyse/ And eschewe brekynge of the dayes of payement/ And ought to holde and kepe theyr promyssis/ And ought also to rendre & restore y't/ that is gyuen to them to kepe/ And therfor hit is reson that this peple be sette to for y'e kynge/ for as moche as they signefie the resseyuours of the tresours royall that ought all way to be redy to fore y'e kynge/ and to answere for hym to the knightes and other persones for their wages & souldyes And therfore haue I sayd that they ought to flee auarice. For auarice is as moche to say as an adourer or as worshipar of fals ymages/ & herof saith Tullius that auarice is a couetise to gete y't thing that is aboue necessite/ & it is a loue disordinate to haue ony thynge And it is one of the werst thyngis that is And specially to prynces and to them that gouerne the thynges of the comunete And this vice caufeth a man to do euyll/ And this doynge euyll is whan hit regneth in olde men And herof saith Seneque That alle wordly thynges ben mortifyed and appetissid in olde men reserued auaryce only/ whiche alleway abideth wyth hym and dyeth wyth hym But I vnderstande not well the cause wherof this cometh ne wherfore hit may be And hit is a fowle thynge and contrarie to reson That whan a man is at ende of his Iourney for to lengthe his viage and to ordeyne more vitayll than hym behoueth And this may well be lykened to the auarycious wolf For the wolf doth neuer good tyll he be dede And thus it is sayd in the prouerbis of the wisemen/ that thauaricious man doth no good tyll that he be ded/ And he desireth no thynge but to lyue longe in this synne For the couetouse man certaynly is not good for ony thynge For he is euyll to hymself and to the riche and to the poure. And fynde cause to gayn saye theyr desire/ and herof reherceth seneque and sayth that Antigonus was a couetous prynce/ & whan Tinque whiche was his

frende requyred of hym a besa[=u]t/ he answerd to hym that he demanded more than hit apperteyned to hym And than tinque constrayned by grete necessite axid and requyred of hym a peny/ And he answerd to hym that hit was no yefte couenable for a kynge and so he was allway redy to fynde a cause nought to gyue For he myght haue gyuen to hym a besa[=u]t as a kynge to his frende/ And the peny as to a poure man And ther is no thynge so lytyll/ but that the humanyte of a kynge may gyue hit Auarice full of couetyse is a maner of alle vices of luxurye And Josephus reherceth in the book of auncyent histories/ that ther was in rome a ryght noble lady named Paulyne/ And was of the most noble of rome/ right honeste for the noblesse of chastete/ whiche was maryed in the tyme that the women gloryfied them in theyr chastete vnto a yonge man fayr. noble. and riche aboue alle other/ and was lyke and semblable to his wyf in alle caasis/ And this paulyne was belouyd of a knight named emmerancian And was so ardautly esprysed in her loue that he sente to her many right riche yeftes/ And made to her many grete promissis/ but he might neuer torne the herte of her whiche was on her side also colde and harde as marbill But had leuer to reffuse his yeftes and his promisses. Than to entende to couetise & to lose her chastete/ and we rede also in the historyes of rome that ther was a noble lady of rome/ whiche lyuyd a solitarye lyf and was chaste & honeste/ And had gadrid to gyder a grete some of gold/ And had hid hit in the erthe in a pytte wyth in her hous/ And whan she was ded/ the bisshop dyde do burye her in the churche well and honestly/ And anone after this gold was founden & born to the bisshop/ And the bisshop had to caste hit in to the pytte wher she was buryed. And .iii. dayes men herd her crye & make grete noyse/ and saye that she brennyd in grete payne/ and they herd her ofte tymes thus tormentid in y'e chirche/ the neighbours wente to the bisshop & told hym therof/ and y'e bisshop gaf hem leue to open the sepulcre/ and whan they had opend hit/ they fonde all the gold molten with fyre full of sulphre/ And was poured and put in her mouth/ and they herd one saye/ thou desiredest this gold by couetyse take hit and drynke hit/ And than they toke the body out of the tombe And hit was cast oute in a preuy place Seneque reherceth in the book of the cryes of women that auarice is foundement of alle vices/ And valerian reherceth that auarice is a ferdfull garde or kepar of rychessis for he that hath on hym or in his kepynge moche money or other rychessis/ is allway a ferd to lose hit or to be robbid or to be slayn therfore/ And he is not ewrous ner happy that by couetyse geteth hit/ And alle the euyllys of this vice of auarice had a man of rome named septemulle For he was a frende of one named tarchus And this septemulle brente so sore and so cruelly in this synne of couetyse/ that he had no shame to smyte of the hede of his frende by trayson/ For as moche as one framosian had promysed to hym as moche weyght of pure gold as the heed weyed And he bare the sayd heed vpon a staf thurgh the cyte of rome/ and he wyded the brayn out therof and fyld hit full of leed for to weye the heuyer This was a right horrible and cruell auarice Ptolome kynge of the Egipciens poursewed auarice in an other manere For whan anthonie emperour of rome sawe that he was right riche of gold and siluer/ he had hym in grete hate and tormentid hym right cruelly And whan he shold perishe be cause of his richessis/ he toke alle his hauoyr and put hit in a shippe And wente wyth alle in to the hye see to thende for to drowne and perishe there the shippe and his rychesses be cause Anthonie his enemye shold not haue hit/ And whan he was there he durst not perisshe hit ner myght not fynde in his herte to departe from hit/ but

cam and brought hit agayn in to his hows where he resseyuyd the reward of deth therfore. And wyth oute doubte he was not lord of the richesse but the richesse was lady ouer hym/ And therfore hit is sayd in prouerbe that a man ought to seignorye ouer the riches/ and not for to serue hit/ and yf thou canst dewly vse thy rychesse than she is thy chamberyer/ And yf thou can not departe from hit and vse hit honestly at thy playsir/ knowe verily y't she is thy lady For the richesse neuer satisfieth the couetouse/ but the more he hath/ the more he desireth/ And saluste sayth that auarice distourblith fayth poeste honeste and alle these other good vertues/ And taketh for these vertues pryde. cruelte. And to forgete god/ And saith that alle thynges be vendable And after this they ought to be ware that they leue not to moche/ ner make so grete creances by which they may falle in pouerte/ For saynt Ambrose saith upon tobye. pouerte hath no lawe/ for to owe hit is a shame/ & to owe and not paye is a more shame/ yf y'u be poure beware how thou borowest/ and thinke how thou maist paye & rendre agayn yf y'u be ryche y'u hast none nede to borowe & axe/ & it is said in the prouerbes y't hit is fraude to take/ that y'u wilt not ner maist rendre & paye agayn/ and also hit is said in reproche/ whan I leue I am thy frend/ & whan I axe I am thy enemye/ as wo saith/ god at the lenynge/ & the deuyll at rendrynge/ And seneque sayth in his au[*c]torites/ that they y't gladly borowe/ ought gladly to paye/ and ought to surmonte in corage to loue hem the better be cause they leue hem & ayde hem in her nede/ For for benefetes & good tornes doon to a man ought to gyue hym thankinges therfore/ And moche more ought a man to repaye that Is lente hym in his nede/ But now in these dayes many men by lenynge of their money haue made of their frendes enemyes/ And herof speketh Domas the philosopher and sayth that my frende borowed money of me/ And I haue lost my frende and my money attones/ Ther was a marchant of Gene & also a chaungeour/ whos name was Albert gauor/ And this albert was a man of grete trouth and loyaulte/ for on a tyme ther was a man cam to hym and said & affermed that he had delyueryd in to his banke .v. honderd floryns of gold to kepe whiche was not trouth for he lyed/ whyche fyue honderd floryns the said Albert knewe not of/ ner coude fynde in all hys bookes ony suche money to hym due And this lyar coude not brynge no wytnessis/ but began to braye. crye and deffame the said albert And than this Albert callid to hym this marcha[=u]t and sayd/ Dere frende take here v. honderd florins whyche thou affermest and sayst that thou hast deliuerid to me And forthwyth tolde hem and toke hem to hym And lo this good man had leuer to lose his good than his good name and renome And this other marchant toke these florins that he had wrongfully receyuyd/ and enployed them in diuerce marchandise in so moche that he gate and encresid and wan with them .xv. thousand florins And whan he sawe that he approchid toward his deth/ and that he had no children He establisshid albert his heyr in alle thingis And sayd that with the .v. honderd florins that he had receyuyd of albert falsely/ he had goten all y't he had in the world And thus by dyuyne pourueance he that had be a theef fraudelent/ was made afterward a trewe procurour and attorney of the sayd albert/ But now in this dayes ther ben marcha[=u]s that do marchandise with other mens money whiche is taken to hem to kepe/ And whan they ben requyred to repaye hit they haue no shame to denye hit appertly/ wherof hit happend that ther was a marchant whyche had a good & grete name and renome of kepynge well suche thynges as was delyueryd to hym to kepe/ But whan he sawe place and tyme/ he reteynyd hyt lyke a theef/ So hyt

befelle that a marchant of withoute forth herd the good reporte & fame of this man/ cam to hym and deliuerid hym grete tresour to kepe/ And this tresour abode thre yer in his kepynge. And after this thre yer thys marchant cam & requyred to haue hys good deliueryd to hym agaym/ And thys man knewe well that he had no recorde ne wytnes to preue on hym this duete/ Nor he had no obligacion ne wrytynge of hym therof/ In suche wyse that he denyed alle entyerly/ And sayd playnly he knewe hym not. And whan thys good man herde and vnderstode thys. he wente sorowfully and wepynge from hym so ferre and longe that an old woman mette wyth hym/ And demanded of hym the cause of hys wepynge/ And he sayd to her/ woman hit apperteyneth no thynge to the Go thy way/ And she prayd hym that he wold telle her the cause of hys sorowe/ For parauenture she myght gyue hym counceylle good and prouffytable. And than this man told to her by ordre the caas of his fortune/ And the old woman that was wyse & subtyll demanded of hym yf he had in that cyte ony frende whiche wold be faythfull and trewe to hym And he sayd y'e that he had dyuerce frendes/ Than said she goo thou to them and saye to them that they do ordeyne and bye dyuerce cofres & chestis/ And that they do fylle them with som olde thinges of no value/ and that they fayne And saye that they be full of gold, siluer & other Iewels and of moche grete tresour/ And than that they brynge them to this sayd marchant And to saye to hym that he wold kepe them/ For as moche as they had grete trust and affiance in hym And also that they haue herd of his grete trouthe and good renome/ And also they wold goo in to a fer contre And shold be longe er they retorned agayn And whilis they speke to hym of this mater/ thou shalt come vpon them and requyre hym that he do deliuere to the/ that thou tokest to hym/ And I trowe be cause of tho good men that than shall profre to hym the sayd tresour/ And for the couetise to haue hit/ he shall deliuere to the thy good agayn/ But beware late hym not knowe in no wyse that they ben thy frendes ner of thy knowleche This was a grete and good co[=u]ceyll of a woman And verily hit cometh of nature oftentymes to women to gyue counceyll shortly and vnauysedly to thynges that ben in doute or perillous and nedeth hasty remedye/ And as y'e haue herd/ this good man dyde And dyde after her counceyll And cam vpon them whan they spack of the mater to the marchant for to deliuere to hym the sayd cofres to kepe whyche his frendes had fayned and requyred of hym that he had taken to hym to kepe/ and than an[=o]n the sayd marchant sayd to hym I knowe the now well. For I haue auysed me that thou art suche a man/ And camst to me suche a tyme/ And deliuerest to me suche a thynge whiche I haue well kept/ And than callyd his clerck/ and bad hym goo fecche suche a thynge in suche a place/ and deliuere hit to that good man For he deliuerid hit to me/ And than the good man receyuyd his good. And wente his way right Ioyously and gladd/ And this marchant trycheur and deceyuour was defrauded from his euyll malice/ And he ne had neyther that one ne that other ony thynge that was of value/ And therfore hit Is sayd in prouerbe to defraude the beguylar is no fraude/ And he that doth well foloweth oure lord And seneke faith that charyte enseygneth and techeth that men shold paye well For good payement is sometyme good confession/ And this marchant trycheour & deceyuour resembleth & Is lyke to an hound that bereth a chese in his mouth whan he swymmeth ouer a watre For whan he is on the watre He seeth the shadowe of the chese in the watre/ And than he weneth hit be an other chese/ And for couetyse to haue that/ he openth his mouth to cacche that/ And than the chese that he

bare fallyth doun in to the watre/ And thus he loseth bothe two/ And in the same wise was seruyd this marchant deceyuour/ For for to haue the coffres/ whiche he had not seen/ He deliueryd agayn that he wold haue holden wrongfully & thus by his couetise and propre malice he was deceyuyd/ And therfore hit apperteyneth to euery good & wyse man to knowe & considere in hym self how moche he had resseyuyd of other men/ And vpon what condicion hit was deliuerid to hym And hit is to wete y't this thinge apperteyneth to resseyuours & to chaungeours And to alle true marchans and other what som euyr they bee/ and ought to kepe their bookes of resaytes & of payements of whom & to whom and what tyme & day. and yf y'e demande what thynge makyth them to forgete suche thynges as ben taken to them to kepe I answere & saye that hyt Is grete couetyse for to haue tho thynges to themself and neuer to departe from them/ And it is all her thought and desire to assemble alle the good that they may gete For they beleue on none other god/ but on her richessis theyr hertes ben so obstynat/ and this sufficeth of the marchantes.

[Illustration]

This fifth chapitre of the thirde book treteh of phisiciens spicers and Apotyquarys.

The paw[=o]n that is sette to fore the quene signefyeth the phisicyen/ spicer and Apotyquaire/ and is formed in the figure of a man/ And he is sette in a chayer as a maystre and holdeth in his right hand a book/ And an ample or a boxe wyth oynementis in his lyft hand/ And at his gurdell his Instrumentis of yron and of siluer for to make Incysions and to serche woundes and hurtes/ and to cutte apostumes/ And by thyse thynges ben knowen the cyrurgyens/ By the book ben vnderstanden the phisicyens/ and alle gramaryens. logicyens/ maistres of lawe. of Geometrye. Arismetryque. musique and of astronomye/ And by the ampole/ ben signefyed the makers of pigmentaries spicers and apotiquayres/ and they that make confections and confytes and medecynes made wyth precyous spyces And by the ferremens and Intrumentis that hangen on the gurdell ben signefied the cyrurgyens & the maistres And knowe y'e for certain that a maystre & phisicyen ought to knowe the proporcions of lettres of gramayre/ the monemens the conclusions and the sophyms of logyque. the gracio'9 speche and vtterance of rethorique/ the mesures of the houres and dayes/ and of the cours and astronomye/ the nombre of arsmetryk/ & the Ioyous songes of musyque And of all thyse tofore named/ the maistres of rethorique ben the chyef maistres in speculatyf/ And the two laste that ben practisiens and werkers ben callyd phisicyens and cyrurgyens/ how well they ben sage and curyous in thyse sciences/ And how well that mannes lyf is otherwhile put in thordonance of the phisicyen or cyrurgyen/ yf he haue not sagesse and wysedom in hym self of dyuerce wrytynges and is not expert/ And medlyth hym in the craft of phisique/ He ought better be callyd a slear of peple than a phisicyen or cyrurgyen. For he may not be a maystre but yf he be seure and expert in the craft of phisike that he sle not moo than he cureth and maketh hoole/ And therfore sayth Auycenne in an Enphormye/ yf thou curest the seke man. And knowest not the cause/ wherof the maladye ought to be cured/ Hit ought to be sayd that thou hast cured hym by fortune and happe more than by ony comynge. And in alle thyse maner of peple/ Ther ought to be meurte of good

maners/ Curtoysie of wordes/ Chastite of the body promysse of helthe/ And as to them that ben seke contynuell visitacion of them/ And they ought to enquere the cause of theyr sekenessis and the sygnes and tokens of theyr maladyes/ As is rehercid in the bookes of the au[ct]ours by ryght grete diligence/ And specially in the bookes of ypocras galyene and of Auycene And whan many maysters and phisicyens ben assemblid to fore the pacyent or seke man/ They ought not there to argue and dispute one agaynst an other/ But they ought to make good and symple colacion to geder. In suche wyse as they be not seen in theyr desputynge one agaynst an other/ for to encroche and gete more glorye of the world to them self/ than to trete the salute and helthe of the pacyent and seke man/ I meruayll why that whan they fee and knowe that whan the seke man hath grete nede of helthe wherfore than they make gretter obiection of contraryousnes for as moche as the lyf of man is demened and put amonge them but hit is be cause that he is reputed most sage and wise that argueth and bryngeth in moste subtyltes/ And alle this maner is amonge doctours of lawe that treteth no thynge of mannes lyf. But of temporelle thynges/ that he is holden most wyse and best lerned/ that by his counceyll can beste acorde the contencions and discencions of men And therfore ought the phisicyens and cyrurgyens leue whan they be to fore the seke men all discencions and contrariousnes of wordes/ in suche wyse that hit appere that they studye more for to cure the seke men than for to despute And therfore is the phisicien duly sette to fore the quene/ So that it is figured that he ought to haue in hymself chastite and contynence of body For hit apperteyneth somtyme vnto the phisicien to visite and cure Quenes duchesses and countesses and alle other ladyes and see and beholde some secrete sekenessis that falle and come otherwhile in the secretis of nature And therfore hit apperteyneth to them that they be chaste and followe honeste and chastite/ and that they be ensample to other of good contynence/ For valerian reherceth that ypocras was of meruayllous contynence of his body/ For whan he was in the scoles of Athenes/ he had by hym a ryght fayr woman whyche was comyn And the yonge scolers and the Ioly felaws that were students promisyd to the woman a besa[=u]t/ yf she myght or coude torne the corage of ypocras for to haue to doon wyth her/ And she cam to hym by nyght and dyde so moche by her craft that she laye wyth hym in his bedd/ but she coude neuer do so moche y't she myghte corrumpe his chaste liuynge ne defoule the crowne of his conscience/ and whan the yonge men knewe that she had ben with hym all the night And coude not chaunge his contynence/ they began to mocque her/ And to axe and demande of her the besant that they had gyuen to her. And she answerd That hit was holden & gaged vpon an ymage/ For as moche as she might not change his contynence she callyd hym an ymage/ And in semblable wyse reherceth Valerian of Scenocrates philosopher that ther laye with hym a woman all night And tempted hym disordinatly/ but that ryght chafte man/ made neuer femblant to her/ Ner he neuer remeuyd from his ferme purpoos/ In fuche wyfe as fhe departid from hym alle confufid and fhamed/ Cornelius fcipion that was fent by the romayns for to gouerne fpayne/ as fone as he entryd in to the caftellis & in to the townes of that lande He began to take away all the thynges that miht ftyre or meue his men to lecherye wherfore men fayd that he drof & chaced oute of the ofte moo than two thoufand bourdellys/ And he that was wyfe knewe well that delyte of lecherye corrupted and apayred the corages of tho men that ben abandonned to that fame delyte/ And herof

hit is fayd in the fables of the poetes in the first book of the Truphes of the Philofophers by figure. That they that entryd in to the fontayne of the firenes or mermaydens/ were corrumpid and they toke them away with hem/ And alfo y'e ought to knowe that they ought to entende diligently to the cures of the enfermytees in cyrugerye/ They ought to make theyr playfters acordynge to the woundes or fores/ yf the wounde be rounde The enplaftre muft be round/ and yf hyt be longe/ hyt mufte be longe/ and otherwhile hit mufte be cured by his contrarye/ lyke as it apperteyneth to phifique/ For the hete is cured by cold/ and the colde by hete/ and Ioye by forowe/ and fbrowe by Ioye/ and hit happeth ofte tymes that moche peple be in grete paryll in takynge to moche Ioye and lefe her membris/ and become half benomen in the fodayn Ioye/ And Ioye is a replection of thynge that is delectable fprad a brode in all the membris with right grete gladnes And all men entende and desire to haue the sayd ryght grete Ioye naturelly/ But they knowe not what may ensue and come therof And this Ioye cometh otherwhile of vertue of conscience/ And the wyse man is not wyth out this Ioye And this Ioye is neuer Interrupt ne in deffaulte at no tyme For hit cometh of nature And fortune may not take a waye that nature geueth. And merciall saith that Ioyes fugitiues abide not longe But flee away an[=o]n And valerian reherceth that he that hath force and strengthe raysonable/ hath hit of verray matier of complection and that cometh of loue And this Ioye hath as moche power to departe the sowle fro the body/ as hath the thondre/ wherof hit happend that ther was a woman named lyna whiche had her husbonde in the warre in the shippis of the romayns/ And she supposid verily that he was ded/ But hit happend that he cam agayn home And as he entryd in to his yate/ his wif met wyth hym sodeynly not warned of his comyng. whiche was so glad and Ioyous/ that in enbrasynge hym she fyll doun ded Also of an other woman to whom was reportid by a fals messanger that her sone was ded/ whiche wente home soroufully to her hows/ And afterward whan her sone cam to her/ As sone as she sawe hym/ she was so esmoued wyth Ioye y't she deyde to fore hym/ But this is not so grete meruaylle of women as is of the men/ For the women ben likened vnto softe waxe or softe ayer and therfor she is callid mulier whyche Is as moche to saye in latyn as mollys ær. And in english soyfte ayer/ And it happeth ofte tymes that the nature of them that ben softe and mole/ taketh sonner Inpression than the nature of men that is rude and stronge/ Valerye reherceth & sayth that a knyght of rome named Instaulosus that had newly conquerid and subiuged the yle of Corsika/ And as he sacrefyed his goddes/ he receyuyd lettres from the senate of rome In whiche were conteyned dyuerse supplicacyons/ The whiche whan he vnderstood he was so glad and so enterprysed wyth Ioye/ that he knewe not what to doo And than a great fumee or smoke yssued out of the fyre In whiche he dispayred and fyll in to the fyre/ where he was anone ded/ And also it is sayd that Philomenus lawhed so sore and distemperatly that he deyde alle lawhynge/ And we rede that ypocras the phisicien fonde remedye for thys Ioye/ For whan he had longe dwellyd oute of his contreye for to lerne connynge and wysedom/ And shold retorne vnto his parentis and frendes/ whan he approchid nyghe them/ He sente a messanger to fore for to telle to them his comynge/ and comanded hym to saye that he cam/ for they had not longe to fore seen hym/ And y't they shold attempre them in that Ioye er they shold see hym/ And also we rede that Titus the sone of vaspasian whan he had conquerd Iherusalem and abode in y'e contrees by/ he herde y't his fader vaspasian

was chosen by alle the senate for to gouerne the empire of rome/ wherfore he had so right grete Ioye that sodaynly he loste the strength of all his membres And be cam all Impotent And whan Iosephus that made the historye of the romayns ayenst the Iewis/ whiche was a ryght wyse phisicien sawe and knewe the cause of this sekenes of the sayd Titus/ he enquyred of his folk yf he had in hate ony man gretly so moche that he myght not here speke of hym ner well see hym And one of the seruantes of Titus sayd that he had one persone in hate so moche. That ther was no man in his court so hardy that durste name hym in his presence/ and than Iosephus assigned a day whan this man shold come/ and ordeyned a table to sette in y'e sight of Titus/ and dide hit to be replenysshid plenteuously wyth alle dayntees/ and ordeyned men to be armed to kepe hym in suche wyse that no man shold hurte hym by the comandement of Titus/ and ordeyned boutellers. Coques/ and other officers for to serue hym worshipfully lyke an Emþour/ and whan all this was redy/ Iosephus brought in this man that tytus hated and sette hym at the table to fore his eyen and was seruyd of yonge men wyth grete reuerence ryght cortoisly/ And whan titus behelde his enemye sette to fore hym wyth so grete honour/ He began to chauffe hym self by grete felonnye And comanded his men that this man sholde be slayn/ And whan he sawe/ that none wold obeye hym But that they all way seruyd hym reuerently/ he waxe so ardante/ and enbrasid wyth so grete yre/ that he that had lost alle the force and strengthe of his body and was alle Impotent in alle his membres/ Recoured the helthe agayn and strengthe of his membris/ by the hete that entryd in to the vaynes and sinewis And Iosephus dide so moche that he was recouerid and hole/ And that he helde that man no more for his enemye/ but helde hym for a verray true frende/ And afterward made hym his loyall felawe and compaignon And the espicers and Apotecayres ought to make truly suche thynges as Is comanded to them by the physicyens/ And they ought taccomplisshe theyr billis and charge curyously wyth grete dilygence/ that for none other cause they shold be ocupied but in makynge medicynes or confections truly. And that they ought vpon paryll of theyr sowle not to forgete/ by negligence ne rechelesnes to gyue one medecyne for an other/ In suche wyse that they be not slears of men/ And that they do putte no false thynges In her spyces for to empayre or encrecynge the weyght. For yf they so doo they may better be callyd theuys than espiciers or apotecayris/ And they that ben acustomed to make oynements they ought to make hyt proprely of true stuf and of good odoure after the receptes of the auncyent doctours/ And after the forme that the phisicyens and cyrurgyens deuyse vnto them/ Also they ought to beware that for none auayle ne gyfte that they myght haue/ that they put in theyr medicynes no thynge venemous ner doynge hurte or scathe to ony persone of whom they haue none good ne veray knowlege/ to thende that they to whom the medicynes shold be gyuen/ torne not to them hurte ne domage/ ne in destructions of theyr neyghbours/ and also that they that haue mynystrid tho thyngis to them/ ben not taken for parteners of the blame and of the synne of them The cyrurgyens ought also to be debonayr. amyable. & to haue pytye of their pacyents. And also they ought not be hasty to launse and cutte apostumes and soores/ ne open the heedes/ ner to arrache bones broken/ but yf the cause be apparant/ For they myght ellys lose theyr good renome And myght better be callyd bouchers than helars or guarisshors of woundes and soores And also hit behoueth that alle this maner of peple foresayd that haue the charge for to make hole and guarisshe alle maner of maladyes and Infirmitees that they first haue the

cure of themself/ and they ought to purge themself fro alle apostumes and alle vices/ In suche wyse that they be net and honeste and enformed in alle good maners/ And that they shewe hem hole and pure & redy for to hele other And herof sayth Boecius de Consolacione In his first booke that the sterres that ben hid vnder the clowdes maye gyue no light. And therfore yf ony man wole beholde clerly the verite. Late hym wythdrawe hym fro the obscurete and derkenes of the clowdes of ignorance/ for whan the engyne of a man sheweth in Ioye or in sorowe/ The pensee or thought is enuoluped in obscurete & vnder the clowdes.

[Illustration]

The sixthe chapitre of the thirde book treteth of the sixth pawn/ whiche is lykened to tauerners hostelers and vitayllers.

The sixthe pawn whiche standeth to fore the Alphyn on the lyfte syde is made in thys forme. For hit is a man that hath the right hande stracched oute as for to calle men/ And holdeth in his lyfte hande a loof of breed and a cuppe of wyn/ And on his gurdell hangynge a boudell of keyes/ And this resembleth the Tauerners. hostelers. and sellars of vitaylle. And thise ought proprely to be sette to fore the/ Alphyn as to fore a Iuge For ther sourdeth ofte tymes amonge hem contencion noyse and stryf/ whiche behoueth to be determyned and trayted by the alphyn/ whiche is Iuge of the kynge/ And hit apperteyneth to them for to seke and enquyre for good wyns and good vitayll for to gyue and selle to the byers/ And to them that they herberowe/ And hit apperteyneth to them well to kepe their herberowes and Innes/ and alle tho thyngis that they brynge in to their loggynge and for to putte hyt in seure and sauf warde and kepynge/ And the firste of them Is signefyed by the lyfte hande in whiche he bereth brede and wyn/ and the seconde is signefied by the right hande whiche Is stracched oute to calle men/ And the thirde is representid by the keyes hangynge on y'e gurdell And thyse maner of peple ought teschewethe synne of glotonye/ For moche peple comen in to theyr howses for to drynke and to ete for whyche cause they ought resonably to rewle them self and to refrayne them from to moche mete and drynke/ to thende that they myght the more honestly delyuere thyngis nedefull vnto the peple that come vnto them/ And no thynge by oultrage that myght noye the body/ For hit happeth ofte tymes that ther cometh of glotonye tencyons. stryfs. ryottes. wronges. and molestacyons/ by whiche men lese other while their handes. theyr eyen. and other of their membres/ And somtyme ben slayn or hurt vnto the deth/ As it is wreton In vitas patrum As on a tyme an heremyte wente for to visite his gossibs/ And the deuyll apperyd to hym on the waye in lykenes of an other heremyte for to tempte hym/ and saide thou hast lefte thyn heremitage And goost to visyte thy gossibs/ The behoueth by force to doo one of y'e thre thynges that I shall saye to the/ thou shalt chese whether thou wylt be dronke/ or ellys haue to do flessly wyth thy gossib or ellys thou shalt sle her husbond whiche is thy gossip also/ And the hermyte that thought for to chese the leste euyll chace for to be dronke/ and whan he cam vnto them he dranke so moche that he was veray dronke And whan he was dronke and eschaussed wyth the wyn/ he wold haue a doo wyth hys gossib/ And her husbonde withstode hym. And than the hermyte slewe hym/ And after that laye by his gossib and knewe her flessly/ And thus by this synne of dronkenship he accomplisshid the two other synnes/

By whyche thynge y'e may vnderstande and knowe y't whan the deuyll wyll take one of the castellis of Ihesu cryst/ that is to wete the body of a man or of a woman/ he doth as a prynce that setteth a siege to fore a castell that he wold wynne/ whiche ent[=e]deth to wynne the gate/ For he knoweth well whan he hath wonne the gate/ he may sone doo hys wylle wyth the castell. And in lyke wyse doth the deuyll wyth euery man and woman For whan he hathe wonne the gate/ that is to wete the gate of y'e mouth by glotonye or by other synne He may doo wyth the offices of the body alle his wylle as y'e haue herd to fore/ And therfore ought euery man ete and drynke sobrely in suche wyse as he may lyue. And not lyue to ete glotonsly & for to drynke dronke. y'e see comunly that a grete bole is suffisid wyth right a lityll pasture/ And that a wode suffiseth to many olefauntes And hit behoueth a man to be fedde by the erthe or by the see/ neuertheles it is no grete thynge to fede the bely/ no thynge so grete as is the desire of many metes Wherof Quyntylian sayth/ That hit happeth ofte tymes in grete festes & dyners/ that we be fylde wyth the sight of the noble and lichorous metis and whan we wolde ete we ben saciat and fild/ And therfore hit is sayd in prouerbe/ hit is better to fylle the bely than the eye/ And lucan sayth that glotonye is the moder of alle vices/ and especiall of lecherye/ and also is destroyer of all goodes And may not haue suffisance of lityll thynge/ A couetous honger what sekest thou mete and vitayllis on the lande & in the see/ And thy Ioye is nothynge ellis but to haue playnteuous disshes & well fylde at thy table lerne how men may demene his lyf with lityll thynge/ And Cathon sayth in no wyse obeye to glotonye whiche is frende to lecherye/ And the holy doctour saynt Augustyn sayth/ the wyn eschausseth the bely that falleth anone to lecherye/ The bely and the membrers engendreurs ben neyghebours to lecherye/ And thus the vice of glotonye prouoketh lecherye/ wherof cometh forgetenes of his mynde and destruction of alle quyk and sharp reson And is cause of distemþance of his wittes/ what synne is fowler than this synne and more stynkynge ne more domageous For this synne hath taken away the vertue of the man/ his prowesse languisshed/ his vertue is torned to diffame/ the strengthe of body and of corage is torned by the/ And therfore sayth Basille le grant/ late vs take hede how we serue the bely & the throte by glotonye lyke as we were dombe bestes/ and we studye for to be lyke vnto belucs of the see/ to whom nature hath gyuen to be alleway enclined toward the erthe & ther to loke for to serue theyr belyes/ And herof saith Boecius de consolacione in his fourth book/ that a man that lyuyth and doth not the condicions of a man/ may neuer be in good condicion/ Than muste hit nedes be that he be transported in nature of a beste or of a belue of the see. How well that ryght grete men and women full of meruayllous sciences and noble counceyll in thise dayes in the world ben kept and nourisshid in this glotonye of wyns and metes/ and ofte tymes ben ouerseen/ how suppose y'e/ is hit not right a perillous thinge that a lord or gouernour of the peple and c[=o]mun wele/ how well that he be wyse/ yf he eschauffe hym sone so that y'e wyn or other drynke surpryse hym and ouercome his brayn. his wisedom is loste/ For as Cathon sayth/ Ire enpessheth the corage in suche as he may not kepe verite and trouthe And anon as he is chauffed/ lecherye is meuyd in hym in suche wyse that the lecherye maketh hym to medle in dyuerse villayns dedes/ For than his wyfedom is a slepe and goon/ And therfore fayth Ouide in his booke De remedio amoris/ yf thou take many and dyuerce wyns/ they apparylle and enforce the corages to lecherye And Thobie witnessith in his booke/ that luxurye destroyeth the

body/ and mynussheth richesses/ she loseth the sowle/ she febleth y'e strengthe she blyndeth the syght/ and maketh the wys hoos & rawe/ Ha A ryght euyll and fowle synne of dronkenship/ by the perissheth virginite/ whiche is suster of angellis possedynge alle goodnes and seurte of all Ioyes pardurable/ Noe was one tyme so chauffed with wyn/ that he discouerd and shewid to his sones his preuy membres in suche wyse as one of his sones mocqued hym/ And that other couerd hem/ And loth whiche was a man right chaste. was so assoted by moche drynkynge of wyn/ that on a montayne he knew his doughters carnelly/ And had to doo wyth them as they had ben his propre wyues. And crete reherceth that boece whiche was flour of the men/ tresor of rychesses/ singuler house of sapience myrour of the world/ Odour of good renome/ and glorye of his subgettis loste alle thyse thynges by his luxurye We haue seen that dyuerce that were Ioyned by grete amyte to geder whiles they were sobre/ that that one wolde put his body in paryll of deth for that other/ and whan they were eschauffed with wyn & dronke/ they haue ronne eche vpon other for to fle* hem/ And somme haue ben that haue slayn so his frende/ Herodes Antipas had not doon saynt Iohn baptist to ben beheded/ ne had y'e dyner ben full of glotonye and dronkenship/ Balthazar kynge of babilone had not ben chaced out of his kyngdom ne be slayn yf he had ben sobre amonge his peple whom tyrus and dares fonde dronken and slewe hym The hostelers ought to be well bespoken and courtoys of wordes to them that they receyue in to their loggynge For fayr speche & Ioyous chiere & debonayr/ cause men to gyue the hostelyer a good name/ And therfore it is said in a comyn prouerbe/ Courtoyse langage and well saynge is moche worth and coste lityll/ And in an other place it is said that curtoysie passeth beaulte/ Also for as moche as many paryls and aduentures may happen on the wayes and passages to hem that ben herberowed with in their Innes/ therfore they ought to accompanye them whan they departe and enseigne them the wayes and telle to them the paryls/ to thende that they may surely goo theyr viage and Iourney/ And also they ought to kepe their bodies, their goodes. And the good fame and renomee of their Innes/ we rede that loth whan he had receyuyd the angels in to his hous right debonairly whiche he had suppofid had ben mortall men and stra[=u]gers/ to thende that they shold eskape the disordinate and vnnaturell synne of lecherye of the sodamites/ by the vertu of good fayth/ he sette a part the naturell loue of a fader/ and proferd to them his doughters whiche were virgyns/ to thende that they shld kepe them and defende them fro that vyllayne and horrible synne/ And knowe y'e for certayn that alle tho thynges that ben taken and delyueryd to kepe to the hoste or hostesses they ought to be sauf and yelden agayn wyth out a payringe For the ooste ought to knowe/ who that entryth in to his hous for to be herberowhed taketh hit for his habitacion for the tyme/ he hymself and alle suche thynges as he bryngeth wyth hym ben comysed of ryght in the warde and kepynge of the hoost or hosteler And ought to be as sauf as they were put in his owen propre hous And also suche hoostis ought to hold seruantes in their houses whiche shold be trewe and wyth oute auarice In suche wise that they coueyte not to haue the goodes of their ghestes And that they take not away the prouender fro theyr horses whan hyt is gyuen to them/ that by thoccasion therof theyr horsis perisshe not ne faylle theyr maister whan they haue nede/ and myght falle in the handes of theyr enemyes/ For than sholde the seruantes because of that euyll/ wherfore theyr maisters shold see to For wyth oute doubte this thynge is worse than thefte Hit

happend on a tyme in the parties of lomberdye in the cyte of Iene y't a noble man was logged in an hostelerye wyth moche compaignye/ And whan they had gyuen prouendour to their horses/ In the first oure of the nyght, the seruant of the hous cam secretly to fore y'e horses for to stele away their prouender/ And whan he cam to the lordes hors/ The hors caught wyth his teth his Arme and helde hit faste that he myght not escape/ And whan the theef sawe that he was so strongly holden/ he began to crye for the grete payne that he suffryd and felte/ In suche wyse that the noble mannes meyne cam with the hooste/ But in no maner/ ner for ought they coude doo They coude not take the theef out of the horses mouth vnto the tyme that the neyghbours whiche were noyed wyth the noyse cam and sawe hit/ And than the theef was knowen and taken and brought to fore the Iuge And confessid the feet and by sentence diffinytyf was hanged and lost his lyf/ And in the same wyse was an other that dyde so/ And the hors smote hym in the visage/ That the prynte of the horse shoo and nayles abode euer in his visage/ Another was right cruell and villaynous fylle at tholouse/ Hit happend a Ionge man and his fader wente a pilgremage to saynt Iames in Galyce And were logged in an hostelrye of an euyll hoost and full of right grete couetyse/ In so moche that he defired and coueyted the goodes of the two pilgrimes And here vpon auysed hym and put a cuppe of siluer secretly in the male that the yonge man bare/ And whan they departed oute of their loggynge/ he folowed after hem and sayd to fore the peple of the court that they had stolen and born away his cuppe/ And the yonge man excused hym selfe and his fader/ And sayde they were Innocent of that caas/ And than they serchid hem and the cuppe was founden in the male of the yonge man And forthwyth he was dampned to the deth and hanged as a theef/ and this feet doon all the goodes that langed to the pilgrym were deliuerid to the ooft as c[=o]fisqued And than the fader wente for to do his pilgremage/ and whan he cam agayn he muste nedes come & passe by the place where his sone henge on the gibet And as he cam he complaygned to god and to saynt Iames how they might suffre this auenture to come vnto his sone,' Anone his sone that henge spack to his fader And sayde how that saynt Iames had kepte hym with out harme And bad his fader goo to the Iuge and shewe to hym the myracle/ And how he was Innocent of thot fayte/ And whan this thynge was knowen the sone of the pilgryme was taken down fro the gibet/ and the cause was brought to fore the Iuge And the hooste was accused of the trayson/ and he confessid his trespaas/ and sayd he dide hit for couetyse to haue his good And than the Iuge dampned hym for to be hanged on the same gibet where as the yonge pilgryme was hanged And that I haue sayd of the seruantes beynge men/ the same I saye of the women as chambriers and tapsters For semblable caas fille in spayne at saynt donne of a chamberier/ that put a cup in lyke wyse in the scrippe of a pilgryme/ be cause he wold not haue a doo wyth her in the synne of lecherye/ wherfore he was hanged And his fader & moder that were there with hym wente and dyde her pilgremage/ And whan they cam agayn they fonde her sone lyuynge/ And whan they wente and told the Iuge/ whiche Iuge sayd that he wolde not byleue hit tyll a cok and an henne which rosted on the fyre were a lyue & the cok crewe. And anon they began wexe a lyue & the cok crewe and began to crowe and to pasture/ and whan the Iuge sawe this miracle/ he wente and toke doun the sone/ and made the chamberyer to be taken and to be hanged/ wherfore I saye that the hoostes ought to hold no tapsters ne chamberyers/ but yf they were good meure and honeste/ For

many harmes may be falle and come by the disordenat rewle of seruantes.

[Illustration]

The seventh chapitre of the thirde Tractate treteth of kepars of townes customers and tolle gaderers &c.

The gardes and kepars of of cytees ben signefied by the .vii. pawn whiche stondeth in the lyfte side to fore the knyght/ And is formed in the semblance of a man holdynge in his right hande grete keyes And in his lifte hande a potte & an elle for to mesure with And ought to haue on hys gurdell a purse open/ And by the keyes ben signefyed the kepars of the cytees and townes and comyn offices/ And by the potte and elle ben signefyed them that haue the charge to weye and mete & mesure truly And by the purse ben signefyed them that reseyue the costumes. tolles. scawage. peages/ and duetes of the cytees & townes And thyse peple ben sette by ryght to fore the knyght/ And hit behoueth that the gardes and offycers of the townes be taught And enseygned by the knyghtes/ And that they knowe and enquyre how y'e cytees or townes ben gouerned/ whiche apperteyneth to be kept and defended by the knyghtes. And first hit apperteyneth that the kepars of the cyte be dilygente. besy. clere seeynge and louers of the comyn prouffit & wele/ as well in the tyme of pees as in the tyme of warre/ They ought allewaye to goo in the cyte and enquyre of all thynges and ought rapporte to the gouernours of the cyte suche thynge as they fynde and knowe And suche thynge as apperteyneth and to the seuerte of the same/ and to den[=o]nce and telle the defaultes and paryls that ther bee/ And yf hit be in tyme of warre they ought not to open the yates by nyght to no man/ And suche men as ben put in this office/ ought to be of good renome. & fame, trewe. and of good conscience/ In suche maner that they loue them of the Cyte or town/ And that they put to no man ony blame or vilanye with out cause by enuye. Couetyse ne by hate/ but they ought to be sory and heuy whan they see that ony man shold be complayned on for ony cause. For hit happeth ofte tymes that diuerce officers accuse the good peple fraudulently/ To thende that they myght haue a thanke & be preysed and to abide stille in theyr offices And trewly hit is a grete and hye maner of malyse to be in will to doo euyll and diffame other wyth oute cause to gete glorie to hymself Also the kepars and officers of cytees ought to be suche that they suffre no wronges ne vylonyes to fore the Iuges and gouernours of cytees wyth out cause to be doon to them that ben Innocents/ but they ought to haue theyr eyen and regarde vnto hym/ that knoweth the hertes and thoughtes of alle men/ And they ought to drede & doubte hym wyth oute whos grace theyr wacche and kepynge is nought And that promyseth to them that doubte hym shall be ewrous & happy/ And by hym ben alle thynges accomplisshid in good/ Hit is founden in the historyes of rome that Temperour Frederik the seconde dide do make a gate of marble of meruayllous werke and entayll in the cyte of capnane vpon the watre that renneth aboute the same/ and vpon this yate he made an ymage lyke hymself sittynge in his mageste/ and two Iuges whiche were sette/ one on the right side and that other on the lifte side. And vpon the sercle aboue the hede of the Iuge on y'e ryght side was wreton/ Alle they entre seurly that will liue purely/ And vpon the sercle of the Iuge on the lifte side was wreton/ The vntrewe man ought to doubte/ to doo thynge that he be put to prison fore/ and on the sercle aboue thempour was

wreton/ I make them live in misery/ that I see lyue dismesurably/ And therfore hit apperteyneth to a Iuge to shewe to the peple for to drede and doubte to doo eyull/ And hit apperteyneth to the gardes and officers to doubte the Iuges and to do trewly their seruyces and offices And hit apperteyneth to a prynce to menace the traytours and the malefactours of right greuous paynes. And herof we fynde in the auncyent historyes of cecylle that the kynge denys had a broder whom he louyd sore well/ But allway where he wente he made heuy and tryste semblant/ And thus as they wente bothe to gyder on a tyme in a chare/ ther cam agayn hem two poure men wyth glad visage but in foule habite/ And y'e kynge anon as he sawe them/ sprange out of his chare and resseyuyd them worshipfully with grete reuerence/ wherfore his barons were not only ameruaylled but also angry in their corages/ notwithstandynge fere and drede letted them to demande hym the cause/ But they made his broder to demande the cause and to knowe the certaynte/ And whan he had herde his broder saye to hym the demande/ and that he was blessyd & also a kynge whiche was ryche and full of delites & worshipis/ he demanded hym yf he wold assaye & knowe the grace and beneurte of a kynge And his broder answerd y'e/ And that he desired and requyred hit of hym/ and than the kinge comanded vnto alle his fugettis that they shold obeye in alle thynges only vnto his broder And than whan the oure of dyner cam and alle thynge was redy/ the broder was sette at the table of the kynge And whan he sawe that he was seruyd wyth right noble botelliers and other officers. And he herde the sownes of musicque right melodious The kynge demanded hym than/ yf he supposid y't he were benerous and blessid. And he answerd I wene well that I am right well blessid and fortunat/ and that I haue well proued and fele and am expert therof And than the kynge secretly made to be hanged ouer his heed a sharp cuttynge swerde hangynge by an hors heer or a silken threde so small that no man myght see hit where by hit henge/ and whan he sawe his broder put no more his hand to the table/ ne had no more regarde vnto his seruantes/ he sayd to hym why ete y'e not/ ar y'e not blessid/ saye yf y'e fele ony thynge otherwyse than blessid and well/ And he answerde for as moche as I see this sharp swerde hangynge so subtilly and parillously ouer my hede I fele well that I am not blessid for I drede that hit shold falle on my hede/ and than discouerd the kynge vnto hem alle wherfore he was allway so heuy cherid and triste For where he was/ he thought alleway on the swerde of the secrete vengeance of god/ whiche he behelde alleway in his herte/ wherfore he had all way in hymself grete drede And therfore he worshipid gladly the poure peple wyth glad visage and good conscience And by this sheweth the kynge well/ that what man that is all way in drede is not all way mery or blessid. And herof fayth Quyntilian that this drede surmounteth alle other maleurtees and euyllys/ For it is maleurte of drede nyght and day/ And it is verite that to hym that Is doubtid of moche peple/ so muste he doubte moche/ And that lord is lasse than hys seruantes that dredeth hys seruantes/ And truly hit Is a ryght sure thynge to drede no thinge but god/ And sumtyme right hardy men ben constrayned to lyue in drede/ Drede causeth a man to be curyous and besy to kepe the thynges that ben commysed to hym that they perisshe not/ But to be to moche hardy & to moche ferdfull/ bothe two ben vices The comyn officers ought to be wise, discrete. and well aduysed in suche wyse that they take not of y'e peple ne requyre no more than they ought to haue by reson/ ne that they take of the sellars ne of the byars no more than the right custom and toll/ for they bere the name of a

c[=o]mun þsone/ and therfore ought they to shewe them c[=o]mune to all men/ and for as moche as the byars and sellars haue somtyme moche langage/ they ought to haue with them these vertues/ that is to wete pacience and good corage with honeste/ for they that ben despiteus to the c[=o]mun/ ben otherwhile had in vilayns despite/ therfore beware y't thou haue no despite to the poure mendicants/ yf thou wilt come and atteyne to thingis fouerayn/ for the Iniurye that is don wyth oute cause/ torneth to diffame hym that doth hit/ A Iogheler on a tyme beheld socrates and sayd to hym/ thou hast the eyen of corrumpour of children & art as a traytre. And whan his disciples herde hym/ they wold auengid their maister/ But he repreuyd hem by suche sentence saynge/ Suffre my felaws for I am he and suche one as he saith/ by the sight of my visage/ But I refrayne and kepe me well from suche thynge/ This same socrates hymself was chidde and right fowll spoken to of his wyf/ and she Imposid to hym many grete Iniuries with out nombre/ and she was in a place a boue ouer his heed And whan she had brawlid I nowh/ she made her watre and pourid hit on his heed And he answerd to here no thynge agayn/ sauf whan he had dryed and wypid his heed he said/ he knewe well that after suche wynde and thonder sholde comen rayn and watre And the philosophres blamed hym that he coude not gouerne two women/ that was his wyf and his chambrere/ And shewde hym that one cokke gouerned well .xv. hennes He answerd to them that he was so vsed and accustomed wyth theyr chydynge that the chydynges of them ne of estrangers dyde hym no greef ne harme/ gyue thou place to hym that brawleth or chydeth/ and in suffrynge hym thou shalt be his vaynquysshour/ And Cathon fayth whan thou lyuyst ryghtfully recche the not of the wordes of euyll peple/ And therfore it is sayd in a comyn prouerbe/ he that well doth reccheth not who seeth hit/ & hit is not in our power to lette men to speke. And prosper sayth that to good men lacketh no goodnes/ ner to euyll men tencions stryfs and blames And pacience is a ryght noble vertu/ as a noble versifier sayth That pacience is a ryght noble maner to vaynquysshe. For he that suffreth ouercometh. And yf thou wylt vaynquysshe and ouercome/ lerne to suffre/ The peagers ner they that kepe passages ought not to take other peage ne passage money but suche as the prynce or the lawe haue establisshid/ so that they be not more robbeurs of moneye than reseyuours of peage and passage And hit apperteyneth to them to goo out of the paryllo*9 weyes and doubteuous for to kepe their office and they ought to Requyre theyr passage of them that owe to paye hit wyth oute noynge and contencion/ And they ought not to loue the comyn prouffyt so moche/ That they falle in the hurtynge of theyr conscience/ For that shold be a manere of robberye And herof sayth ysaye Woo to the that robbest/ For thou thy self shalt be robbed/ The gardes or porters of the gates of cytees and of the comyn good ought to be good and honeste. And alle trouthe ought to be in them and they ought not to take ne withdrawe the goodes of the comyn that they haue in kepynge/ more than apperteyneth to them for theyr pension or ffee/ So that they that ben made tresorers and kepars ben not named theuys/ For who that taketh more than his/ He shall neuer thryue wyth alle/ ner shall not enioye hit longe/ For of euyll gooten good the thyrde heyr shall neuer reioyce/ And this suffisith &c.

[Illustration]

This chapitre of the thirder book treteth of Rybauldis players of dyse and messagers and corrours

The rybaulders, players of dyse and of messagers and corrours ought to be sette to fore the rook/ For hit apperteyneth to the rook whiche is vicayre & lieutenant of the kynge to haue men couenable for to renne here and there for tenquyre & espie the place and cytees that myght be contrarye to the kynge/ And thys pawn that representeth thys peple ought to be formed in this maner/ he must haue the forme of a man that hath longe heeris and black and holdeth in his ryght hand a lityll monoye And in his lyfte hande thre Dyse And aboute hym a corde in stede of a gyrdell/ and ought to haue a boxe full o lettres And by the first/ whiche is money is vnderstand they that be fole large & wastours of theyr goodes/ And by the seconde whiche is the dyse Ben represented the players at dyse/ Rybauldes and butters/ And by the thyrde whiche is the boxe full of lettres ben representid the messagers. corrours/ And berars of lettres/ And y'e shall vnderstande that the roock whiche is vicaire of the kynge whan he seeth to fore hym suche peple as ben folelarge and wastours. He is bounden to constitute and ordeyne vpon them tutours and curatours to see that they etc not ne waste in suche maner theyr goodes ne theyr heritages/ that pouerte constrayne hem not to stele/ For he that of custome hath had haboundance of moneye and goth and dispendith hit folily and wasteth hit away/ whan he cometh to pouerte and hath nought/ he must nedes begge and axe his breed, orellis he must be a theef/ For suche maner of peple/ yf they haue ben delicyous they wyll not laboure/ for they haue not lerned hit And yf they be noble and comen of gentilmen/ they be ashamed to axe and begge/ And thus muste they by force whan they haue wasted theyr propre goodes yf they wyll lyue they muste stele and robbe the goodes of other And y'e shall vnderstande that folelarge is a right euyll vice/ for how well that she dooth good and prouffyt somtyme to other yet she doth harme and domage to hym that so wasteth. Caffiodore admonesteth the fole larges to kepe theyr thynges/ that by no necessite they falle in pouerte/ And that they be not constrayned to begge ne to stele of other men For he faith that hit is gretter subtilte to kepe well his owne goodes/ than to fynde strange thynge/ and that it is gretter vertue to kepe that is goten than to gete and wynne more/ and claudian saith in like wise in his book that hit is a gretter thynge & better to kepe that is goten Than to gete more And therfore hit is sayd y't the poure demandeth and beggeth er he felith/ and also hit is sayd that he y't dispendith more than he hath/ with oute strook he is smyten to the deth/ Ther was a noble man named Iohn de ganazath whiche was ryght ryche/ And this man had but two doughters whom he maryed to two noble men/ And whan he had maryed them/ he loued so well his sones in lawe their husbondes/ that in space & succession of tyme/ he departed to them alle his goodes temporell/ And as longe as he gaf to them they obeyed hym & were right diligent to plese and serue hym/ so hit befell that on a tyme that he had alle gyuen in so moche that he had ryght nought/ Than hit happend that they to whom he had gyuen his goodes/ whiche were wonte to be amyable & obeyssant to hym as longe as he gaf. Whan tyme cam that he was poure and knewe that he had not they becam unkynde Disagreable and disobeyssant/ And whan the fader sawe that he was deceyuyd by his debonayrte and loue of his doughters/ He desired and couetyed fore teschewe his pouerte/ At laste he wente to a marchant that he knewe of olde tyme. And requyred hym to lene to hym. x. thousand pound for to paye and rendre agayn wyth in thre dayes/ And he lente hit hym/ and whan he had brought hit in to his hows/ Hit happend that hit was a day of a solempne feste/ on

whiche daye he gaf to his doughters and her hufbonde a right noble dyner/ and after dyner he entrid in to his chambre secretly wyth them/ And drewe out of a coffre that he had do make all newe shettynge with iii. lockis/ the menoye that the marchant had lente hym And poured out vpon a tapyte that his doughtres and theyr hufbondes myght see hit/ And whan he had shewid hit vnto them he put hit vp agayn and put hit in to the cheste saynynge that hit had ben all his And whan they were departed he bare the money home to the marchant that he had borowed hit of/ And the next day after his doughters and theyre hufbondes Axid of hym how moche moneye was in the cheste that was shette wyth. iii. lockis/ And than he fayned and saide that he had therein. xxv. thousand pound/ whiche he kepte for to make his testament and for to leue to his doughters and hem/ yf they wolde here hem as well to hym ward as they dyde whan they were maried/ And than whan they herde that/ they were right Ioyous and glad And they thoughte and concluded to serue hym honorably as well in clothynge as in mete and drynke & of alle other thynges necessarye to hym vnto his ende And after this whan the ende of hym began tapproche/ he callyd his doughters and her husbondes and sayd to hem in thys mauere/ y'e shall vnderstande that the moneye that is in the chest shette vnder. iii. lockes I wylle leue to yow Sanynge I wyll that y'e gyue in my prefence er I dye whilis I lyue to the frere prechours. C. pound and to the frere menours. C. pound/ And to the heremytes of saynt Augustyn .I. pound to thende that whan I am buryed and put in the erthe y'e may demande of them the keyes of y'e cheste where my tresour is Inne/ whiche keyes they kepe/ and I haue put on eche keye a bille & writynge In witnessinge of the thynges abouesayd/ And also y'e shall vnderstande that he dyde do to be gyuen whilis he laye in his deth bedde to eche churche and recluse and to poure peple a certayn quantyte of moneye by the handes of his doughters husbondes/ whiche they dyde gladly. In hope to haue shortly the money that they supposid had ben in the cheste/ And whan hit cam to the last day/ that he deyde/ He was born to churche and his exequye don and was buryed solempnly/ And the eyght daye the seruyse worshipfully accomplisshid/ They wente for to demande the keyes of the Religious men that they had kept/ whiche were deliueryd to them/ And than they wente and opend the coffre where they supposid the money had ben Inne/ And there they fonde no thyng but a grete clubbe/ And on the the handlynge was wreton/ J Iohn of canazath make this testament/ that he be slayn wyth this clubbe/ that leuyth his own prouffit. And gyuyth hit to other/ as who sayth hit is no wysedom for a man to gyue his good to his children and kepe none for hym self/ And y'e shall vnderstande that it is grete folye to dispende and waste his good/ In hope for to recoure hit of other/ be hit of sone or doughter or ryght nyghe kyn/ For aman ought to kepe in his hande in dispendynge his owen goodes/ to fore he see that he dyspende other mennys/ And he ought not to be holden for a good man/ That hath lityll renome and spendeth many thyngys/ And I trowe that suche persones wold gladly make noueltees as for to noye and greue feignories and meue warres and tencions agaynst them that habounde in rychesses and goodes/ And also make extorcyons clamours & trybulacyons ayenst theyr lordes to thende to waste the goodes of the peple. lyke as they haue wasted theyris And suche a wastour of goodes may neuer be good for the comyn prouffit. And y'e shall vnderstande that after these wastours of goodes we saye that the pleyars of dyse and they that vse bordellis ben worst of alle other For whan the hete of playnge at the dyse/ And the couetyse of

theyr stynkynge lecherye hath brought hem to pouerte/ hit foloweth by force that they muste ben theuys and robbeurs And also dronkenship. glotonye. And alle maner of euyllis folowe them and myschief/ And they folowe gladly the companyes of knyghtes and of noble men whan they goon vnto the warre or batayllis And they coueyte not so moche the victorye as they do the robberie And they do moche harme as they goo And they brynge lityll gayn or wynnynge/ wherof hit happend on a tyme that fsaynt bernard rode on an hors aboute in the contrey And mette wyth an hasardour or dyse-player/ whiche sayd to hym/ thou goddes man wilte thou playe at dyse wyth me thyn hors ayenst my sowle/ to whom saynt Bernard answerd/ yf thou wilt oblige thy sowle to me ayenst my hors/ I wolle a lighte doun & playe wyth the/ and yf thou haue mo poyntes than I on thre dyse I promyse the thou shalt haue myn hors/ And than he was glad/ and an[=o]n cafte. iii. dyse/ And on eche dyse was a fyfe/ whiche made. xviii. poynts And anone he toke the hors by the brydell/ as he that was fewr that he had wonne/ and said that the hors was his And than saynt Bernard sayde abyde my sone For ther ben mo poyntes on the dyse than. xviii. And than he caste the dyse/ In suche wyse that one of the. iii. dyse clefte a sonder in the myddes/ And on that one parte was fyfe and on that other an Aas/ And eche of that other was a fyfe/ And than Saynt Bernard sayde That he had wonne hys sowle for as moche as he had caste on thre dyse. xix. points/ And than whan thys player sawe and apperceyuyd thys myracle/ He gaf hys sowle to saynt Bernard and be cam a monke and finysshid his lyf in good werkes/ The corrours and berars of lettres ought hastely and spedily do her viage that comanded hem/ with oute taryenge/ For their taryenge might noye and greue them that sende hem forth/ or ellis them to whom they ben sent too/ And torne hem to ryght grete domage or villonye/ for whiche cause euery noble man ought well to take hede to whom he deliuere his lettres and his mandements/ and otherwhilis suche peple ben Ioghelers & dronkelewe/ And goon out of their waye for to see abbayes and noble men for to haue auantage And hit happeth ofte tymes/ that whan suche messagers or currours ben enpesshid by ony taryenge/ That other currours bere lettres contrarye to his/ And come to fore hym/ of which thinges ofte tymes cometh many thinges discouenable of losse of frendes of castellys & of lande & many other thinges as in the feet of marchandise &c. And otherwhile hit happeth that a prynce for the faulte of suche messangers lefeth to haue victorye vpon hys enemyes/ And also ther ben some that whan they come in a cyte where they haue not ben to fore/ that ben more besy to visyte the Cyte and the noble men that dwelle theryn/ Than they ben to doo theyr voyage/ whyche thynge they ought not to doo/ But yf they had specyall charge of them that sente hem forth so to doo. And also whan they be sente forth of ony lordes or marchauntes they ought to be well ware/ that they charge hem not wyth ouer moche mete on morenynges ne with to moche wyn on euenynges/ wherby her synewis and vaynes myght be greuy/ that they muste for faute of good rewle tarye But they ought to goo and come hastely for to reporte to their maistres answers as hit apperteyneth And this suffisen of the thynges aboue sayd.

BOOK IV.

[Illustration]

_The fourth tractate & the last of the progression and draughtes of the forsayd playe of the chesse.

The first chapitre of the fourth tractate of the chesse borde in genere how it is made._

Ze haue deuised aboue the thinges that apperteyne vnto the formes of the chesse men and of theyr offices/ that is to wete as well of noble men as of the comyn peple/ than hit apperteyneth that we shold deuyse shortly how they yssue and goon oute of the places where they be sette/ And first we ought to speke of the forme and of the facion of the chequer after that hit representeth and was made after/ For hyt was made after the forme of the cyte of Babyloyne/ In the whiche this same playe was founden as hit is sayd afore/ And foure thinges The first is/ wher y'e shal vnderstande that y'e ought to consydere here in fore that. lxiiii. poyntes ben sette in the eschequer whiche ben alle square/ The seconde is wherfore the bordeur aboute his hyher than the squarenes of the poyntes/ The thirde is wherfore the comyn peple ben sette to fore the nobles/ The fourthe wherfore the nobles and the peples ben sette in their propre places Ther ben as many poyntes in y'e eschequer wyde as full And y'e shall first vnderftande wherfore that ther ben. lxiiii. poyntes in the eschequer/ For as the blessid saint Iherome saith/ the cyte of babilone was right grete and was made alle square/ and in euery quarter was. xvi. myle by nombre and mesure/ the whiche nombre foure tymes told was. lxiiii. myles/ After the maner of lombardye they be callid myles/ and in france leukes/ and in englong they be callid mylis also/ And for to reprefente the mesure of thys cyte/ In whiche thys playe or game was founden/ The philosopher that fonde hit first ordeyned a tablier conteynyng .lxiiii. poynts square/ the which ben comprised wyth in the bordour of the tablier/ ther ben xxxii. on that on fide &. xxxii. on that other whiche ben ordeyned for the beaulte of the playe/ and for to mewe the maner & drawynge of the chesse as hit shall appere in the chapitres folowynge/ and as to the seconde wherfore y'e bordour of theschequyer is hyher than the table wyth in. hit is to be vnderftande y't the bordour aboute representeth the walle of t'e cyte/ whiche is right hyghe/ And therfor made y'e philosopher the bordour more hyghe than y'e tablier. And as y'e blessid saint Iherome saith vpon y'e prophesie of ysaye/ that is to wete vpon a montayne of obscurete. whiche wordes were said of babilone whiche standeth in chaldee and nothinge of that babilone that stondeth in egipte/ for it is so y't babilone whiche standeth in chaldee was sette in a right grete playne/ & had so hyghe walles that by the heyghte of them/ was contynuell derkenes environed & obscurete/ that none erthely man might beholde and see the ende of y'e hyghnes of the walle/ And therfore ysaye callid hit y'e montaigne obscure/ And saint Iherome sayth y't the mesure of the heyght of this walle was thre thousand paas/ whiche extendeth vnto y'e lengthe of thre myle lombardes/ hit is to wete that lombarde mylis and english myles ben of one lengthe And in one of the corners of this cyte was made a toure treangle as a shelde wherof the heyght extended vnto the lengthe of .vii. thousand paas/ whiche is .vii. myle english And this tour was callyd the tour of Babell/ The walles aboute the tour made a woman whos name was semiranus as sayth virgilius/ As to the thirde wherfore the comyn peple ben sette to fore the nobles in the felde of the bataylle in one renge First for as moche as they ben necessarye to alle nobles For the rooke whiche standeth on the ryght syde and is

vicaire of the kynge what may he doo yf the labourer were not sette to fore hym and labourid to mynystre to hym suche temporell thynges as be necessary for hym/ And what may the knyght doo yf he ne had to fore hym the smyth for to forge his armours. sadellis. axis and spores and suche thynges as apperteyneth to hym/ And what is a knyght worth wyth oute hors and armes/ certaynly nothynge more than on of the peple or lasse pauenture And in what maner shold the nobles lyue yf no man made cloth and bought and solde marchandyse/ And what shulde kynges and quenes and the other lordes doo yf they had no phisicyens ne cyrurgiens/ than I saye that the peple ben the glorye of the Crowne And susteyne. the lyf of the nobles And therfore thou that art a lord or a noble man or knyght/ despise not the comyn peple for as moche as they ben sette to fore the in y'e pleye The seconde cause is why the peple ben sette to fore the nobles and haue the table wyde to fore them/ is be cause they begyn the bataylle/ They ought to take hede and entende to do theyr offices and theyr craftes/ In suche wyse that they suffre the noble men to gouerne the cytees and to counceylle and make ordenances of the peple of the batayll how shold a labourer a plowman or a craftyman counceylle and make ordenance of suche thynges as he neuer lerned/ And wote ne knoweth the mater vpon what thynge the counceylle ought to be taken/ Certes the comyn peple ought not to entende to none other thynge but for to do their seruyse and the office whiche is couenable vnto hem/ And hyt apperteyneth not to hem to be of counceyllys ne at the aduocacions/ ne to menace ne to threte noman/ for ofte tymes by menaces and by force good counceylle is distroublid/ And where good counceyll faylleth/ there ofte tymes the cytees ben betrayed and destroyed/ And Plato sayth That the comyn thynges and the cytees ben blessid whan they ben gouerned by wyse men/ or whan the gouernours studye in wisedom/ And so hit apperteyneth to the comyn to lerne to vttre the maters & the maner of procuracion to fore they be counceyllours/ For hit happeth oftetymes that he that maketh hym wyser that he vnderstandeth is made more foole than he is/ And the fourth cause wherfore y't ther ben in the tabler as many poynts wyde as ben full. hit is to wete for that they what euer they be that haue peple to gouerne/ ought tenforce to haue cytees & caftellis & possessions for to sette his peple theryn/ And for to laboure & doo their ocupacion/ For for to haue the name of a kynge with out royame is a name voyde/ and honour with oute prouffit/ And alle noblesse wyth oute good maners/ and with out suche thinges as noblesse may be mayntenyd/ ought better be callid folye than noblesse. And shamefull pouerte is the more greuous whan hit cometh by nature of an hyhe and noble burth or hous. For noman gladly wole repreue a poure man of the comyn peple/ But euery man hath in despite a noble man that is poure yf he haue not in hym good maners and vertuous/ by whiche his pouerte is forgoten/ and truly a royame with oute haboundance of goodes by whiche hit may be gouerned and prospere/ may better be callyd a latrocynye or a nest of theeuys than a royame/ Alas what haboundance was some tymes in the royames. And what prosþite/ In whiche was Iustice/ And euery man in his office contente/ how stood the cytees that tyme in worship and renome/ how was renomed the noble royame of Englond Alle the world dredde hit And spack worship of hit/ how hit now standeth and in what haboundance I reporte me to them that knowe hit yf ther ben theeuis wyth in the royame or on the see/ they knowe that laboure in the royame And sayle on the see I wote well the fame is grete therof I pray god saue that noble royame And

sende good true and politicque counceyllours to the gouernours of the same &c./ And noblesse of lignage wyth oute puyssance and might is but vanyte and despite. And hit is so as we haue sayd to fore that theschequer whiche the philosopher ordeyned represented and figured the sayd cyte of Babilone And in lyke wyse may hit figure a royame and signefye alle the world And yf men regarde and take heed vnto the poyntes vnto the middes of euery quadrante and so to double euery quadrant to other the myles of this cyte all way doublinge vnto the nombre of .lxiiii. The nombre of the same shulde surmounte alle the world/ And not only the world but many worldes by the doublinge of mylis/ whiche doublinge so as a fore is sayd shuld surmounte alle thynges/ And thus endeth the first chapitre of the fourth booke.

[Illustration]

The seconde chaitre of the fourth tractate tretheth of the draught of the kynge/ And how he meuyth hym in the chequer.

We ought to knowe that in this world/ the kynges seygnourye and regne eche in his royame. And in this playe we ought to knowe by the nature of hit how the kynge meueth hym and yssueth oute of his place/ For y'e shall vnderstande that he is sette in the fourth quadrante or poynt of theschequer. And whan he is black/ he standeth in the white/ and the knyght on his ryght side in white/ And the Alphyn and the rooke in black/ And on the lifte side the foure holden the places opposite/ And the rayson may be suche/ For be cause that the knyghtes ben the glorye & the crowne of the kynge,' They ensiewe in semblable residence/ that they doo whan they ben sette semblably on the ryght side of the kynge & on the lyfte side of the quene/ And for as moche as the rook on the ryght syde is vicayre of the kynge he accompanyeth the quene in semblable siege that the Alphyn doth whiche is Iuge of the kynge/ And in lyke wyse the lifte rook & the lyfte Alphyn accompanye the kynge in semblable siege/ In suche wyse as they ben sette aboute the kynge in bothe sides wyth the Quene in manere of a crowne/ That they may seurely kepe the royame that reluyseth and shyneth in the kynge and in the Quene/ In suche wyse as they may conferme and diffende hym in theyr sieges and in theyr places. And the more hastily renne vpon his enemyes And for as moche as the Iuge, the knyght/ and the vicaire. kepe and garnysshe the kynge on that one syde/ They that ben sette on the other syde kepe the Quene/ And thus kepe they alle the strength and fermete of the royame/ And semblably otherwhile for to ordeyne the thynges that apperteyne to the counceyll/ and to the besoygne of the royame/ For yf eche man shold entende to his owen proper thynges/ And y't they defended not ner toke hede vnto the thingis y't apperteynen to the kynge to the comyn and to the royame/ the royalme shold an[=o]n be deuided in parties And thus myght the Iuge regne/ And the name of the dignyte royall shold be lost/ And truly for as moche as the kynge holdeth the dignyte aboue alle other and the seygnourye royall/ therfore hit apperteyneth not that he absente hym longe/ ne wythdrawe hym ferre by space of tyme from the maister siege of his royame/ For whan he wele meue hym/ he ought not to passe at the first draught the nombre of .iii. poynts/ And whan he begynneth thus to meue from his whyt poynt/ he hath the nature of the rooks of the right syde and of the lifte syde for to goo black or whithe/ And also he may goo vnto the white poynt where the gardes of the Cyte ben sette And in this poynt he hath

the nature of a knyght. And thyse two maners of meuynge apperteyneth otherwhile to the quene/ and for as moche as the kynge and the quene that ben conioyned to geder by mariage ben one thynge as one flessh and blood/ therfore may the kynge meue on the lifte side of his propre poynt also wele as he were sette in the place of the quene whiche is black/ and whan he goth right in maner of the rook only/ And hit happen that the aduersarie be not couered in ony poynt in the seconde ligne/ The kynge may not passe from his black poynt vnto the thirde ligne/ And thus he sortisith the nature of the rook on the ryght syde and lyfte syde vnto the place of the knyghtes and for to goo ryght to fore In to the whyte poynt to fore the marchant/ And the kynge also sortyst the nature of the knyghtes whan he goth on the ryght syde in two maners/ For he may put hym in the voyde space to fore the phisicyen/ And in the black space to fore the tauerner/ And on the other side he goth in to other two places in lyk wise that is to fore the smyth/ and the notarye/ And thus as in goynge out first in to .iiii. poynts he sorteth the nature of knyghtes/ and also the kynge sortiseth the nature of the alphins at his first yssu in to .ii. places And he may goo on bothe sides vnto the white place voyde/ that one to fore y'e smith on that on side/ and that other to for the tauerner on that other side/ All these yssues hath y'e kyng out of his propre place of his owen vertue whan he begynneth to meue. But whan he is ones meuyd fro his propre place/ He may not meue but in to one space or poynt/ and so from one to an other/ And than he sortiseth the nature of the comyn peple/ and thus by good right he hath in hymfelf the nature of alle/ For alle the vertue that is in the membres cometh of the heed and all meuyng of the body/ The begynnynge & lyf comen from the herte/ And all the dignyte that the subgettes haue by execucion/ and contynuell apparence of their meuynge & yssue/ The kynge deteyneth hit & is attribued to hym/ the victorye of the knightes/ the prudence of y'e Iuges/ the auctorite of the vicaires or legates The c[=o]tynence of the quene/ the c[=o]corde & vnyte of y'e peple Ben not all thise thinges ascribed vnto the honour and worship of the kynge Jn his yssue whan he meuyd first The thirde ligne to fore the peple he neuer excedeth/ Fro in the .iii. nombre alle maner of states begynne to meue For the trynary nombre conteyneth .iii. parties/ whiche make a perfect nombre/ For a trynarye nombre hath. i. ii. iii. Whiche Ioyned to geder maken .vi. Whiche is the first parfyt nombre And signefieth in this place/ vi. persones named that constitute the þfection of a royame That is to wete the kynge. the quene. Iuges, knyghtes. the vicaires or legats/ and the comyn peple And therfor the kynge ought to begynne in his first meuynge of .iii. poyntes/ that he shewe perfection of lyf as well in hym self as in other After that the kynge begynneth to meue he may lede wyth hym the quene/ after the maner of his yssue For why the quene foloweth vnto two angularye places/ after the maner of the alphyn/ and to a place indirect in the maner of a rook in to the black poynt to fore the phisicien/ herin is signefied that the women may not meue neyther make vowes of pylgremage ner of viage wythoute the wylle of theyr husbondes/ For yf a woman had a vowed ony thynge/ her husbonde lyuynge/ and agaynsaynge/ she may not yelde ne accomplisshe her vowe/ yf the husbond wyll goo oughwer. he may well goo wyth oute her And yf so be that the husbond wyll haue her wyth hym/ she is bounden to folowe hym/ And by reson For a man is the heed of a woman/ and not econuerso/ For as to suche thingis as longe to patrymony/ they ben lyke/ but the man hath power ouer her body/ And so hath not the woman ouer his And therfore whan the kynge begynneth to meue. the

Quene may folowe/ And not alleway whan she meuyd it is no nede the kynge to meue/ For why four the first lignes be with in the limytes and space of the royame/ And vnto the thirde poynt the kynge may meue at his first meuynge out of his propre place/ And whan he passith the fourth ligne he goeth oute of his royame. And yf he passe oon poynt late hym beware/ For the persone of a kynge Is acounted more than a thousand of other/ For whan he exposeth hym vnto the paryllis of bataylle/ Hit is necessarye that he goo temperatly and slyly/ For yf he be taken or ded/ or ellis Inclusid and shette vp/ Alle the strengthes of alle other faylle and alle Is fynysshid and loste/ And therfore he hath nede to goo and meue wysely/ And also therfore he may not meue but one poynt after hys fyrst meuynge but where that euer he goo foreward or bacward or on that one syde or that other or ellis cornerwyse/ He may neuer approche hys aduersarye the kynge nerrer than in the thirde poynt/ And therfore the kynges in batayll ought neuer tapproche one nyghe that other/ And also whan the kynge hath goon so ferre that alle his men be lost/ than he is sole/ And than he may not endure longe whan he is brought to y't extremyte/ And also he ought to take hede that he stande not soo that a knyght or an other saith chek rook/ than the kyng loseth y'e rook/ That kynge is not well fortunat that leseth hym to whom his Auctoryte delegate apperteyneth/ who may doo the nedes of the royame yf he be priuyd taken or dede/ that was prouisour of alle the royame/ he shall bere a sack on his hede that Is shette in a cyte/ And alle they that were theryn ben taken in captiuite and shette vp &c.

[Illustration]

The seconde chapiter of the fourth book of the quene and how she yssueth oute of her place. [Transcriber's note: The printer's error in the original text, labeling the third chapter as "The seconde chapiter" is preserved here.]

Whan the Quene whiche is accompanyed vnto the kynge begynneth to meue from her propre place/ She goth in dowble manere/ that is to wete as an Alphyn whan she is black/ fhe may goo on the ryght syde & come in to the poynt to fore the notarye And on the lifte syde in the black poynt and come to fore the gardees of the cyte And hit is to wete that me sortiseth in her self the nature in .iii. maners first on the ryght syde to fore the alphyn/ Secondly on the lifte syde where the knyght is/ And thirdly indirectly vnto the black poynt to fore the phisicyen And the rayson why. Is for as moche as she hath in her self by grace/ the auctrorite that the rooks haue by c[=o]myscion/ For she may gyue & graute many thynges to her subgetts graciously And thus also ought she to haue parfyt wisedom/ as the alphyns haue whiche ben Iuges/ as hit sayd aboue in the chapitre of the Quene/ And she hath not the nature of knyghtes/ And hit is not fittynge ne couenable thynge for a woman to goo to bataylle for the fragilite and feblenes of her/ And therfore holdeth she not the waye in her draught as the knyghtes doon/ And whan she is meuyd ones oute of her place she may not goo but fro oon poynt to an other and yet cornerly whether hit be foreward or backward takynge or to be taken/ And here may be axid why the quene goth to the bataylle wyth the kynge/ certainly it is for the solace of hym/ and ostencion of loue/ And also the peple desire to haue sucession of the kynge And therfore the tartaris haue their wyues in to the felde with hem/ yet hit is not good that men haue theyr

wyuys with hem/ but that they abyde in the cytees or within their owne termes/ For whan they ben oute of theyr cytees and limytes they ben not sure/ but holden suspecte/ they shold be shamfast and hold alle men suspect/ For dyna Iacob's doughter as longe as she was in the hows of her brethern/ she kept her virginite/ But assone as she wente for to see the strange Regyons. Anone she was corrupt and defowled of the sone of sichem/ Seneca sayth that the women that haue euyll visages ben gladly not chaste/ but theyr corage desireth gladly the companye of men/ And Solynus saith that no bestes femellys desyre to be towched of theyr males whan they haue conceyuyd/ Exept woman whyche ought to be a best Raysonable/ And in thys caas she lefeth her rayson/ And Sidrac wythnesseth the same And therfore in the olde lawe/ the faders hadd dyuerce wyues and Ancellys to thende whan one was wyth childe/ they myght take another/ They ought to haue the visage enclyned for teschewe the fight of the men/ that by the fight they be not meuyd with Incontynence and diffame of other/ And Ouyde sayth that ther ben some That how well that they eschewe the dede/ yet haue they grete Joye whan they ben prayed/ And therfore ought the good women flee the curyositees and places wher they myght falle in blame and noyse of the peple.

[Illustration]

The fourth chapitre of the fourth book Is of the yssuynge of the Alphyn.

The manere and nature of the draught of the Alphyn is suche/ that he that is black in his propre fiege is sette on the right side of the kynge/ And he that is whyt is sette on the lifte side/ And ben callyd and named black and white/ But for no cause that they be so in subftance of her propre colour/ But for the colour of the places in whiche they ben sette/ And alleway be they black or white/ whan they ben sette in theyr places/ the alphyn on the ryght syde/ goynge oute of his place to the ryght sydeward comyth to fore the labourer/ And hit is reson that the Iuge ought to deffende and kepe the labourers and possessions whiche ben in his Iurisdiction by alle right and lawe/ And also he may goo on the lyste syde to the wyde place to fore the phisicien/ For lyke as the phisiciens haue the charge to hele the Infirmites of a man/ In lyke wyse haue the Iuges charge to appese alle stryues and contencions and reduce vnto vnyte/ And to punyfshe and correcte causes crymynels/ The lyste alphyn hath also two wayes fro his owen place oon toward y'e right syde vnto the black space voyde to fore the marchant/ For the marchants nede ofte tymes counceylle and ben in debate of questions whiche muste be determyned by the Iuges/ And that other yssue is vnto the place to fore the rybauldis/ And that ys be caufe that ofte tymes amonge them. falle noyses discencions thefte and manslaghter/ wherfore they ought to be punysshid by the Iuges/ And y'e shall vnderstande that the alphyn goth alleway corner wyse fro the thirde poynt to the thirde poynt kepynge all way his owne fiege/ For yf he be black/ he goth all way black/ And yf he be whyte he goth alleway whyte. the yssue or goynge cornerly or angularly signefieth cautele or fubtylyte/ whiche Iuges ought to haue/ The .iii. poyntes betoken .iii. thynges that the Iuge ought to attende/ A Iuge ought to furder rightfull & trewe causes. secondly he ought to gyue trewe counceyll/ and thirdly he ought to gyue and Iuge rightfull sentences after tha legeances/ And neuer to goo fro the ryghtwisnes of the lawe/ And it is to wete that the

Alphyn goth in fix drawhtes alle the tablier round aboute/ and that he cometh agayn in to his owen place/ And how be hit that alle rayson and good perfection shold be in a kynge/ yet ought hit also specially be in them that ben conceyllours of the kynge and the Quene And the kynge ought not to doo ony thynge doubtouse/ tyll he haue axid counceyll of his Iuges And of the sages of the royame And therfore ought the Iuge to be parfaytly wyse and sage as well in science as in good maners/ And that is signefied whan they meue from thre poynts in to thre/ For the fixt nombre by whiche they goo alle theschequer/ And brynge hem agayn in to her propre place in suche wyse that thende of her moeuynge is conioyned agayn to the begynnynge of the place frowhens they departed/ And therfore hit is callid a parfayt moeuynge.

[Illustration]

The fyfth chapitre of the fourth Tractate Is of the meuynge of the knyghtes.

After the yssue of the Alphyns we shall deuyse to yow the yssue & the moeuynge of the knyghtes/ And we saye that the knyght on the right syde is whyt/ And on the lifte syde black/ And the yssue and moeuynge of hem bothe is in one maner whan so is that the knyght on the ryght syde Is whyt/ The lyfte knyght is black/ The moeuynge of hem is suche/ That the whyte may goo in to the space of the alphyn/ as hit apperyth of the knyght on the right side that is whyte. And hath thre yssues fro his proper place/ one on his ryght syde in the place to fore the labourer/ And hit is well reson that whan the labourer and husbonde man hath laboured the feldes/ the knyghtes ought to kepe them/ to thentent that they haue vitailles for them self and their horses/ The second yssue is that he may meue hym vnto the black space to fore the notarye or draper. For he is bounden to deffende and kepe them that make his vestementis & couertours necessarye vnto his body. The thirde yssue is that he may go on the lifte syde in to the place to fore y'e marchant whiche is sette to fore the kynge/ the whiche is black/ And the refon is for as moche as he ought and is holden to deffende the kynge as well as his owen persone/ whan he passith the first draught/ he may goo foure wayes/ And whan he is in the myddes of the tabler he may goo in to .viii. places fondry/ to whiche he may renne And in lyke wise may the lyste knyght goo whiche is black and goth oute of his place in to white/ and in that maner goth the knyght fightynge by his myght/ and groweth and multiplieth in hys poyntis/ And ofte tymes by them the felde Is wonne or lost/ A knyghts vertue and myght is not knowen but by his fightynge/ and in his fightynge he doth moche harme for as moche as his myght extendeth in to fo many poyntis/ they ben in many peryllis in theyr fightynge/ And whan they escape they haue the honour of the game And thus is hit of euery man the more vailliant/ the more honoured And he that meketh hym self ofte tymes shyneth clerest.

[Illustration]

The sixt chapitre of the fourth tractate treleth of the yssue of the rooks and of her progression.

The moeuynge and yssue of the rooks whiche ben vicairs of the kynge is suche/ that the ryght rook is black and the lifte rook is whyte/ And whan the chesse ben sette as well the nobles as the comyn peple first in their propre places/ The rooks by their propre vertue haue no wey to yssue but yf hyt be made to them by the nobles or

comyn peple/ For they ben enclosed in their propre sieges/ And the refon why is suche That for as moche as they ben vicaires lieutenants or comyssioners of the kynge/ Theyr auctoryte is of none effecte to fore they yssue out/ And that they haue begonne tenhaunce theyr office/ For as longe as they be within the palais of the kynge/ So longe may they not vse ne execute theyr commyssion/ But anon as they yssue they may vse theyr auctorite/ And y'e shall vnderstande that their auctorite is grete/ for they represente the þsone of the kynge/ and therfore where the tablier is voyde they may renne alle the tablier/ In lyke wyse as they goon thurgh the royame/ and they may goo as well white as black as well on the right side & lifte as foreward and backward/ And as fer may they renne as they fynde the tablier voyde whether hit be of his aduersaryes as of his owen felowship/ And whan the rook is in the myddell of the tablier/ he may goo whiche way he wyll in to foure right lignes on euery side/ and hit is to wete that he may in no wyse goo cornerwyse/ but allway ryght forth goynge & comynge as afore is sayd/ wherfore all the subgettis of the kinge as well good as euyll ought to knowe by their moeuynge that auctorite of y'e vicaires and comyssioners ought to be verray true rightwis & Iuste/ and y'e shall vnderstande that they ben stronge and vertuous in bataylle For the two rooks only may vaynquyfshe a kynge theyr aduersarye and take hym/ and take from hym his lyf and his royame/ And this was doon whan chirus kynge of perse And darius kynge of medes slewe baltazar and toke his royame from hym. Whiche was neuew to euylmoradach vnder whom this game was founden.

[Illustration]

The seuenth chapitre of the fourth book treteth of the yssue of the comyn peple &c.

One yffue and one mouynge apperteyneth vnto alle the peple/ For they may goo fro the poynt they stande in at the first meuynge vnto the thirde poynt right forth to fore them/ & whan they haue so don they may afterward meue no more but fro one poynt ryght forth in to an other/ And they may neuer retorne backward And thus goynge forth fro poynt to poynt They may gete by vertue and strengthe/ that thynge that the other noble fynde by dignyte/ And yf the knyghtes and other nobles helpe hem that they come to the ferthest lygne to fore them where theyr aduersaryes were sette. They acquyre the dignyte that the quene hath graunted to her by grace/ For yf ony of them may come to thys sayd ligne/ yf he be white as labourer draper phisicyen or kepar of the cyte ben/ they reteyne suche dignyte as the quene hath/ for they haue goten hit/ and than retornynge agayn homeward/ they may goo lyke as it is sayd in the chapitre of the quene And yf ony of the pawns that is black/ as the smyth the marchant the tauerner and the rybaulde may come wyth oute domage in to the same vtterist ligne/ he shall gete by his vertu the dignyte of the black quene And y'e shall vnderftande/ whan thyse comyn peple meue right forth in her ligne/ and fynde ony noble persone or of the peple of their aduersaries sette in the poynt at on ony side to fore hym/ In that corner poynt he may take his aduersarye wherther hit be on the right side or on the lifte/ And the cause is that the aduersaries ben suspecyous that the comyn peple lye In a wayte to Robbe her goodes or to take her persones whan they goo vpward right forth. And therfore he may take in the right angle to fore hym

one of his aduersaries/ As he had espied his persone/ And in the lifte angle as robber of his goodes/ and whether hit be goynge foreward or retornynge fro black to whyte or whyte to black/ the pawn must allway goo in his right ligne/ and all way take in the corner that he findeth in his waye/ but he may not goo on neyther side tyll he hath ben in the furdest ligne of theschequer/ And that he hath taken the nature of the draughtes of the quene/ And than he is a fiers/ And than he may goo on alle sides cornerwyse fro poynt to poynt only as the quene doth fightynge and takynge whom he findeth in his waye/ And whan he is thus comen to the place where y'e nobles his aduersaries were sette he shall be named white fiers or black fiers/ after the poynt that he is in/ and there taketh he the dignyte of the quene &c. And all these thinges may appere to them that beholden y'e play of the chesse/ and y'e shall vnderstande that no noble man ought to haue despite of the comyn peple/ for hit hath ben ofte tymes seen/ that by their vertu & witte/ Diuerce of them haue comen to right highe & grete astate as poopes bisshoppes Emþerours and kynges/ As we haue in the historye of Dauid that was made kynge/ of a shepherd and one of the comyn peple/ and of many other &c. And in lyke wyse we rede of the contrary/ that many noble men haue ben brought to myserye by their defaulte As of gyges whiche was right riche of landes and of richesses And was so proude that he wente and demanded of the god appollo/ yf ther were ony in the world more riche or more happy than he was/ and than he herde a voys that yssued out of the fosse or pitte of the sacrefices/ that a peple named agalaus sophide whiche were poure of goodes and riche of corage was more acceptable than he whiche was kynge And thus the god Appollo alowed more the sapience & the seurte of the poure man and of his lityll mayne/ than he dide the astate and the persone of giges ne of his ryche mayne/ And hit is more to alowe a lityll thynge seurly poursiewed than moche good taken in fere and drede And for as moche as a man of lowe lignage is by his vertue enhaunsed so moche the more he ought to be glorious and of good renomee/ virgile that was born in lombardye of y'e nacion of mantua and was of lowe and symple lignage/ yet he was souerayn in wisedom and science and the moste noble of alle the poetes/ of whome the renome is and shall be durynge the world/ so hit happend that an other poete axid and demanded of hym wherfore he setted not the versis of homere in his book/ And he answerd that he shold be of right grete strength and force that shold pluck the clubbe out of hercules handes/ And thys suffyceth the state and draughtis of the comyn peple &c.

[Illustration]

The eyght chapitre and the last of the fourth book of the epilogacion and recapitulation of this book.

For as moche as we see and knowe that the memorye of the peple is not retentyf but right forgetefull whan some here longe talis & historyes whiche they can not alle reteyne in her mynde or recorde Therfore I haue put in this present chapitre all y'e thynges abouesayd as shortly as I haue conne/ First this playe or game was founden in the tyme of euilmerodach kynge of Babilone/ And exerses the philosopher otherwyse named philometer fonde hit/ And the cause why/ was for the corre3tion of the kynge lyke as hit apperith in thre the first chapitres/ for the said kynge was so tyrannous and felon that he might suffre no correction/ But slewe them and dide do

put hem to deth/ that corre3tid hym/ and had than do put to deth many right wyse men Than the peple beynge sorowfull and ryght euyll plesid of this euyll lyf of the kynge prayd and requyred the philosopher/ that he wolde repryse and telle the kynge of his folye/ And than the philosopher answerd that he shold be dede yf he so dide/ and the peple sayd to hym/ Certes thou oughtest sonner wille to dye to thende that thy renome myght come to the peple/ than the lyf of the kynge shold contynue in euyll for lacke of thy counceyll/ or by faulte of reprehension of the/ or that thou darst not doo and shewe/ that thou faist/ And whan the philosopher herd this he promisid to the peple y't he wold put hym in deuoyr to correcte hym/ and than he began to thynke in what maner he myght escape the deth and kepe to the peple his promesse/ And than thus he made in this maner and ordeyned the schequer of. lxiiii. poynts as Is afore sayd/ And dide doo make the forme of chequers of gold and siluer In humayne fygure after the facyons and formes as we haue dyuysid and shiewid to yow to fore in theyr chapitres/ And ordeyned the moeuynge and thestate after that it is said in the chapitres of theschesses And whan the philosopher had thus ordeyned the playe or game/ and that hit plesid alle them that sawe hit/ on a tyme as the philosopher playd on hit/ the kynge cam and sawe hit and desired to playe at this game/ And than the phylosopher began tenseigne and teche the kynge the science of the playe & the draughtes. Saynge to hym fyrst how the kynge ought to haue in hymself pytie. debonairte and rightwisnes as hit is said to fore in the chapitre of the kynge And he enseygned to hym the estate of the queue and what maners she ought to haue And than of the alphyns as connceyllours and luges of the royame And after the nature of the knyghtes/ how they ought to be wise. trewe and curtoys and alle the ordre of knyghthode And than after/ the nature of the vicaires & rooks as hit apperyth in theyr chappitre And after this how the comyn peple ought to goo eche in his office/ And how they ought to serue the nobles. And whan the philosopher had thus taught and enseigned the kynge and his nobles by the maner of the playe and had rephended hym of his euyll maners/ The kynge demanded hym vpon payne of deth to telle hym the cause why and wherfore he had made & founden thys playe and game And what thynge meuyd hym therto/ And than the philosopher constrayned by fere and drede answerd/ that he had promysid to the peple whiche had requyred hym that he shold correcte and reprise the kynge of his euyll vices/ but for as moche as he doubtid the deth and had seen that the kynge dide do flee the fages & wyse men/ That were so hardy to blame hym of his vices/ he was in grete anguysshe & sorowe/ how he myght fynde a maner to correcte & reprehende the kynge/ And to saue his owen lyf/ and thus he thought longe & studyed that he fonde thys game or playe/ Whiche he hath do sette forth for to amende and corre3te the lyf of the kynge and to change his maners/ and he adioustyd with all that he had founden this game for so moche as the lordes and nobles habondynge in delyces & richessis/ And enioynge temporell peas shold eschewe ydlenes by playnge of this game/ And for to gyue hem cause to leue her pensisnes and sorowes/ In auysynge & studyynge this game. And whan the kynge had herd alle thyse causes/ He thought that the philosopher had founde a good maner of correction/ And than he thanketh hym gretly/ and thus by thenseygnement and lernynge of the phylosopher he changid his lyf his maners & alle his euyll condicions And by this maner hit happend that the kynge that to fore tyme had ben vicyous and disordynate in his liuyng was made Iuste. and vertuous. debonayre. gracious and and

full of vertues vnto alle peple/ And a man that lyuyth in this world without vertues liueth not as a man but as a beste[56]/ And therfore my ryght redoubted lord I pray almighty god to saue the kyng our souerain lord & to gyue hym grace to yssue as a kynge & tabounde in all vertues/ & to be assisted with all other his lordes in such wyse y't his noble royame of Englond may prospere & habounde in vertues/ and y't synne may be eschewid iustice kepte/ the royame defended good men rewarded malefa3tours punysshid & the ydle peple to be put to laboure that he wyth the nobles of the royame may regne gloriously In conquerynge his rightfull enheritaunce/ that verray peas and charite may endure in bothe his royames/ and that marchandise may haue his cours in suche wise that euery man eschewe synne/ and encrece in vertuous occupacions/ Praynge your good grace to resseyue this lityll and symple book made vnder the hope and shadowe of your noble protection by hym that is your most humble seruant/ in gree and thanke And I shall praye almighty god for your longe lyf & welfare/ whiche he preserue And sende yow thaccomplisshement of your hye noble. Ioyous and vertuous desirs Amen:/: Fynysshid the last day of marche the yer of our lord god. a. thousand foure honderd and lxxiiii

[Footnote 1: Blades' "Life of Caxton," ii., 12.]

[Footnote 2: Mr. Blades enumerates only ten, but between the publication of his work in 1863 and the appearance in 1880 of a more popular one, an eleventh copy turned up. It is described further on. As both editions of Mr. Blades' book are frequently cited, it may be stated here that where the reference is to the page only, the one volume edition of 1880 is meant.]

[Footnote 3: Blades, ii., 12.]

[Footnote 4: Van der Linde, "Geschichte und Literatur des Schachspiels," Berlin, 1874, ii., 125.]

[Footnote 5: Blades, ii., 48.]

[Footnote 6: Blades, ii., 97.]

[Footnote 7: Blades, ii., 95.]

[Footnote 8: Dibdin's "Bibliotheca Spenceriana," iv., 195.]

[Footnote 9: See Prosper Marchand, "Dict. Hist.," t. i., p. 181.]

[Footnote 10: "Les Bibliothéques Françoises de La Croix du Maine et de Du Verdier." n. e. Paris, 1782, t. i., p. 493.]

[Footnote 11: Dr. Van der Linde, "Geschichte," 114.]

[Footnote 12: Cf. Van der Linde, "Geschichte," and his "Jartausend."]

[Footnote 13: Jaubert, cited by Van der Linde, "Geschichte," t. i., p. 122.]

[Footnote 14: Blades' "Caxton," 173-175.]

[Footnote 15: Blades, i., 166.]

[Footnote 16: "Geschichte," i., 29. There is a manuscript copy in the Chetham Library, Manchester, which he does not name. It came from the Farmer Collection,

and is in a volume containing a number of fifteenth century Latin tracts. See account of European MSS. in the Chetham Library, Manchester, by James Orchard Halliwell, F.R.S., Manchester, 1842, p. 15.]

[Footnote 17: "Bulletin du Bibliophile," 1836-1837, 2ième serie, p. 527.]

[Footnote 18: "Academy," July 12, 1881.]

[Footnote 19: Blades' "Life of Caxton," vol. ii., p. 9.]

[Footnote 20: "De regimine Principum," a poem by Thomas Occleve, written in the reign of Henry IV. Edited, for the first time, by Thomas Wright, Esq., M.A., F.S.A., &c. Printed for the Roxburghe Club. London: J. B. Nichols, 1860, 410.]

[Footnote 21: Warton's "History of English Poetry," 1871, iii., 44.]

[Footnote 22: The fires of purgatory are finely and amply illustrated in the story at p. 110, whilst the power of the saints and the value of pilgrimages would be impressed upon the hearers by the narrative of the miracles wrought by St. James of Compostella (p. 136)]

[Footnote 23: "Hist. of Siege of Troye."]

[Footnote 24: "Works of Polidore Virgil." London, 1663, p. 95.]

[Footnote 25: Græsse: Trésor, s.v. Sydrach. See also Warton's "History of English Poetry," 1871, vol. ii., p. 144, Hazlitt's "Handbook of Early English Literature," p. 43.]

[Footnote 26: Hoeffer: "Nouvelle Biographie Universelle."]

[Footnote 27: Hoeffer, "Nouvelle Biographie Générale," xxxiii. 818.]

[Footnote 28: Brunei, "Manuel du Libraire," s. v. Gesta.]

[Footnote 29: "Gesta Romanorum," edited by Herrtage. London, 1879, p. vii.]

[Footnote 30: Occleve, "De Regimine Principum," p. 199.]

[Footnote 31: "Curiosities of Search Room." London, 1880, p. 32.]

[Footnote 32: "Percy Anecdotes: Domestic Life," iv. 446.]

[Footnote 33: Dunlop, "History of Fiction," 1876, p. 259.]

[Footnote 34: "Latin Stories," edited by Thomas Wright. Percy Society, 1842, p. 222.]

[Footnote 35: See "Gesta Romanorum," edit, by Herrtage, p. 364.]

[Footnote 36: "On Two Collections of Mediæval Moralized Tales," by John K. Ingram, LL.D. Dublin, 1882, p. 137.]

[Footnote 37: Muratori: "Rerum Italicarum Scriptores," t. i. p. 465.]

[Footnote 38: Wright, "Latin Stories," p. 235.]

[Footnote 39: "Francis of Assisi," Mrs. Oliphant. London, 1874, p. 87.]

[Footnote 40: "Valerius Maximus," vi. 2, 3.]

[Footnote 41: It will be sufficient here to refer for further details to the following works:--"Geschichte und Literatur des Schachspiels," von Antonius van der Linde, Berlin, 1874, 2 vols.; "Quellenstudien zur Gefchichte des Schachspiels," von Dr. A. v.d.Linde, Berlin, 1881.]

[Footnote 42: This dedication is omitted in the second edition.]

[Footnote 43: Second edit. reads "Thossyce of notaries/ aduocates scriueners and drapers and clothmakers capitulo iii"]

[Footnote 44: Sec. edit. reads "The forme of phisiciens leches spycers and appotycaryes"]

[Footnote 45: Sec. edit. "Of tauerners hostelers & vitaillers"]

[Footnote 46: Sec. edit. "Of kepers of townes Receyuers of custum and tollenars"]

[Footnote 47: Sec. edit. "Of messagers currours Rybauldes and players at the dyse"]

[Footnote 48: "democrite" in the sec. edit.]

[Footnote 49: "beclyppe" in sec. edit.]

[Footnote 50: "demotene" in sec. edit.]

[Footnote 51: "demostenes" in sec. edit.]

[Footnote 52: "blisful" in the sec. edit.--The reading of the first edition is evidently a misprint.]

[Footnote 53: Sec. edit. "buneuentayns."]

[Footnote 54: sec. edit, "y nough."]

[Footnote 55: sec. edit. "by the martel or hamer."]

[Footnore 55: "And therfore &c." to the end, is wanting in the second edition, and, instead thereof, the treatife concludes in the following manner--

"Thenne late euery man of what condycion he be that redyth or herith this litel book redde take therby enfaumple to amende hym.

Explicit per Caxton."]

GLOSSARY

Aas; ace. Aduocacions; Latin _advocationis_, assembly of advocates, the bar. Agaynesaynge; gain-saying. Alphyns. The alphin, or elephant, was the piece answering to the bishop in the modern game of chess. Ameruaylled; astonished. Ample, ampole; Latin _ampulla_, vessel for holding liquids. Ancellys; Latin _ancilla_, handmaids, concubines. Appertly; openly. Appetissid; satisfied, satiated. Ardautly [ardantly]; ardently. Arrache; French _arracher_, to pull, to pluck.

Auenture; adventure. Axe; ask.

Barate; trouble, suffering. Beaulte; beauty. Benerous; French _bénir_, blessed. Besaunt; besant, a Byzantine gold coin. Beneurte; French _bonheur_, good fortune. Bole; bull. Bourdellys; brothels, stews. Butters; freebooters. Butyn; French _butin_, plunder, spoils.

Chamberyer; Chambrere; woman servant, concubine. Chequer; chefs-board. Chauffed; French _échauffer_, to warm. Compaignon; French _compagnon_, companion. Connynge; cunning, knowledge. Corrompith; French _corrompre_, to corrupt. Couenable; French _convenable_, proper, fit. Courrours; French _coureurs_, runners, messengers. Curatours; guardians, trustees.

Dampned; condemned. Debonairly; debonairte, French de ban air, in a good manner, with good will. Depesshed; French depecher, defpatched. Deporte; deport. Devour; French devoir, duty. Dismes; Latin decimal, tenths, or tithes. Disobeyfance; disobedience. Difpendynge; spending. Distemprance; intemperance. Dolabre; Latin dolabra, axe, pick-axe. Doubted; redoubted, of doughty. Drawhtes; draughts, movements. Drof; drove. Dronkelewe; drunkenness. Dronkenshyp; drunkenness. Dyse; dice.

Enbrasid; embraced. Enpessheth; French empécher, to forbid. Enpoigne; French empoigner, to take in hand. Enfeygned; French enfeigner, to teach. Eschauffed; French échauffer, to warm. Esmoued; French émouvoir, to move. Espicers; French epicier. Espryfed; French epris, taken. Ewrous, in; French heureuse, happy.

Feet; French fait, act, feat. Ferremens. See Serremens. Flessly; fleshily. Folelarge; prodigal, extravagant. Fumee; French fumee, smoke, vapour. Garnyfche; garnish, adorn, set off. Genere; general. Goddes man; godsman, saint or religious person. Gossibs; gossyb; gossips, gossip. Gree; French gré, liking. Grucche; grudge. Guarisshors; French guèrir, to cure.

Hauoyr; French avoir, possessions. Herberowe; harbour. Historiagraph; historian. Hoos; hoarse.

Iape; jape, trick.

Jolye, lvii; fine (French joli).

Keruars; carvers.

Langed; belonged. Latrocynye; Latin latrocinium. Lecherye; lechery. Letted; prevented.

Male; mail, trunk. Maleheurte; French malheur, misfortune, sorrow. Maronners; mariners. Martel; hammer. Meure; French moeurs, manners. Mordent; biting. Mortifyed; mortified, deadened. Mufyque; mufic.

Nonne; nun. Noye; annoyance.

Oeuurages; French outrages, works. Oftencion; show. Olefauntes; elephants. Oughwer; over. Oultrage; outrage.

Pardurable; everlasting. Parfyt; French parfait, perfeft. Pawon; pawn. Payringe; "without a pareing," i.e. undiminished. Peages; peagers; French péage, péager. A

local tax on merchandise in paflage for the maintenance of roads and bridges. A gatherer of the péage. Pensee; French pensée, thought. Pourueance; providence. Rawe; rough. Renomee; renown. Roynyous; ruinous. Rybauldes; ribalds.

Saciat; satiated. Sawlter; þsalter. Scawage; scavage, toll or tax. Semblant; French sembler, to appear, to seem. Serremens; cerements. Siege; feat. Slear; slayer. Spores; spurs. Spyncoppis; spiders. Stracched; stretched. Supplye; French supplier, to supplicate. Syfe; fix.

Tacches; gifts, bequests. A. S. tacan, having the double meaning of giving and taking. Tapyte; carpet. Tencyons; temptations. Trycheur; tricker. Tryste; sad. Tutours; tutors, guardians.

Vignours; vine-dresser.

Wetyngly; knowingly.

Yates; gates. Yre; ire.

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